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VOLUME 10 NUMBER 228

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Regulations

TITLE 5—ADMINISTRATIVE PERSONNEL

Chapter I—Civil Service Commission

PART 22—REGULATIONS GOVERNING APPEALS OF PREFERENCE ELIGIBLES UNDER THE VETERANS' PREFERENCE ACT OF 1944

APPLICABILITY OF REGULATIONS

Effective immediately, § 22.1 (a) (2) (v) (9 F.R. 13189, 9 F.R. 14923; 10 F.R. 11191) is repealed.

By the United States Civil Service Commission.

[SEAL] H. B. MITCHELL, *President.*

NOVEMBER 6, 1945.

[F. R. Doc. 45-21071; Filed, Nov. 19, 1945; 2:55 p. m.]

TITLE 14—CIVIL AVIATION

Chapter I—Civil Aeronautics Board

[Regs., Serial No. 349]

PART 40—AIR CARRIER OPERATING CERTIFICATION

PENNSYLVANIA-CENTRAL AIRLINES CORP.; NONCOMPLIANCE WITH REQUIREMENTS AS TO FIRST PILOTS

Noncompliance with the requirements of § 40.2611 (b) of the Civil Air Regulations with respect to the approved route of Pennsylvania-Central Airlines Corporation between Norfolk, Virginia, and Knoxville, Tennessee.

Adopted by the Civil Aeronautics Board at its office in Washington, D. C., on the 14th day of November 1945.

The following Special Civil Air Regulation is made and promulgated to become effective November 14, 1945:

Any first pilot listed in the Pennsylvania-Central Airlines Corporation air carrier operating certificate on November 1, 1945, will be deemed to have met the requirements prescribed by § 40.2611 (b) of the Civil Air Regulations with respect to the piloting of aircraft in scheduled air transportation on the approved route between Norfolk, Virginia, and Knoxville, Tennessee, when:

1. He has completed 4 one-way trips over the route as first pilot without passengers or as second pilot with or without passengers and 2 one-way trips as an observer from the cockpit;

2. He has conducted simulated instrument let-down procedure without hood at each airport where instrument approach has been requested;

3. He has completed a company route examination covering en route procedure and company operations policy for en route flying. Each pilot will also be required to submit field diagrams and instrument let-down diagrams for each regular and alternate airport;

4. He has completed Link Trainer instrument let-down procedure for each regular airport where instrument let-down procedure will be authorized.

This regulation shall terminate February 15, 1946.

(52 Stat. 984, 1007; 49 U.S.C. 425, 551)

By the Civil Aeronautics Board.

FRED A. TOOMBS, *Secretary.*

[F. R. Doc. 45-21097; Filed, Nov. 20, 1945; 11:27 a. m.]

TITLE 19—CUSTOMS DUTIES

Chapter I—Bureau of Customs

[T. D. 51349]

PART 4—VESSELS IN FOREIGN AND DOMESTIC TRADES

WAIVER OF ENTRANCE AND CLEARANCE LAWS RESCINDED

NOVEMBER 16, 1945.

Treasury Decision 50643, dated May 29, 1942, waiving compliance with the entrance and clearance laws in the case of certain Canadian vessels transporting iron ore between United States ports on the Great Lakes, rescinded.

Upon the written recommendations of the Director of the Office of Defense Transportation and pursuant to the authority vested in me by the provisions of section 501 of the Second War Powers

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FEDERAL REGISTER

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NOTICE

1944 Supplement

The following books of the 1944 Supplement to the Code of Federal Regulations are now available from the Superintendent of Documents, Government Printing Office, at $3 per copy:

Book 1: Titles 1–10, including Presidential documents in full text.

Book 2: Titles 11–32.

A limited sales stock of the Cumulative Supplement and the 1943 Supplement is still available as previously announced.

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Act, 1942 (50 U. S. C. App. Sup. 635), as extended by the act of December 20, 1944 (50 U. S. C. App. Sup. 645), I hereby rescind the order of the Acting Secretary of the Treasury dated May 29, 1942, waiving compliance with the provisions of the navigation laws relating to the entrance and clearance of vessels to the extent necessary to permit vessels of Canadian registry which are engaged in the transportation of iron ore between United States ports on the Great Lakes under authority of the act of January 27, 1942 (Public Law 416, 77th Congress), to be accorded the same treatment with respect to report of arrival, entrance, clearance, coastwise permits to proceed, and manifests, as is accorded enrolled or licensed vessels of the United States engaged in the same trade.

This order shall become effective at midnight, December 8, 1945.

[SEAL] HERBERT E. GASTON,
Acting Secretary of the Treasury.

[F. R. Doc. 45-21081; Filed, Nov. 20, 1945; 9:52 a. m.]

TITLE 26—INTERNAL REVENUE

Chapter I—Bureau of Internal Revenue

Subchapter C—Miscellaneous Excise Taxes

[T. D. 5484]

PART 181—STILLS AND DISTILLING APPARATUS

MISCELLANEOUS AMENDMENTS

Pursuant to sections 3176, 3250 (j) (1) (3), and 3791, Internal Revenue Code, (U.S.C., Title 26, sections 3176, 3250 (j) (1) (3) and 3791), Regulations 23 (26 CFR, Part 181) is hereby amended as follows:

1. Section 181.3 (g) is amended to read as follows:

(g) "Still" shall mean any apparatus designed, intended, actually used, or capable of being used for separating alcoholic or spirituous vapors, or alcohol or spirituous solutions, or alcohol or spirits, from alcohol or spirituous solutions or mixtures, but shall not include stills used for laboratory purposes or stills used for distilling water or other nonalcoholic materials, where the cubic capacity of such stills is one gallon or less.

2. Section 181.3 (i) is amended to read as follows:

(i) "Worm" or "condenser" shall mean any apparatus designed, intended, actually used, or capable of being used when connected with a still, for condensing or liquefying alcoholic or spirituous vapors, but shall not include worms or condensers to be used with laboratory stills or stills used for distilling water or other nonalcoholic materials, where the cubic capacity of such stills is one gallon or less. (Secs. 3176, 3250 (j) (1) (3), and 3791, I.R.C.)

3. Section 181.13 (a) is amended to read as follows:

§ 181.13 *Taxable status of stills*—(a) *Evidence of use.* Any still or worm or condenser (as defined by § 181.3), with the exception only of retorts for the production of wood alcohol, sold to a user by the manufacturer or otherwise disposed of or used by the manufacturer, will be presumed to be intended for use in distilling, as defined by § 181.12, and special tax as manufacturer of stills and tax on the still or worm or condenser, incurred by the manufacturer, unless such presumption as to any still or worm or condenser intended for domestic use only, shall be removed by filing satisfactory evidence as hereinafter provided showing that the same will not be used for distilling as defined by § 181.12.

4. Section 181.15 (a) is amended to read as follows:

§ 181.15 *Registry of stills*—(a) *Registration with district supervisor.* Every person having in his possession, custody, or under his control, any still or distilling apparatus set up, shall register the same with the district supervisor of the district in which such still or distilling apparatus is located, except where such stills have heretofore been registered and no change in ownership, possession, custody, control, or location has occurred since such registry. This requirement applies to all stills (as defined by § 181.3) set up, except retorts for the production of wood alcohol and as provided by § 181.15 (d). This registry of stills shall be made on Form 26, in triplicate, with the district supervisor. The specific information required by the instructions on Form 26 will be entered in the space provided therefor. One copy of each registration of stills on Form 26 will be retained by the district supervisor, one copy will be returned to the registrant, and the remaining copy will be forwarded immediately to the Commissioner. The approved copy of Form 26, returned to the registrant by the supervisor, shall be retained on the premises where the still is set up for examination by visiting internal revenue officers.

[SEAL] WM. T. SHERWOOD,
Acting Commissioner of Internal Revenue.

Approved: November 19, 1945.

JOSEPH J. O'CONNELL Jr.,
Acting Secretary of the Treasury.

[F. R. Doc. 45-21098; Filed, Nov. 20, 1945; 11:30 a. m.]

TITLE 31—MONEY AND FINANCE: TREASURY

Chapter I—Monetary Offices, Department of the Treasury

PART 131—GENERAL LICENSES UNDER EXECUTIVE ORDER NO. 8389, APRIL 10, 1940, AS AMENDED, AND REGULATIONS ISSUED PURSUANT THERETO

TRANSACTIONS ON BEHALF OF, OR INVOLVING PROPERTY OF, BELGIUM AND ITS NATIONALS

NOVEMBER 20, 1945.

General License No. 93 under Executive Order No. 8389, as amended, Executive Order No. 9193, as amended, section 5 (b) of the Trading with the Enemy Act, as amended by the First War Powers Act, 1941, relating to foreign funds control.

§ 131.93 *General License No. 93*—(a) *Certain transactions involving Belgium or nationals thereof or relating to Belgian property authorized.* A general license is hereby granted licensing any transaction referred to in section 1 of the order if (i) such transaction is by, on behalf of, or pursuant to the direction of Belgium or any national thereof, or (ii) such transaction involves property in which Belgium or any national thereof has at any time on or since the effective date of the Order had any interest, *Provided,* That:

(1) Such transaction (i) is not by, on behalf of, or pursuant to the direction of any blocked country or any national thereof, other than Belgium or any national of Belgium, and (ii) does not involve property in which any blocked country or any national thereof, other than Belgium or any national of Belgium, has at any time on or since the effective date of the order had any interest; and

(2) No payment, transfer, or withdrawal, or other dealing with respect to:

(i) Any property in which on the date hereof any of the following has an interest: (*a*) Any person within Belgium or any other blocked country; or (*b*) any partnership, corporation, association, or other organization which is a national of a blocked country by reason of the interest therein of a person within Belgium or any other blocked country; or

(ii) Any income from such property accruing on or after the date hereof

shall be effected under, or be deemed to be authorized by, this license unless a designated agent of the Government of Belgium has certified in writing that the Government of Belgium has determined that no blocked country or national thereof, other than Belgium or any national of Belgium, has at any time between the effective date of the order and the date of the certification, had any interest in such property.

(b) *Certain other transactions authorized.* This general license also authorizes any transaction which could be effected under § 131.53 if Belgium were a member of the generally licensed trade area: *Provided,* That this paragraph shall not be deemed to authorize any payment, transfer, or withdrawal, or other dealing, with respect to any property which is subject to subparagraph (2) of paragraph (a) hereof, unless certification has been made thereunder.

(c) *Application of license to nationals of Belgium who are also nationals of other blocked countries.* The provisions of paragraph (a) hereof shall not apply with respect to any national of Belgium who is also a national of any other blocked country: *Provided, however,* That for the purpose only of this general license the following shall be deemed not to be nationals of any blocked country other than Belgium:

(1) Any individual residing in Belgium, except any citizen or subject of Germany or Japan who at any time on or since December 7, 1941 has been within the territory of either such country or within any other territory while it was designated as "enemy territory" under General Ruling No. 11;

(2) Any partnership, association, corporation, or other organization organized under the laws of Belgium, unless it is a national of Germany, Japan, Bulgaria, Hungary or Rumania.

(d) *Waiver of section 2A of the order, General Rulings Nos. 3, 5 and 17, and Public Circular No. 14.* The provisions of General Rulings Nos. 3 and 17 and Public Circular No. 14 are waived with respect to any transaction effected under this license. The provisions of section 2A of the order and of General Ruling No. 5 are waived with respect to any security to which is attached a certification under subparagraph (2) of paragraph (a) hereof.

(e) *Definition.* As used in this general license, the term "Belgium" shall include Belgium and any colony or other territory subject to the jurisdiction of Belgium.

(Sec. 5 (b), 40 Stat. 415 and 966; sec. 2, 48 Stat. 1; 54 Stat. 179; 55 Stat. 838; E.O. 8389, Apr. 10, 1940, as amended by E.O. 8785, June 14, 1941, E.O. 8832, July 26, 1941, E.O. 8963, Dec. 9, 1941, and E.O. 8998, Dec. 26, 1941; E.O. 9193, July 6, 1942, as amended by E.O. 9567, June 8, 1945; Regs., Apr. 10, 1940, as amended June 14, 1941, and July 26, 1941)

[SEAL] FRED M. VINSON,
Secretary of the Treasury.

[F. R. Doc. 45-21082; Filed, Nov. 20, 1945; 9:52 a .m.]

TITLE 32—NATIONAL DEFENSE

Chapter IX—Civilian Production Administration

AUTHORITY: Regulations in this chapter unless otherwise noted at the end of documents affected, issued under sec. 2 (a), 54 Stat. 676, as amended by 55 Stat. 236, 56 Stat. 177, 58 Stat. 827; E.O. 9024, 7 F.R. 329; E.O. 9040, 7 F.R. 527; E.O. 9125, 7 F.R. 2719; E.O. 9599, 10 F.R. 10155; E.O. 9638, 10 F.R. 12591; CPA Reg. 1, Nov. 5, 1945, 10 F.R. 13714.

PART 3290—TEXTILE, CLOTHING AND LEATHER

[General Conservation Order M-317, as Amended Nov. 20, 1945]

COTTON TEXTILE DISTRIBUTION

The fulfillment of requirements for the defense of the United States has created a shortage in the supply of cotton textiles and materials for making cotton textiles for defense, for private account and for export; and the following order is deemed necessary and appropriate in the public interest and to promote the national defense:

§ 3290.115 *General Conservation Order M-317*—(a) *Definitions.* In this order (which term includes orders supplementary to this order):

(1) "Cotton textiles" means the following products, containing 50% or more by weight of cotton or cotton waste, or a combination of the two.

(i) Woven and braided fabrics, whether gray, original mill or regular finish, bleached, dyed or printed and the following cotton products: bedsheets, pillow cases, blankets, towels, diapers, face cloths, table "linens" and fish netting and

(ii) Yarns, whether gray, bleached, colored mercerized, glazed, polished, single, plied, cabled or braided, including thread, twines and cordage (e. g. tying, sail, seine, etc., twine, rope, sash cord, etc.) and including any of the foregoing which may be spun on roving, ring, mule or converted twister spindles.

"Cotton textiles" does not include:

Cotton duck.

Blankets or blanketing containing 25 percent or more by weight of wool;

Fabrics (other than blankets or blanketing) or yarns containing wool produced on the woolen or worsted system.

(2) "Producer" means any manufacturer who makes cotton textiles in the United States.

(b) *How ratings for cotton textiles are to be applied or extended.* Preference ratings shall be applied and extended as provided in Priorities Regulation 3. The standard certification described in Priorities Regulation 7 may be used in applying or extending the rating but the provisions of this paragraph must also be complied with.

(1) *Cotton textiles for export.* (i) Each person who places a rated order for cotton textiles (for clothing manufactured from cotton textiles) for export, must place upon the purchase order a certificate in substantially the following form:

These cotton textiles will be exported, or will replace in inventory to the extent allowed under Priorities Regulation 3, cotton textiles which have been exported within 90 days.

In addition, for exports to Canada, the Canadian Cotton Administrator's Serial Number and date, or the CPA or WPB Form and Case Number and date must be added; and for exports to other places, the United States Treasury Procurement Division Contract Number and date, the Export License Number and date, or the CPA or WPB Form and Case Number and date must be added. These provisions do not apply to orders for cotton textiles (or clothing made from cotton textiles) for direct or ultimate delivery to the United States Army, Navy, Maritime Commission, or War Shipping Administration.

(ii) Preference ratings assigned for the export of cotton textiles (other than for exports to Canada) which are not applied or extended to an order accepted by a producer or made the subject of a CPA or WPB scheduling direction within six months of the date the preference rating was assigned are revoked.

(iii) Any person who gets any cotton textiles (or clothing manufactured from cotton textiles) with a preference rating assigned for export must, if possible, use the material so obtained for the purpose for which the rating was assigned in preference to the filling of other or higher rated orders. This rule is an exception to the provisions of § 944.7 of Priorities Regulation 1 which require the filling of higher rated orders in preference to lower rated orders.

(2) *Cotton textiles for domestic use.* In all other cases a person applying or extending a rating for a cotton textile shall place upon the purchase order a certificate in substantially the following form:

This rating has been assigned on Form ------ No. ------ (insert the CPA or WPB Form Number and Serial Number).

These provisions do not apply to the United States Army, Navy, Maritime Commission or War Shipping Administration on their direct purchase orders.

(3) [Deleted Nov. 20, 1945]

(c) *Restrictions relating to yarn or fiber.* No person owning or controlling spinning machinery shall use any preference rating which was assigned, applied or extended for cotton textiles, in order to obtain any yarn from another producer except to the extent authorized by the Civilian Production Administration, upon his showing, on Form CPA or WPB-2842, that his own spinning is insufficient or unsuitable.

(d) *Advance orders.* No person is required to accept any rated order for cotton textiles calling for delivery more than 90 days after the receipt of the order, except from the United States Army, Navy, Maritime Commission or War Shipping Administration.

(e) *Exports.* (1) No person may purchase for delivery for export or deliver for export any cotton textiles not listed in paragraph (e) (2) below except (i) to fill a rated order or (ii) where the purchaser certifies in writing that the cotton textiles will be exported and also furnishes for exports to Canada the Canadian Cotton Administrator's Serial Number, and for exports to other places the Export License Number or the U. S. Treasury Procurement Division Contract Number.

(2) Paragraph (e) (1) does not apply to the purchase or delivery of (i) cotton textiles which may be exported on general license under the regulations of the Office of International Trade Operations of the Department of Commerce, or (ii) woven or braided fabrics 12 inches or less wide, remnants (pieces shorter than 10 yards), or rags (pieces shorter than 2 yards normally sold by the pound).

(f) *Allocation.* The Civilian Production Administration may assign preference rating for or allocate and direct deliveries of cotton textiles pursuant to application on Form CPA or WPB-2842.

(g) *Applicability of regulations.* Except as otherwise provided herein, this order and all transactions affected thereby are subject to all applicable regulations of the Civilian Production Administration.

(h) *Appeals.* Any appeal from the provisions of this order or of Supplementary Order M-317A shall be made by filing a letter in triplicate, referring to the particular provisions appealed from, and stating fully the grounds of the appeal.

(i) *Reports.* All persons operating spindles for the production of cotton yarn of any kind shall file with the Civilian Production Administration, at the times specified in the reporting form, reports on Form CPA or WPB-658-E, giving the information required. This reporting requirement has been approved by the Bureau of the Budget under the Federal Reports Act of 1942.

(j) *Violations.* Any person who wilfully violates any provision of this order (including Supplementary Order M-317A), or who, in connection with this order, wilfully conceals a material fact or furnishes false information to any department or agency of the United States is guilty of a crime, and upon conviction may be punished by fine or imprisonment. In addition, any such person may be prohibited from making or obtaining further deliveries of, or from processing or using material under priorities control, and may be deprived of priorities assistance.

(k) *Communications.* All reports to be filed, appeals and other communications concerning this order should be addressed

to: Civilian Production Administration, Textile Division, Washington 25, D. C., Ref: M-317.

Issued this 20th day of November 1945.

CIVILIAN PRODUCTION ADMINISTRATION,
By J. JOSEPH, WHELAN,
Recording Secretary.

[F. R. Doc. 45-21099; Filed, Nov. 20, 1945; 11:38 a. m.]

PART 3290—TEXTILE, CLOTHING AND LEATHER

[Supplementary Order M-317A, as Amended Nov. 20, 1945]

COTTON FABRIC PREFERENCE RATINGS AND RESTRICTIONS

§ 3290.116 *Supplementary Order M-317A*—(a) *Contents of this order.* This Order M-317A is supplementary to Order M-317 and contains distribution schedules 1 and 2. These schedules apply only to woven cotton fabrics of more than 12" in width, but do not apply to duck. Restrictions on the production of cotton fabrics appear in Order L-99.

(b) [Deleted Nov. 20, 1945.]

(c) *Effect of change in distribution schedules on third quarter set-asides.* Cotton fabrics produced in the third quarter of 1945 but not delivered by the producer before October 1, 1945, must be delivered in accordance with the provisions of the Distribution Schedules of Order M-317A as amended September 5, 1945.

Issued this 20th day of November 1945.

CIVILIAN PRODUCTION ADMINISTRATION,
By J. JOSEPH WHELAN,
Recording Secretary.

DISTRIBUTION SCHEDULES 1 AND 2

The obligations in Column III of Distribution Schedules 1 and 2 are to be calculated quarterly from the first day of each quarter, beginning October 1, 1945.

(a) Column I indicates the corresponding item numbers of the various cotton fabrics in these schedules as each appears on Form CPA or WPB-658-C (9/7/45) for Fine Cotton Goods and Form CPA or WPB-658-B (9/7/45) for Carded Gray Goods, Colored Yarn and Napped Fabrics and Specialties.

(b) Column II shows the cotton fabrics covered by these schedules.

(c) Column III shows the percentage of the producer's current calendar quarterly production which must be delivered by him to fill export orders. Deliveries of cotton fabrics on orders of garment manufacturers for incorporation into clothing for delivery on export orders may be credited to the Column III obligation. Except for clothing in the above case, only exports of cotton fabrics in piece goods form may be credited to this obligation. For example, delivery of cotton fabrics to a coater to fill an export order for coated fabrics may not be credited to the Column III obligation.

(d) (1) Only deliveries on purchase orders placed in accordance with paragraph (b) (1) of Order M-317 may be credited toward the obligations of Column III. When these obligations are fulfilled, the producer is not required to accept any additional export orders, regardless of the provisions of Priorities Regulation 1.

(2) Export by or for the United States Army, Navy, Maritime Commission, War Shipping Administration (including U. S. Army and Marine Corps Post Exchanges, U. S. Navy and Coast Guard Ships' Service Departments, and War Shipping Administration Training Organizations Ships' Service Activities), and the American Red Cross may not be credited toward these obligations.

(3) However, if he receives and accepts an export order for these goods, the delivery shall be credited toward his export obligation relating to narrow goods within the same reference number.

(e) (1) Column IV contains special provisions concerning the use and delivery of particular fabrics.

(2) Unless otherwise specified, the provisions of Column IV apply only to producers as defined in Order M-317. Where a provision in Column IV requires a purchaser to furnish a certificate, no person giving such a certificate may use or deliver the cotton fabrics he buys contrary to his certificate.

DISTRIBUTION SCHEDULE 1—FINE COTTON GOODS

NOTE: Distribution Schedule 1 amended Nov. 20, 1945.

Ref. No.	Column I	Column II	Column III	Column IV
1	1 through 9	Airplane and balloon fabrics	3	
2	10, 11, 12	Broadcloths (combed)	10	4% of total quarterly production may be delivered only to fill orders to Canada. This is included in the percentage obligation in Column III.
3	13	Dimities	10	
4	14	Ducks (combed)	0	
5	15	Escape boat cloth	0	
6	16, 17	Fancy handkerchief fabrics	0	
7	19 through 27	Lawns (combed and carded)	8	
8	28 through 32	Marquisettes, combed and carded	10	
9	33 and 34	Flat utility fabrics	0	
10	35	Oxfords	10	
11	36	Piques	5	
12	37	Pongees	5	
13	38, 39, 40	Poplins (combed)	10	4% of total quarterly production may be delivered only to fill orders to Canada. This is included in the percentage obligation in Column III.
14	41, 42	Sateens (combed and part combed)	8	
15	43	Sateens, carded (average yarn finer than 35's) narrow (under 42").	20	
16	44	Sateens carded wide (42" and wider)	0	
17	45	Sheetings (combed) including bed sheetings.	0	
18	46	Shirtings, jacquard, gray-dobby and colored.	18	
19	54	Albert twills	5	
20	55	Gabardines (combed)	10	
21	51, 52, 53, 56	All other combed twills (except those specified in reference No. 28).	5	
22	57	Twills, carded (average yarns finer than 35's).	10	
23	58	Tracing cloth	0	
24	59	Typewriter ribbon cloth	0	
25	60	Voiles	12	
26	61, 62 and 161 on Form CPA or WPB 658-B.	Combed and carded cotton-rayon fabrics, chiefly cotton.	10	
27	63	All other combed, part combed and fine carded fabrics (average carded yarn finer than 35's).	8	
28	47	Army 6 oz. shirting twill, U. S. A. 6-311.	0	
	48	Army 8.2 oz. uniform twill, U. S. A. 201B.	0	
	56	Army 5 oz. shirting twill PQD 506	0	

DISTRIBUTION SCHEDULE 2—CARDED GRAY GOODS, COLORED YARNS & NAPPED FABRICS AND SPECIALTIES

NOTE: Distribution Schedule 2 amended Nov. 20, 1945.

Ref. No.	Column I	Column II	Column III	Column IV
29	1 through 8	Osnaburgs	3	2% of total quarterly production may be delivered only to fill orders for Canada. This is included in the percentage obligation in Column III. 66⅔% of total quarterly production may be delivered only to persons who certify in writing that the fabric will be used to make textile bags as defined in Order M-221, or to persons who certify that the fabrics will be delivered only to persons who give this same certificate.
30	9	Leno bag fabrics	0	
31	10	Other special bag fabrics	0	
32	11	Bale coverings	0	
33	12, 13	Soft filled sheetings	10	

DISTRIBUTION SCHEDULE 2—CARDED GRAY GOODS, COLORED YARNS & NAPPED FABRICS AND SPECIALTIES—con.

Ref. No.	Column I	Column II	Column III	Column IV
34	14 through 17, 19.	Class A sheetings under 42"	9	5% of total quarterly production may be delivered only to fill orders for Canada. This is included in the percentage obligation in Column III. 66⅔% of total quarterly production may be delivered only to persons who certify in writing that the fabric will be used to make textile bags as defined in Order M-221, or to persons who certify that the fabrics will be delivered only to persons who give this same certificate.
35	18, 20	Class A sheetings 42" and wider	0	
36	24	Class B sheetings 40" 44 x 40 4.25 yd	40	3% of total quarterly production may be delivered only to fill orders for Canada. This is included in the percentage obligation in Column III. 30% of total quarterly production may be delivered only to persons who certify in writing that the fabric will be used to make textile bags as defined in Order M-221, or to persons who certify that the fabrics will be delivered only to persons who give this same certificate.
37	21 through 23, 25, 26, 28.	All other Class B sheetings under 42"	13	4% of total quarterly production may be delivered only to fill orders for Canada. This is included in the percentage obligation in Column III. 66⅔% of total quarterly production may be delivered only to persons who certify in writing that the fabric will be used to make textile bags as defined in Order M-221, or to persons who certify that the fabrics will be delivered only to persons who give this same certificate.
38	27, 29	Class B sheetings 42" and wider	25	
39	30 through 39, 41, 43.	Class C sheetings, bandoleer and Navy mattress cover fabrics under 42".	21	2% of total quarterly production may be delivered only to fill orders for Canada. This is included in the percentage obligation in Column III.
40	40, 42	Class C sheetings 42" and wider	10	
41	44 through 49	Bed sheetings, Army raincoat sheetings, bandoleer and Navy mattress cover fabrics 42" and wider.	14	2% of total quarterly production may be delivered only to fill orders for Canada. This is included in the percentage obligation in Column III.
42	50	Pillow and industrial tubings	0	
43	51	Carded poplins (sheeting yarns)	10	
44	52 through 74	All twills, drills, jeans, sateens and gabardines.	14	1% of total quarterly production may be delivered only to fill orders for Canada. This is included in the percentage obligation in Column III.
45	75	Birdseye diaper cloth	3	
46	76	Window shade cloth	0	
47	77, 78, 79, 80, 81, 82.	Plain print cloth 39" 80 x 80 4.00 yd. and pro rata widths 39" 68 x 72 4.75 yd. and pro rata widths 39" 68 x 64 4.85 yd. and pro rata widths 38½" 64 x 60 5.35 yd. and pro rata widths 38½" 64 x 56 5.50 yd. and pro rata widths 38½" 60 x 48 6.25 yd. and pro rata widths	13	4% of total quarterly production may be delivered only to fill orders for Canada. This is included in the percentage obligation in Column III.
48	83, 84, 85	All other plain print cloths of more than 100 threads per sq. in.	17	1% of total quarterly production may be delivered only to fill orders for Canada. This is included in the percentage obligation in Column III.
49	86	Pajama checks	5	
50	87	Gauze diaper cloth	5	
51	88	All other fancy print cloth	22	
52	89	38½" 44 x 36 8.60 yd. bandage cloth and pro rata widths	10	
53	90	All other bandage cloths	12	
54	92	Tobacco and cheesecloth, all widths, 17 to 18 sley, 12 to 14 pick.	7	
55	91, 93	All other tobacco and cheesecloth constructions.	15	
56	94 through 97	Carded broadcloths	15	4% of total quarterly production may be delivered only to fill orders for Canada. This is included in the percentage obligation in Column III.
57	98	Carded poplins	14	
58	99	Three leaf twills print cloth yarns	12	
59	100 through 108.	Denim, pinstripes, pinchecks, hickory stripes or express stripes, 3.00 yd. and heavier, basis 28" width. All other denims, pinstripes, pinchecks, hickory stripes and express stripes.	9	
60	109 through 113.	Suiting coverts, cottonades, whipcords and bedcord cords	25	
61	114, 115, 116	Ginghams, checks, plaids and seersuckers.	27	
62	117 through 120.	Colored yarn suitings—all cotton, cotton, and rayon, checks and plaids, all other.	32	
63	121 through 125.	36" 3.90 yd. shirting covert. 36" 3.90 yd. chambray, all other shirting coverts, chambrays and colored yarn shirtings.	22	
64	126	Bed tickings	21	
65	127	Turkish or terry woven toweling	10	
66	128	Huck, damask and jacquard woven toweling.	4	
67	129	Dish toweling, twill and other plain woven toweling.	8	
68	130	Leno dishcloths	0	
69	131	Outing flannel	15	
70	132, 133	Workshirt flannels	27	
71	134	Canton flannels	3	
72	135	Gun patch flannels	0	
73	136	Interlining flannels	7	
74	137	Moleskins and suedes	18	11% of total quarterly production may be delivered only to fill orders for Canada. This is included in the percentage obligation in Column III.
75	138	All other napped fabrics except blankets.	15	
76	139	Crib blankets	6	1% of total quarterly production may be delivered only to fill orders for Canada. This is included in the percentage obligation in Column III.
77	140 through 142.	Blankets, other than crib, containing less than 25% by weight of wool.	25	3% of total quarterly production may be delivered only to fill orders for Canada. This is included in the percentage obligation in Column III.
78	145, 146	Bedspread fabrics, jacquard and other.	5	
79	147, 148	Curtain fabrics, other than marquisettes.	0	
80	149	Flag bunting	0	
81	150 through 152.	Drapery and upholstery fabrics	5	
82	153, 154	Luggage and automobile seat cover cloths.	0	
83	155, 156, 157	Corduroys	8	
84	158, 159	Velveteens and cords	14	
85	160	Table damask, covers, cloths and napkins.	5	
86	161	Carded cotton-rayon fabric chiefly cotton.	10	
87	162	Industrial wiping fabrics and cloths	0	
88	163	All other carded cotton woven fabrics	9	

[F. R. Doc. 45-21100; Filed, Nov. 20, 1945; 11:38 a. m.]

Chapter XI—Office of Price Administration

PART 1364—FRESH, CURED AND CANNED MEAT AND FISH PRODUCTS

[MPR 579,[1] Incl. Amdts. 1–14]

CERTAIN SPECIES OF FRESH AND FROZEN FISH AND SEAFOOD

This compilation of Maximum Price Regulation 579 includes Amendment 14, effective November 26, 1945. The text added or amended by Amendment 14 is underscored. Changes in tables are indicated by notes.

In the judgment of the Price Administrator, it is necessary in order to effectuate the purposes of the Emergency Price Control Act of 1942, as amended, and Executive Orders Nos. 9250 and 9328, that maximum prices be established for certain species of fresh and frozen fish and seafood.

So far as practicable, the Price Administrator has consulted and advised with representative members of the industry which will be affected by the regulation. In the judgment of the Price Administrator, the prices established are generally fair and equitable and will effectuate the purposes of the act.

A statement of the considerations involved in the issuance of the regulation has been issued herewith and filed with the Division of the Federal Register.[2]

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10.2 List of species covered by regulation.

AUTHORITY: § 1364.358 issued under 56 Stat. 423, 765; 57 Stat. 566 Pub. Law 383, 78th Cong.; Pub. Law 108, 79th Cong.; E.O. 9250, 7 F.R. 7871; E.O. 9328, 8 F.R. 4681; E.O. 9599, 10 F.R. 10155.

ARTICLE I—GENERAL PROVISIONS

SECTION 1.1 *What this regulation does*—(a) *General.* This regulation fixes maximum prices for sales of certain species of fresh fish and seafood by producers and wholesalers, of certain species of frozen fish and seafood by processors and wholesalers, and of those species of fresh and frozen fish and seafood by certain other persons, not including retailers. It sets prices for various types of sales by such persons according to species, size, and style of dressing.

(b) *Sales by retailers.* For the purposes of this regulation, a "retailer" is a person who buys fresh or frozen fish or seafood and resells 80 percent or more of it to ultimate consumers. ("Ultimate consumers" do not include commercial, industrial or institutional users). This regulation does not apply to any sale by a retailer. All of his sales are covered by Revised Maximum Price Regulation No. 507.[3]

(c) *Sales by combination retailer-wholesalers.* A combination retailer-wholesaler is a person who buys fresh or frozen fish or seafood and resells more than 50 percent but less than 80 percent of it to ultimate consumers. He is a "wholesaler" or "other distributor" under this regulation with respect to his sales to persons other than ultimate consumers and with respect to all his purchases (see sections 2.4 and 3.4), since he resells more than 20 percent of his fish and seafood to persons other than ultimate consumers. (He is also a retailer under Revised Maximum Price Regulation No. 507 with respect to his sales to ultimate consumers, since he sells more than 50 percent of his fish and seafood to ultimate consumers.) This regulation does not apply to his sales to ultimate consumers, which are covered by Revised Maximum Price Regulation No. 507. However, this regulation fixes maximum prices for his sales to all persons other than ultimate consumers (for instance, to purveyors of meals or to other retailers).

(d) *Sales by persons other than retailers or combination retailer-wholesalers.* This regulation sets maximum prices for all sales at retail or otherwise, by any person who is a producer of fresh fish or seafood, a processor of frozen fish or seafood, or who buys fresh or frozen fish or seafood and resells 50 percent or less of it to ultimate consumers.

(e) *Sales to government agencies.* The maximum price for sales to government agencies shall be determined by reference to the class of sale and the type of service involved in the particular sale. However, the table price for sales of frozen fish to government agencies by processors is the price for processors' sales to wholesalers and chain store warehouses listed in Column I of the applicable table for frozen fish and seafood.

[Above paragraph amended by Am. 8, 10 F.R. 9432, effective 8–15–45 (effective date amended by Am. 9, 10 F.R. 9880, effective 8–7–45)]

(1) Notwithstanding any other provision of this regulation the prices set forth below are the maximum prices for sales of the items of frozen fish listed below to the Quartermaster Corps of the United States Army: *Provided,* That such items are frozen after September 30, 1945 and delivered to such governmental agency prior to April 1, 1946 in the case of East Coast species and are frozen after August 31, 1945 and sold and delivered to such governmental agency prior to May 1, 1946 in the case of West Coast species. These prices are the maximum prices f. o. b.

[1] 10 F.R. 2300, 4035.

[2] Statements of considerations are also issued simultaneously with amendments. Copies may be obtained from the Office of Price Administration.

[3] 9 F.R. 14601; 10 F.R. 2299, 3694, 3979, 7340, 10311, 11514, 12208, 12527.

shipping point for the listed items of frozen fish processed and packed in accordance with the specifications of the buying governmental agency. No transportation, container or other charge may be added to these maximum prices:

East Coast species:	*Price per pound*
Codfish, Atlantic, fillets, skinless	$0.29
Codfish, Atlantic, fillets, skin on	.26
Blackback, fillets	.31
Dab, sea and yellowtail, fillets	.31
Haddock, fillets	.28½
West Coast species:	
Lingcod, fillets	.30¾
Lingcod, steaks	.19½
Flounder (All Pacific coast species) fillets	.30
Sole (All Pacific coast species), fillets	.30

[Subparagraph (1) added by Am. 10, 10 F.R. 11579, effective 9–12–45]

SEC. 1.2 *Maximum prices for sales by brokers and by distributors other than producers, processors, wholesalers and retailers*—(a) *Brokers.* The maximum prices established by this regulation include all brokerages, commissions or other customary selling fees, transportation and other expenses incurred in making sales for which no additional charge may be made. In accordance with trade custom every broker or other agent is considered the agent of the seller and not of the buyer. The amount paid by the buyer to the seller plus any amount paid by the buyer to a broker or other agent shall not exceed the seller's maximum price plus any applicable allowance provided by this regulation for transportation actually paid by the broker or other agent.

(b) *Distributors not specifically provided for in this regulation.* The maximum price for sales of fresh fish or seafood covered by this regulation by any person, other than a producer, wholesaler or retailer or of frozen fish or seafood covered by this regulation by a person, other than a processor, wholesaler or retailer, is his supplier's maximum price plus any applicable allowance provided by this regulation for transportation actually paid by him.

SEC. 1.3 *Prohibition against selling or buying above maximum prices.* Regardless of any contract or obligation, no person shall make any sale, or any purchase in the course of trade or business, of fresh or frozen fish or seafood, for which sale or purchase a maximum price is established by this regulation, at a price higher than that maximum price; and no person shall agree, offer, solicit or attempt to do any of the foregoing. However, prices lower than maximum prices may be charged and paid.

SEC. 1.4 *Where this regulation applies.* The provisions of this regulation shall apply to the forty-eight States of the United States and the District of Columbia. Notwithstanding the provisions of Revised Maximum Price Regulation No. 194[4] they shall apply to the Territory of Alaska.

[Sec. 1.4 amended by Am. 8, effective 8–15–45 (effective date amended by Am. 9, 10 F.R. 9880 effective 8–7–45)]

[4] 10 F.R. 2176, 2479, 3054

SEC. 1.5 *Relation to other regulations*—(a) *Fresh fish and seafood.* The following even numbered articles cover certain species of fresh fish and seafood which are listed in the fresh fish tables (designated by an "A" after the Roman numeral) in section 10.1 of Article X. Except as provided in paragraph (d), the provisions of this regulation supersede Maximum Price Regulation No. 418,[5] as amended (Fresh Fish and Seafood), with respect to the species so listed. Maximum Price Regulation No. 418, as amended, will continue in full force and effect with respect to species not listed in the fresh fish tables in section 10.1 of Article X of this regulation.

(b) *Frozen fish and seafood.* The following odd numbered articles of this regulation cover certain species of frozen fish and seafood of certain styles of processing which are listed in the frozen fish tables (designated by a "B" after the Roman numeral) of section 10.1 of Article X. Except as provided in paragraph (d) the provisions of this regulation supersede Maximum Price Regulation No. 364,[6] as amended, (Frozen Fish and Seafood) with respect to the species so listed. Maximum Price Regulation No. 364, as amended, will continue in full force and effect with respect to species and styles of dressing listed in section 13 of that regulation which are not listed in the frozen fish tables in section 10.1 of this regulation. The General Maximum Price Regulation[7] applies to sales of frozen fish and seafood of any species or style of dressing not listed in the frozen fish tables of section 10.1 of this regulation or section 13 of Maximum Price Regulation No. 364.

[Paragraphs (a) and (b) amended by Am. 8, 10 F.R. 9432, effective 8–15–45 (effective date amended by Am. 9, 10 F.R. 9880, effective 8–7–45]

(c) *Exports.* The maximum price at which a person may export fresh or frozen fish or seafood shall be determined in accordance with the provisions of the Second Revised Maximum Export Price Regulation[8] issued by the Office of Price Administration.

(d) *Sales to which this regulation does not apply.* The provisions of this regulation shall not be applicable to sales or deliveries of fresh or frozen fish or seafood to a purchaser if, prior to the effective date of this regulation, such fresh or frozen fish or seafood has been received by a carrier, other than a carrier owned or controlled by the seller, for shipment to such purchaser. Maximum Price Regulation No. 418 remains in full force and effect with respect to such sales of fresh fish or seafood, and Maximum Price Regulation No. 364 remains in full force and effect with respect to such sales of frozen fish or seafood.

[5] 10 F.R. 13495.

[6] 9 F.R. 11065, 11273, 12129, 12130, 12413, 12696, 12590, 14063; 10 F.R. 2025, 2299, 2684, 4348, 5648, 9431, 9879, 10395.

[7] 9 F.R. 1385, 5169, 6106, 8150, 10193, 11274.

[8] 8 F.R. 4132, 5987, 7662, 9998, 15193; 9 F.R. 1036, 5435, 5923, 7201, 9834, 11273, 12919, 14346; 10 F.R. 863, 923, 2432.

SEC. 1.6 *Invoices, records and reports*—(a) *Invoices, to be furnished by sellers.* Every person making a sale of fish or seafood subject to this regulation shall furnish to the purchaser at the time of delivery a written statement containing (1) the date of delivery; (2) the name and address of the buyer and seller; (3) the species sold; (4) a statement that the fish or seafood sold is fresh or is frozen; (5) the quantity, size, grade and styles of dressing of the fish or seafood sold (where price differences are based on these factors); (6) the types and sizes of containers used; (7) the price charged, including separate statements of container allowances and transportation allowances. If the statement fails to identify the size, grade and style of dressing of any fish or seafood sold, the seller's maximum price for that fish or seafood is his maximum price for the lowest-priced size, grade or style of dressing of that fish or seafood. If the statement fails to identify the fish or seafood sold as fresh or frozen the seller's maximum price for that fish or seafood is the lower of the prices listed for that fish or seafood in the applicable column of the fresh fish tables of section 10.1 and the frozen fish tables of section 10.1.

However, this paragraph does not apply to sales of fresh fish or seafood by producers (who are not also wholesalers). Such producers shall furnish to purchasers on such sales invoices, statements, or other records of the kind customarily furnished by them, if any.

[Paragraph (a) amended by Am. 8, 10 F.R. 9432, effective 8–15–45 (effective date amended by Am. 9, 10 F.R. 9880, effective 8–7–45)]

(b) *Records and reports.* Every seller furnishing, and every purchaser, in the course of trade or business, receiving, a statement pursuant to paragraph (a), shall keep available for inspection by the Office of Price Administration for so long as the Emergency Price Control Act of 1942, as amended, remains in effect, either a copy of such statement or a record of all the information contained in it. In addition, each purchaser of fresh fish from a producer shall keep an accurate record of each such purchase, containing all the information specified in paragraph (a) for statements. Further, each person making a sale, or a purchase in the course of trade or business, subject to this regulation, shall keep all records of the kinds which he has customarily kept relating to such sale or purchase and to his inventories of fresh or frozen fish or seafood.

NOTE: The removal of any species from MPR 418 or MPR 364 does not affect the responsibility of a person to preserve all records which those regulations require to be preserved.

[Above note added by Am. 14, effective 11–26–45]

[Paragraph (b) amended by Am. 4, 10 F.R. 4348, effective 4–28–45]

(c) *Authorization to regional offices to modify invoice provisions.* Any Regional Administrator of the Office of Price Administration may, by order, alter, modify or suspend any of the requirements of paragraph (a) of this section, if in his judgment such action is necessary in order that fish may be marketed efficiently within his jurisdiction and is consistent with the effective enforcement of this regulation. The Regional Administrator may alter, modify or suspend such requirements with reference to such types of sales and such localities within his jurisdiction as he may designate, but only when the buyer and seller are both within his jurisdiction. He may make such provisions for posting the items required in paragraph (a) as in his judgment are necessary to prevent the circumvention or evasion of this regulation. The Regional Administrator may issue such order on his own initiative or upon application for adjustment of the requirements in paragraph (a) by any person subject to them. Revised Procedural Regulation No. 1[9] shall apply to such application for adjustment.

SEC. 1.7 *Evasion.* (a) The price limitations set forth in this regulation shall not be evaded, either by direct or indirect methods, in connection with an offer, solicitation, agreement, sale, delivery, purchase or receipt of, or relating to, fresh or frozen fish or seafood separately or in combination with any other commodity or service, or by way of any commission, service, transportation, container, packaging or other charge, or discount premium or other privilege, or by tying agreement or other trade understanding, or by changing the style of dressing of fresh or frozen fish or seafood, or otherwise.

(b) Specifically, but not exclusively, the following practices are prohibited:

(1) Falsely or incorrectly invoicing fresh or frozen fish or seafood.

(2) Offering, selling or delivering fresh or frozen fish or seafood on condition that the purchaser is required to purchase some other commodity or service.

(3) A producer offering to sell, selling or delivering, any person offering to purchase, purchasing or receiving from a producer, at a price higher than the current market price or 5 cents per pound, whichever is lower, any fresh fish or seafood not priced by this regulation or by Maximum Price Regulation No. 418, in combination with a sale or purchase of fresh fish or seafood the price of which is controlled by this regulation, if the fresh fish or seafood not priced by this regulation or by Maximum Price Regulation No. 418 constitutes 75 percent or less of the total weight of the fresh fish or seafood sold or purchased.

(4) A wholesaler or other distributor (other than a retailer) offering to sell, selling or delivering, or any person offering to purchase, purchasing or receiving from a wholesaler or other distributor, at a price higher than the current market price, any fresh fish or seafood not priced by this regulation or by Maximum Price Regulation No. 418, in combination with a sale or purchase of fresh or frozen fish or seafood the price of which is controlled by this regulation.

(5) Charging, paying, billing or receiving any consideration for, or in connection with, any service for which a specific allowance has not been provided by this regulation, or by any regional order (under the authority delegated in Revised Maximum Price Regulation No. 165[10]) which applies specifically to services performed in connection with the handling of fresh or frozen fish or seafood.

SEC. 1.8 *Licensing.* The provisions of Licensing Order No. 1,[11] licensing persons who make sales under price control, are applicable to sellers subject to this regulation or schedule. A seller's license may be suspended for violation of the license or of one or more applicable price schedules or regulations. A person whose license is suspended may not, during the period of the suspension, make any sale for which his license has been suspended.

SEC. 1.9 *Enforcement.* On and after the effective date of this regulation, any person violating any provision of this regulation shall be subject to the criminal penalties, civil enforcement actions, suits for treble damages and proceedings for revocation of licenses provided by the Emergency Price Control Act of 1942, as amended.

SEC. 1.10 *Petitions for amendment.* Petitions for amendment of this regulation shall be filed in accordance with the provisions of Revised Procedural Regulation No. 1 issued by the Office of Price Administration. Applications for amendment of the provisions for transportation allowances or container allowances shall be filed in the regional office for the region in which the petitioner resides.

SEC. 1.11 *Adjustable pricing.* Any person may agree to sell at a price which can be increased up to the maximum price in effect at the time of delivery; but no person may, unless authorized by the Office of Price Administration, deliver or agree to deliver at prices to be adjusted upward in accordance with action taken by the Office of Price Administration after delivery. Such authorization may be given when a request for a change in the applicable maximum price is pending, but only if the authorization is necessary to promote distribution or production and if it will not interfere with the purposes of the Emergency Price Control Act of 1942, as amended. The authorization may be given by the Administrator or by any official of the Office of Price Administration to whom the authority to grant such authorization has been delegated. The authorization will be given by order.

SEC. 1.12 *General definitions.* When used in this maximum price regulation the term "artificially frozen" means fish which are frozen by a method other than exposure to the elements.

"Butterfly fillet" means two single fillets which are held together as a single unit by leaving intact the belly wall of the fish.

"Carload lot," with respect to frozen fish or seafood, means a shipment of 24,000 pounds or more of frozen fish or seafood.

"Cellophane wrapped" means fish the immediate wrapper of which is cellophane and each cellophane package of which weighs not more than 2½ lbs.

[Above definition added by Am. 8, 10 F.R. 9432, effective 8-15-45 (effective date amended by Am. 9, 10 F.R. 9880, effective 8-7-45)]

"Center cut" or "Cut-center" means a cross section cut (not a head cut or tail cut) from the middle portion of and not exceeding ⅓ of the length of the dressed fish.

"Chain store warehouse" means the receiving point for a unit of four or more stores under one ownership.

"Chunk" or "cut" means a cross section cut from the dressed fish not exceeding in thickness ⅓ of the length.

"Container" means a rigid box, barrel, carton or crate, of wood, cardboard, metal or other substance used for packing fish. An immediate container as applied to fresh fillets and steaks means a covered container and does not include baskets, crates or any other partially open container.

"Cry-o-vac wrapped" means packed in a bag of cry-o-vac composition or like material.

"Drawn fish" means fish from which the viscera or entrails have been removed, with the head left on.

"Dressed fish" means fish from which the head and viscera or entrails have been removed or any portion of such fish which is not otherwise priced in this regulation.

"Established place of business" means the plant where a person handles and distributes fresh or frozen fish or seafood (with reference to frozen fish and seafood, a cold storage warehouse, other than the original freezer, in which the seller rents space and stores his frozen fish or seafood is considered his established place of business).

"Fillet" means the heavily meated section or strip of fish cut from along the backbone and outside the rib bones, extending from the nape and gills to the tail, or portions thereof.

"Frozen fish" means fish that have been naturally or artificially frozen regardless of the condition in which they are ultimately sold.

"Frozen seafood" means shellfish that have been naturally or artificially frozen regardless of the condition in which they are ultimately sold.

"Government agency" means the United States Government or a Department, Agency, Commission, Corporation, or other such instrumentality of the United States Government.

"Grade" means any qualification of the name of the fish or seafood listed in Table IA of section 10.1 and Table IB of section 10.1.

"Gutted" means fish from which the viscera or entrails have been removed.

"Head cut" or "Cut-head" means a cross section cut from the head end of the dressed fish.

[9] 9 F.R. 10476, 13715; 10 F.R. 11295.

[10] 10 F.R. 2097, 2250, 3925, 6231, 7851.

[11] 8 F.R. 13240.

"Headed" means fish from which the head has been removed.

"Individually frozen" means fish which are singly frozen.

"Layer pack" means fish which have been placed in a container in layers that are divided by sheets of paper. In the case of frozen fish the term means fish so placed before they are frozen.

"Naturally frozen" means fish which are frozen by exposure to the elements.

"New York City" means the five boroughs of New York City and an area along the New Jersey shore of the Hudson River opposite Manhattan, and includes the area supervised by the Port of New York Authority.

"Pan frozen" means fish which are frozen in pans, trays or similar receptacles in a solid cake or block.

"Parchment wrapped" means fish or fillets individually wrapped in parchment paper.

"Price per pound" means the price for 16 net ounces of fresh or frozen fish or seafood.

"Round fish or seafood" means fish and seafood as it comes from the water.

"Saddles" means the pectoral fins and the connecting cartilaginous strip of a rajafish.

"Scaled" means fish from which the scales have been removed but the skin left intact.

"Skinned" means fish from which the skin is removed.

"Steak" or "Slice" means a cross section cut from the dressed fish after the tail, fins and collar bone (nape bone) have been removed which does not exceed in thickness its largest diameter or 4 inches, whichever is smaller.

"Steak, individual" as applied to swordfish means a steak less than 1 inch in thickness and containing no more than one-fourth of the cross-section.

[Above definition added by Am. 4, 10 F.R. 4348, effective 4-28-45]

"Tail cut" or "Cut-tail" means a cross section cut from the tail end of the dressed fish.

"Troll caught" means fish caught by hook and line in ocean waters.

"Wings" means the pectoral fins of a rajafish.

Various other terms such as "producer", "wholesaler", "retailer", etc. are defined in the text of the regulation. Unless the context otherwise requires, the definitions set forth in section 302 of the Emergency Price Control Act of 1942 shall apply to other terms used herein which are not defined in this section or outlined in the body of this regulation. Any reference to a table price or to a price listed in any column of any table shall mean the listed price as modified by any applicable footnotes unless the context otherwise requires.

[Above paragraph amended by Am. 8, 10 F.R. 9432, effective 8-15-45 (effective date amended by Am. 9, 10 F.R. 9880, effective 8-7-45)]

ARTICLE II—FRESH FISH AND SEAFOOD (NORTH ATLANTIC SPECIES)

SEC. 2.1 *General provisions* — (a) *Scope of this article.* This article sets maximum prices for sales by producers and wholesalers of certain species of fresh fish and seafood listed in Table IA of section 10.1. Table IA (North Atlantic species) lists only species which are primarily landed at North Atlantic ports. (All fresh fish and seafood of any species listed are included, even though they are occasionally landed elsewhere. Fresh fish and seafood primarily landed in other areas, such as halibut, are not included, even though they are occasionally landed at North Atlantic ports.)

(b) *Unlisted styles of dressing and sizes.* Where a species of fresh fish (not including seafood) listed in Table IA is sold in a style of dressing not listed in Table IA the table price for that style of dressing is the lowest price listed in Table IA for any style of dressing for that particular species. Where a fresh seafood (not including fish) listed in Table IA is sold in a style of dressing not listed in Table IA for that particular seafood, the table price for that style of dressing is the lowest price listed in Table IA (section 10.1) or Table A of Maximum Price Regulation No. 418 for any style of dressing for any seafood. For the purposes of this paragraph, "round" is a style of dressing. Where a species of fresh fish or seafood listed in Table IA is sold in a size not listed in Table IA, the table price for that size is the price listed for the lowest priced size of that species.

(c) *Fresh fish.* As used in this article, the words "fresh fish" mean all fresh fish and seafood of the species listed in Table IA of section 10.1, unless the context indicates otherwise.

SEC. 2.2 *Sales by producers*—(a) *What a producer is.* A "producer" is a fisherman or any other person who is allied with him in the catching or landing of fish, or who sells or delivers, at a port of entry or at any other place, fresh fish which he bought and received on a vessel owned or hired by him. A person who is a producer with respect to fresh fish of any species, is treated as a producer with respect to all the fresh fish of that species which he handles.

(b) *Maximum prices for producers' sales.* The maximum price for a sale of fresh fish, ex-vessel or otherwise, by a producer who is not also a wholesaler (see paragraph (d)), to any person other than an ultimate consumer, is the price listed in Column A of Table IA (section 10.1) for that species and month. However, if such producer ships his fish by common carrier, or by other means of transportation, not including local trucking, hauling or handling, and boxes or barrels his fish for such shipment, he may add one cent to the price listed in column A.

(c) *Regional adjustments of producers' prices.* Any regional office of the Office of Price Administration may by order modify the price established by column A of Table IA for any species and style of dressing whenever, and to the extent that, it determines such modification to be necessary to prevent the avoidance of the prices established by Table IA or to prevent disruption of the customary methods of landing and selling fish: *Provided,* That the prices as thus modified shall be in line with the prices established by Table IA for the particular species, making allowance for the difference in the method by which, or the place at which, the fish are removed from the vessel or delivered to the buyer. No modification may be issued which would require an increase in the prices established by any other table or by any other regulation. Such modification shall apply to sales at such areas or localities within the jurisdiction of the regional office as it may determine. No order or modification shall be issued until it shall have been submitted to and approved by the Office of Price Administration in Washington. If the price is modified for any species which is customarily landed in any other region, the order of modification shall not be submitted to Washington until it has been submitted to the regional office for such other region.

(d) *Sales by producers who are also wholesalers.* If a producer sells and distributes his fish from the stock of his established place of business, and also sold and distributed fish from the stock of his established place of business for the substantial portion of the year prior to July 13, 1943, he is a wholesaler with respect to such sales. Those sales are primary fish shipper sales, and are covered by section 2.5.

SEC. 2.3 *Sales to canners*—(a) *General rule.* The maximum price for a sale of fresh fish to a canner by any person is the price established by section 2.2 for a sale by a producer (other than a producer-wholesaler).

(b) *Sales of codfish and haddock.* The maximum price for a sale by any person of codfish (Schedule 2) or haddock (Schedule 7) landed in Boston, Mass. or any point south of Boston, Mass. to a canner of fish flakes as defined in Maximum Price Regulation No. 537, is the applicable price in Column A of Table IA (section 10.1) plus one cent: *Provided, however,* That the seller delivers such codfish or haddock to the premises of a cannery located in Gloucester, Mass. for the purpose of meeting the requirements for fish flakes of the Bureau of Supplies and Accounts of the United States Navy Department.

[Sec. 2.3 amended by Am. 5, 10 F.R. 4536, effective 4-25-45]

SEC. 2.4 *Maximum prices for wholesale sales*—(a) *What "wholesaler" and "wholesale sales" are.* A person, other than a producer, who buys fresh fish for resale and sells more than 20 percent of it to persons other than ultimate consumers, is a "wholesaler" with respect to all his purchases (including his purchases of fish which he sells at retail). A sale by such person is a "wholesale" sale, and the seller is a "wholesaler" with respect to such sale, if:

(1) Such fish is sold and distributed from the stock of such person's domestic established place of business; or

(2) The fish is sold and delivered to a retailer or a purveyor of meals, without advance order, from the stock of the seller's motor truck or wagon in which he delivers it to the retailer's individual store or to the place of business of the purveyor of meals, and the seller has no established place of business. (This type

of wholesale sale is called a wagon jobber sale, and the seller is called a wagon-jobber with respect to such sales.)

With the exception of the wagon jobber sale, however, if the fish is not sold and distributed from the domestic established place of business of such seller, the sale is not a "wholesale sale." That seller is a "distributor" with respect to that sale, which is covered by section 1.2 or in the case of an importing distributor by section 2.7a.

[Subparagraphs (1) and (2) corrected, 10 F. R. 4035, effective 4-18-45]

(b) *Maximum prices for wholesale sales.* The maximum price for a wholesale sale of fresh fish (other than a sale to an affiliated retail store by a retailer-owned cooperative wholesaler) is the table price provided by Article X for that sale (section 10.1), plus all applicable allowances (provided by section 2.9 through 2.12). If Article X does not specifically provide a table price for the sale, the maximum price is the lowest table price provided by Article X for any sale by that seller, plus all applicable allowances.

(c) *Maximum prices for sales of lots of more than 500 pounds.* (1) The maximum price for sales of fresh fish which is delivered or shipped to any place of business or other distribution point of the customer in lots totalling more than 500 pounds of any one species in any one day is the table price provided in the following subdivisions (i), (ii) and (iii) plus all applicable allowances:

(i) Sales to purveyors of meals by port wholesalers (other than primary fish shippers)—the price listed in Column B of Table IA (section 10.1) plus one cent.

(ii) Sales to purveyors of meals by wholesalers who bought the fish at prices based on Column E of Table IA—the price listed in Column E of Table IA (section 10.1) plus one cent.

(iii) All other sales—the applicable table price for sales to wholesalers.

(2) Where a customer takes delivery of more than 500 pounds of any one species of fresh fish on any one day at the seller's place of business or other distribution point, the maximum price for the sale of such fish is the applicable table price for sales to wholesalers plus all applicable allowances.

[Paragraph (c) amended by Am. 3, 10 F.R. 4036, effective 4-12-45; Am. 5, 10 F.R. 4536, effective 4-25-45; and Am. 8, 10 F.R. 9432, effective 8-15-45 (effective date of Am. 8 amended by Am. 9, 10 F.R. 9880, effective 8-7-45)]

(d) *Maximum prices for sales by retailer-owned cooperative wholesalers.* A retailer-owned cooperative wholesaler is a wholesaler who is either a non-profit organization or a corporation of which 51 percent or more of the stock is owned by its retail customers. The maximum price for a sale by such wholesaler to an affiliated retail store is the price computed pursuant to paragraph (b) less one cent. (The maximum price for a sale by such wholesaler to any person other than an affiliated retail store is the price computed pursuant to paragraph (b)).

(e) *Allowances generally.* No allowance provided by sections 2.9 through 2.12 of this article may be added by a seller to his table price for any sale unless he separately states that allowance on an invoice to his customer.

SEC. 2.5 *Primary fish shipper sales*—(a) *What a primary fish shipper sale is.* A primary fish shipper sale is a sale of fresh fish by a wholesaler who bought such fish from a producer, or from a distributor (other than a producer, wholesaler, or retailer) who in turn bought or received it from a producer. The term also includes a sale from his established place of business by a producer who is also a wholesaler (see section 2.2 (d)).

(b) *Table prices for primary fish shipper sales.* The table price for a primary fish shipper sale, other than an inland warehouse sale covered by paragraph (c), is as follows:

(1) To a wholesaler, chain store warehouse or retailer-owned cooperative wholesaler—the price listed in column B of Table IA (section 10.1).

(2) To a retailer or purveyor of meals—the price listed in column C of Table IA (section 10.1).

(c) *Inland warehouse sales.* Where a primary fish shipper ships fresh fish from his domestic established place of business at which he received such fish to his warehouse which is not within any of the States of Maine, New Hampshire, Massachusetts, Connecticut or Rhode Island, and at which he has two or more full-time employees stationed and engaged in making sales and performing services there exclusively for him, and he sells and distributes that fish from the stock of that warehouse, the table price for the sale is as follows:

(1) To a wholesaler, chain store warehouse or retailer-owned cooperative wholesaler—the price listed in column E of Table IA (section 10.1);

(2) To a retailer—the price listed in column F of Table IA (section 10.1);

(3) To a purveyor of meals:

(i) If the sale involves transportation to the buyer other than local trucking, hauling or handling, or if the seller is entitled to a delivery allowance for the sale under section 2.9—the price listed in column F of Table IA (section 10.1), plus one cent.

(ii) If the sale does not fall within subdivision (i)—the price listed in column F of Table IA (section 10.1).

SEC. 2.6 *Port sales*—(a) *What a port sale is.* A port sale is a wholesale sale, other than a primary fish shipper sale, of fresh fish which was imported into the United States or landed at a point in Maine, New Hampshire, Massachusetts, Connecticut or Rhode Island, which sale involves delivery at or from a place within any of those states and in the case of domestic fish from a place within 50 miles from the point at which the fish was landed. The term "port sale" also includes a wholesale sale, other than a primary fish shipper sale, which involves delivery at or from a place within a "port area" established for the species sold and the time of sale, by the Administrator, or by order pursuant to paragraph (b). The seller is called a "port wholesaler" with respect to a port sale.

(b) *Regional designation of port areas.* Any regional office of the Office of Price Administration, or any other office which is authorized by the appropriate regional office to do so, may by order designate as a port area for any species and period of time, any area within its jurisdiction in which a substantial volume of that species is landed or to which a substantial volume is shipped by producers.

(c) *Table prices for port sales.* The table price for a port sale of fresh fish is as follows:

(1) To a wholesaler, chain store warehouse or retailer-owned cooperative wholesaler—the price listed in column B of Table IA (section 10.1).

(2) To a retailer—the price listed in column C of Table IA (section 10.1).

(3) To a purveyor of meals—the price listed in column D of Table IA (section 10.1).

SEC. 2.7 *Wholesale sales other than primary fish shipper sales and port sales*—(a) *Table prices.* The table price for a wholesale sale of fresh fish other than a primary fish shipper sale or a port sale is as follows: (but see paragraphs (b) and (c)).

(1) To another wholesaler, a chain store warehouse or a retailer-owned cooperative wholesaler—the price listed in column E of table IA (section 10.1).

(2) To a retailer—the price listed in column F of Table IA (section 10.1).

(3) To a purveyor of meals:

(i) If the sale involves transportation to the buyer other than local trucking, hauling or handling, or if he is entitled to a delivery allowance for the sale under section 2.9—the price listed in column F of Table IA (section 10.1) plus one cent.

(ii) If the sale does not fall within subdivision (i)—the prices listed in column F of Table IA (section 10.1).

(b) *Certain sales to retailers and purveyors of meals at Column G prices.* Notwithstanding the provisions of paragraph (a), the table price for a sale of fresh fish by a wholesaler, other than a primary fish shipper or a port wholesaler, to a retailer or purveyor of meals, is the price listed in column G of Table IA (section 10.1), *Provided,* That such wholesaler bought such fish through a properly qualified inland warehouse sale or from the domestic established place of business of another wholesaler who is not a primary fish shipper, importer or port wholesaler, and, during the year preceding the issuance date of this regulation he purchased 80 percent or more of the fish of that species which he handled from such inland warehouse or domestic wholesalers other than primary fish shippers, importers and port wholesalers, and the sale is made to a purveyor of meals or to a retailer who is classified as a Group I or II retailer under Revised Maximum Price Regulation No. 507. However, a wholesaler, selling from an established place of business more than 75 air miles from the Fulton Fish Market, New York City and outside Long Island, may not sell fish transported to him from New York City at prices based on those listed in column G. A processing wholesaler who purchases fresh fish other than fillets which he processes into fillets may not sell such fillets pursuant to this paragraph (b),

if, during the year preceding the issuance date of this regulation, he processed from fish other than fillets more than 50 percent of the fillets he sold. No sales may be made pursuant to this paragraph (b) until the seller has filed with the District Office of the Office of Price Administration for the district in which he is located a signed statement containing (1) his name and address, (2) the species of fresh fish which he intends to sell pursuant to this paragraph, (3) the quantity of fresh fish of such species he purchased during the year preceding the issuance date of this regulation, (4) the names and addresses of the suppliers from whom he purchased that species and the amount purchased from each, and (5) the names and addresses of the customers to whom he intends to sell that species pursuant to this paragraph.

Where a sale is made, pursuant to this paragraph (b), to a purveyor of meals, which sale involves transportation to such purveyor other than local trucking, hauling or handling, or for which sale the seller is entitled to a delivery allowance under section 2.9, the table price for such sale is the price listed in column G of Table IA plus one cent.

(c) *Sales to retailers at Column G prices on permission of district offices.* Any district office of the Office of Price Administration may, on application, grant permission by order to any wholesaler within its jurisdiction who qualifies to sell fresh fish of any species pursuant to paragraph (b), to sell fish of the same species at the same price to such group 3 and 4 retailers as it may designate. The application shall contain the names and addresses of all group 3 and 4 stores to which the applicant is currently making sales. Such permission shall be granted if in the judgment of the district office it is necessary to secure a proper distribution of fish. Revised Procedural Regulation No. 1 shall apply to such application for adjustment.

(d) *Sales of more than 500 pounds to a customer delivered in lots of 500 pounds or less.* Where a sale is made pursuant to paragraph (b) or (c) of this section but the wholesaler sells or delivers more than 500 pounds of any one species of fresh fish to the customer on any one day, the table price for that part of such fresh fish which is shipped or delivered to any place of business or other distribution point of the customer in lots totalling 500 pounds or less in any one day is the appropriate table price provided in section 2.7 (a). The table prices in paragraphs (b) and (c) do not apply to such sales.

[Paragraph (d) added by Am. 3, 10 F.R. 4036, effective 4–12–45; amended by Am. 8, 10 F.R. 9432, effective 8–15–45 (effective date of Am. 8 amended by Am. 9, 10 F.R. 9880, effective 8–7–45)]

SEC. 2.7a *Importer sales.* (a) An importer sale is a sale of fresh fish which the seller (including the agent of a foreign shipper) imported into the United States. It also includes sales by a wholesaler or any other person of imported fish which he bought from an importing distributor (other than a wholesaler or retailer). Such a seller is an importer with respect to such sales. The maximum prices for such sales are the table prices established for primary fish shipper sales plus all applicable allowances.

(b) *Inland warehouse sales.* Where an importing wholesaler ships imported fish from his domestic established place of business at which he received the fish to a warehouse which is not within any of the States of Maine, New Hampshire, Massachusetts, Connecticut, or Rhode Island, and at which he has two or more full-time employees stationed and engaged in making sales and performing services exclusively for him and he sells and distributes that fish from the stock of that warehouse, the maximum prices for such sales are the table prices established for inland warehouse sales (section 2.5 (c)) plus all applicable allowances.

SEC. 2.8 *Sales to ultimate consumers.* The maximum price for a sale of fresh fish to an ultimate consumer by a producer is the price listed in column B of Table IA (section 10.1) plus the mark-up over that price, provided by Revised Maximum Price Regulation No. 507 for group 3 and group 4 retail stores. The maximum price for a sale of fresh fish to an ultimate consumer by any person other than a producer, who buys the fish for resale and sells 50 percent or more of it to persons other than ultimate consumers, is either the price listed in column B of Table IA (section 10.1), plus all applicable allowances, or his supplier's table price on the sale to him plus all applicable allowances, plus the mark-up over the total thus obtained provided by Revised Maximum Price Regulation No. 507 for group 3 and group 4 retail stores. (The maximum price for a sale to an ultimate consumer by a person who buys fresh fish and resells more than 50 percent of it to ultimate consumers is fixed by Revised Maximum Price Regulation No. 507.)

SEC. 2.9 *Delivery allowance*—(a) *Basic allowance.* Where a wholesale sale is made to a retailer or purveyor of meals, and the fresh fish is delivered by the seller in his own motor truck or wagon, or in a motor truck or wagon used solely for his own deliveries, to the retailer's individual store or to the place of business of the purveyor of meals, the seller may add 1½ cents to his table price.

(b) *Additional mileage allowance.* Where a delivered sale by a wholesaler for which an allowance is made by paragraph (a) is made to an individual retail store or place of business of a purveyor of meals, which is located more than 25 air miles from the seller's point of shipment, the seller may add to his table price, in addition to the allowance provided in paragraph (a), the appropriate charge listed below:

Distance:	*Allowance in cents per pound*
26 to 75 miles	½
76 to 150 miles	¾
151 to 250 miles	1
Over 250 miles	1¼

SEC. 2.10 *Custom dressing allowance.* (a) Where a wholesale sale is made to a purveyor of meals of custom-dressed fresh fish (that is, of fish with the head, entrails, scales and fins removed), the seller may add 3 cents per pound to his table price for the dressed fish. If the applicable table lists a price for round fish but not for dressed fish, the dressed fish price is deemed to be 40 percent more than the listed round fish price. If the applicable table lists a price for drawn fish but not for round or dressed fish, the dressed fish price is deemed to be 25 percent more than the listed drawn fish price. No charge shall be made for any other customary services performed by the seller, such as slicing, removing collar bone, wrapping, etc.

SEC. 2.11 *Transportation allowance*—(a) *General.* The allowances provided by this section for transportation costs do not apply to local trucking, hauling, or handling charges, for which no charge may be made. No allowance taken for transportation costs pursuant to this section may exceed the common carrier rate from shipping to receiving points. Where a wholesaler further processes the fresh fish he receives before he sells it, he may add to his table price for the processed fish an amount which will enable him to recover the full allowance provided by this section for his incoming transportation.

(b) *Wholesaler's or other distributor's incoming transportation.* Any wholesaler, or other distributor covered by section 1.2, who buys fresh fish from another domestic wholesaler may add to his table price the actual cost of the transportation of such fish from his seller's shipping point to his receiving point.

(c) *Wholesaler's transportation to branch warehouse.* A wholesaler who ships fish from his place of business to his warehouse or other distribution point which is remote from that place of business, and which is not in a port area for that species, may add to his table price the actual cost of transportation from his place of business to that warehouse or other distribution point.

(d) *Importer's incoming transportation*—(1) *General rule.* An importer may add to his table price as a transportation allowance the smallest of the following:

(i) The actual transportation cost from the foreign shipper's shipping point to the importer's receiving point.

(ii) The actual transportation cost to the importer's receiving point from the point at which the fish entered the United States or the carload rail rate from the point in the United States nearest the foreign shipper's shipping point, whichever is designated by the importer;

(iii) The transportation cost for the type of shipment used to the importer's receiving point from Boston.

(2) *Atlantic salmon.* Notwithstanding the provisions of subparagraph (1), an importer of fresh Atlantic salmon (Schedule No. 23) may add to his table price as a transportation allowance the actual transportation cost from the foreign shipper's shipping point to the importer's receiving point.

Duty may be added to the table prices for imported fresh Atlantic salmon. Any seller who processes this fish may add to his table price the amount which will enable him to recover the full amount of

the duty paid for the particular lot of fish involved in the processing.

[Paragraph (d) amended by Am. 4, 10 F.R. 4348, effective 4-28-45]

(e) *Allowance paid by purchasing wholesaler.* A purchasing wholesaler who has paid to his domestic supplier an allowance for transportation costs pursuant to paragraphs (b), (c) or (d), may add that allowance to his table price.

(f) *Authorization to regional offices to fix transportation allowances.* Any regional office of the Office of Price Administration, and such other offices as may be authorized by the appropriate regional office, may by order determine and fix for any area or locality within its jurisdiction, a transportation allowance applicable to any species of fresh fish or seafood. The allowance shall be ascertained by reference to the principal source or sources from which the particular species is shipped to the area or locality and the method of transportation generally used. The transportation allowance thus fixed shall be used by all wholesalers in lieu of the actual transportation cost, in determining their maximum price for the sale, in the area or locality, of the designated species of fresh fish or seafood. The transportation allowances may be made effective for such time as the appropriate office finds proper, and may be changed from time to time to reflect changes in the principal sources of designated species of fish or seafood or methods of shipment which occur in the regular course of business. In determining the maximum prices for sales of fresh fish and seafood in any area or locality for which a transportation allowance is not established, wholesalers shall add actual transportation cost as provided in paragraph (a) of this section. Any transportation allowance established pursuant to the provisions of this paragraph shall have the same force and effect as if specifically established in this regulation.

SEC. 2.12 *Container allowances*—(a) *Sales by primary fish shipper*—(1) *Fish other than fillets and steaks.* A primary fish shipper may add to his table price for a sale in a container of fresh fish other than fillets or steaks, an outgoing container allowance in the applicable amount listed in paragraph (e), but only if the container is not returned to him.

A primary fish shipper who paid the producer the allowance provided by section 2.2 (b) for fresh fish which the producer boxed or barreled and shipped may add to his table price for a sale of such fish to a retailer or purveyor of meals the allowance in the amount provided in paragraph (e) for the container in which he received the fish, *Provided,* That such fish is sold without a container or the primary fish shipper is otherwise not entitled to any other container allowance provided in this section 2.12.

[Subparagraph (1) amended by Am. 4, 10 F.R. 4348, effective 4-28-45]

(2) *Fillets or steaks.* A primary fish shipper may add to his table price for a sale of fillets or steaks an allowance for the immediate container in which he sells them in the applicable amount listed in paragraph (e). If the sale involves transportation to the buyer other than local trucking, hauling or handling, he may also add to his table price an allowance for an outgoing outer container in the applicable amount listed in paragraph (e), but only if he is not entitled to a delivery allowance for the sale under section 2.9, and if the outer container is not returned to him.

(3) *Inland warehouse sales.* This paragraph (a) does not apply to a sale by a primary fish shipper from his inland warehouse pursuant to section 2.5 (c). For the purposes of this section, such a sale is treated as a sale made by a wholesaler other than a primary fish shipper.

(b) *Sales by a wholesaler other than a primary fish shipper who paid no container allowance.* A wholesaler other than a primary fish shipper who paid no container allowance authorized by this section on his purchase of fresh fish, may add to his table price for sales of that fish the applicable allowance for his outgoing container provided by paragraph (a) for sales by a primary fish shipper.

(c) *Sales by a wholesaler other than a primary fish shipper who paid a container allowance*—(1) *Incoming container allowance.* A wholesaler other than a primary fish shipper, who purchased fresh fish in a container (or containers in the case of fillets or steaks) and paid a container allowance authorized by paragraph (a) or (b) of this section, may pass on that allowance as an addition to his table price for sales of that fish. A subsequent wholesaler may pass on, as an addition to his table price for a sale of fresh fish, any container allowance authorized by this section which he paid when he purchased that fish. This is called the wholesaler's "incoming container allowance". If such wholesaler processes that fish into fillets or steaks, or sells it custom-dressed to purveyors of meals, he may add as his incoming container allowance an amount which will enable him to recover the full authorized allowance paid by him when he purchased the fish, but no more than 3 cents for sales of fillets or 2 cents for sales of steaks or custom-dressed fish.

(2) *Outgoing container allowance for sales of fish other than fillets or steaks.* For a sale in a container of fresh fish of any species, other than fillets or steaks, by a port wholesaler (not including a primary fish shipper) to a purveyor of meals, or by a wholesaler, other than a primary fish shipper or port wholesaler, to a retailer or purveyor of meals, the seller may add to his table price, in addition to the incoming container allowance provided by subparagraph (1), an outgoing container allowance in the applicable amount listed in paragraph (e), *Provided,* That:

(i) The sale involves transportation to the buyer other than local trucking, hauling or handling; and

(ii) The seller bought that fish in containers of 100 pounds or more of that species; and

(iii) He sells and ships no more than 80 pounds of fresh fish of that species (exclusive of fillets or steaks) to that customer on the day of such sale and shipment; and

(iv) He is not entitled to a delivery allowance for that sale under section 2.9.

(3) *Outgoing immediate container allowance for sales of fillets, or steaks by processing wholesalers.* A processing wholesaler is a wholesaler who purchases fresh fish, other than fillets or steaks, which he processes into fillets or steaks for resale. A processing wholesaler, other than a primary fish shipper, may add to his table price for fillets or steaks processed by him, in addition to the incoming container allowance provided by subparagraph (1), an allowance for the immediate container in which he sells those fillets or steaks, in the applicable amount listed in paragraph (e), if that container is not returned to him.

(4) *Outgoing outer container allowance for sales of fillets or steaks by processing wholesaler.* A processing wholesaler, other than a primary fish shipper, may add to his table price for sales of fillets or steaks processed by him, in addition to the allowances provided by subparagraphs (1) and (3), an allowance for his outgoing outer container, in the applicable amount listed in paragraph (e), *Provided,* That:

(i) The sale involves transportation to the buyer other than local trucking, hauling or handling; and

(ii) The seller is not entitled to a delivery allowance for that sale under section 2.9; and

(iii) The outer container is not returned to the seller.

However, the total of the allowances added to the seller's table price under subparagraph (1) (incoming container allowance) and this subparagraph (outgoing outer container allowance) may not exceed 3 cents for sales of fillets or 2 cents for sales of steaks.

(5) *Outgoing outer container allowance for sales of fillets by a non-processing wholesaler.* A wholesaler other than a primary fish shipper, who purchased fillets or steaks and paid on such purchase pursuant to paragraph (a) or (b), an immediate container allowance but no outer container allowance, may add to his table price for sales of such fillets or steaks, in addition to the incoming container allowance provided by subparagraph (1), an allowance for his outer outgoing container in the applicable amount listed in paragraph (e), *Provided,* That:

(i) The sale involves transportation to the buyer other than local trucking, hauling or handling; and

(ii) The seller is not entitled to a delivery allowance for that sale under section 2.9; and

(iii) The outer container is not returned to the seller.

(d) *Special package shipment to outlying country points.* Where a wholesaler packs fresh fish with dry ice, and ships such fish by common carrier to individual retail stores or purveyors of meals located in outlying rural areas, he may add to his table price the actual cost of any special outer shipping case and dry ice used, the total not to exceed 2 cents per pound: *Provided,* That he adds no other outgoing container allowances provided in this section 2.12 except

an allowance for the outgoing immediate container (where such is permitted) in the case of fillets and steaks.

(e) *Container prices.*

Net weight of fish or seafood:	*Cents per pound for container*
5	1¾
10	1½
15	1
20	1
30	1
50	1½
75	1¼
100	1
125	⅞
150	¾
200	⅝
250	½
300	½

For any net weight not listed in this section, take the nearest net weight for which provision is made.

For any net weight falling equally between two listed net weights, take the net weight with the lower allowance. When fish or seafood is cellophane wrapped, add an additional ¼ cent per pound.

[Paragraphs (d) and (e) amended by Am. 4, 10 F.R. 4348, effective 4–28–45]

(f) *Authorization to regional offices to fix container allowances.* Any regional office of the Office of Price Administration, or such other office as may be authorized by the appropriate regional office, may by order determine and fix for any area or locality within its jurisdiction a container allowance applicable to such types of sales of such species and styles of dressing of fresh fish or seafood as it may designate. The allowance shall be ascertained by reference to the principal type or types of containers in which such fish is handled in that area or locality and the principal source or sources of supply for that area or locality. The container allowance thus fixed shall be used by all wholesalers in that area or locality in lieu of the container allowances provided by this section, for sales of the designated species and styles of dressing to such classes of purchasers within the jurisdiction of the said office as it may designate. Such allowance may be made effective for such time as the appropriate office finds proper, and may be changed from time to time to reflect changes in the types of containers used and the sources of supply which occur in the regular course of business. For sales in any area or locality for which a container allowance is not established, wholesalers shall add the appropriate container allowances provided by paragraphs (a) through (d) of this section. Any container allowance establisned pursuant to this paragraph shall have the same force and effect as if specifically fixed by this regulation.

ARTICLE III—FROZEN FISH AND SEAFOOD (NORTH ATLANTIC SPECIES)

SEC. 3.1 *General provisions*—(a) *Scope of this article.* This article sets maximum prices for sales by processors and wholesalers of certain species of frozen fish and seafood listed in Table IB of section 10.1. Table IB (North Atlantic species) lists only species which are primarily landed and frozen at North Atlantic ports. (All frozen fish and seafood of any species and style of dressing listed are included, even though they are occasionally landed or frozen elsewhere. Frozen fish and seafood primarily landed and frozen in other areas, such as halibut, are not included, even though they are occasionally landed and frozen at North Atlantic ports.)

(b) *Frozen fish.* As used in this article, the words "frozen fish" mean all frozen fish and seafood of the species and styles of dressing listed in Table IB of section 10.1, unless the context indicates otherwise.

SEC. 3.2 *Maximum prices for sales by processors and wholesalers*—(a) *Maximum prices.* The maximum price for any sale of frozen fish by a processor (defined in section 3.3) or a wholesaler (defined in section 3.4) is the table price provided for that sale (by sections 3.3 through 3.7), plus all applicable allowances (provided by sections 3.9 through 3.13), and plus or minus any applicable differentials (provided by section 3.12 (a)). If this article does not specifically provide a table price for the sale, the maximum price is the lowest table price provided by this article for any sale by that seller, plus all applicable allowances, and plus or minus any applicable differential.

(b) *Maximum prices for sales of lots of more than 500 pounds.* (1) The maximum price for sales of frozen fish, which is delivered or shipped to any place of business or other distribution point of the customer in lots totalling more than 500 pounds of any one species in any one day, is the table price provided in the following subdivisions plus all applicable allowances and plus or minus any applicable differentials:

(i) Sales to purveyors of meals by wholesalers who bought the fish at prices based on Column III of Table IB—the price listed in Column III of Table IB (section 10.1) plus one cent.

(ii) All other sales—the applicable table price for sales to wholesalers.

(2) Where a customer takes delivery of more than 500 pounds of any one species of frozen fish on any one day at the seller's place of business or other distribution point, the maximum price for the sale of such fish is the applicable table price for sales to wholesalers plus all applicable allowances and plus or minus any applicable differentials.

[Paragraph (b) amended by Am. 3, 10 F.R. 4036, effective 4–12–45; Am. 5, 10 F.R. 4536, effective 4–25–45; and Am. 8, 10 F.R. 9432, effective 8–15–45 (effective date of Am. 8 amended by Am. 9, 10 F.R. 9880, effective 8–7–45)]

(c) *Allowances generally.* No allowance or differential (provided by sections 3.9 through 3.13) may be added by a seller to his table price unless it is separately stated on an invoice to his customer.

SEC. 3.3 *Sales by processors*—(a) *What a processor is.* A "processor" of frozen fish is a person who owns the frozen fish before it leaves the original freezer.

(b) *What a secondary processor is.* A "secondary processor" with respect to frozen fish of any species, is a person other than a producer or producer-wholesaler (defined in section 2.2), of fresh fish of that species, or a primary processor of frozen fish of the same species, who freezes fresh fish which he purchased, pursuant to Article II, at the table price listed in column B of Table IA (section 10.1) or higher, and who normally purchases 80 percent or more of the fresh fish of that species which he freezes at the table price listed in column B of Table IA (section 10.1) or higher. He is a secondary processor only with respect to fish of that species purchased at such prices which he freezes. The term also includes a person, other than a primary processor of the same species, who acquires such frozen fish from such secondary processor before the fish leaves the original freezer.

(c) *What a primary processor is.* A processor of any frozen fish who fails to fill the requirements of paragraph (b) with respect to that frozen fish, is a primary proeessor of that frozen fish. A person who is a primary processor with respect to more than 20 percent of the frozen fish of any species which he sells, is considered, for the purposes of this regulation, a primary processor with respect to all the frozen fish of that species which he sells.

(d) *Table prices for sales by a primary processor.* The table price for a sale of frozen fish by a primary processor, other than a sale covered in paragraph (e), is as follows:

(1) To a wholesaler, chain store warehouse or retailer-owned cooperative wholesaler—the price listed in column I of Table IB (section 10.1).

(2) To a retailer or purveyor of meals—the price listed in column II of Table IB (section 10.1).

(e) *Inland warehouse sales by a primary processor.* Where a primary processor ships frozen fish to a warehouse, which is (i) remote from the original freezer, (ii) not within any of the States of Maine, New Hampshire, Massachusetts, Connecticut, or Rhode Island, and (iii) at which warehouse he has two or more fulltime employees stationed and engaged in selling frozen fish and performing related services for him exclusively, and he sells and distributes such frozen fish from the stock of that warehouse in less-than-carload lots, his table prices for such sales are the prices listed below: *Provided, however,* That during the greater portion of the year preceding April 13, 1943 he received frozen fish of the same species at that warehouse, for the most part in carload lots, or as a portion of a whole carload lot including other species, and sold and distributed it from there for the most part in less-than-carload lots;

(1) To a wholesaler, chain-store warehouse, or retailer-owned cooperative wholesaler—the price listed in column III of Table IB (section 10.1) but only if such fish was received at the warehouse in carload lots, or as a portion of a whole carload lot including other species.

(2) To a retailer—the price listed in column IV of Table IB (section 10.1).

(3) To a purveyor of meals:

(i) If the sale involves transportation to the buyer other than local trucking, hauling, or handling, or if the seller is

entitled to a delivery allowance for the sale under section 3.9—the price listed in column IV of Table IB (section 10.1) plus ½ cent.

(ii) If the sale is not covered by subdivision (i) the price listed in column IV of Table IB (section 10.1).

[Paragraph (e) amended by Am. 5, 10 F.R. 4536, effective 4-25-45]

(f) *Table prices for sales by a secondary processor.* The table price for a sale of frozen fish by a secondary processor is as follows:

(1) To a wholesaler, chain store warehouse or retailer-owned cooperative wholesaler—the price listed in column I of Table IB (section 10.1).

(2) To a retailer:

(i) If the sale is made by a secondary processor who has no place of business within any of the States of Maine, New Hampshire, Massachusetts, Connecticut or Rhode Island, and the fish is frozen at, and delivered from or at, a place which is not within any of those states—the price listed in column IV of Table IB (section 10.1).

(ii) If the sale is not covered by subparagraph (i)—the prices listed in column II of Table IB (section 10.1).

(3) To a purveyor of meals:

(i) If the sale involves transportation to the buyer other than local trucking, hauling or handling, or if the seller is entitled to a delivery allowance for the sale under section 3.9—the prices listed in column IV of Table IB (section 10.1) plus ½ cent.

(ii) If the sale is not covered by subdivision (i)—the prices listed in column IV of Table IB (section 10.1).

SEC. 3.4 *Wholesale sales generally*—(a) *What "wholesale sales" and "wholesalers" are.* A person other than a processor who buys frozen fish for resale, and sells more than 20 percent of it to persons other than ultimate consumers, is a "wholesaler" with respect to all his purchases (including his purchases of fish which he sells at retail). His sales of that fish are "wholesale sales", and he is a "wholesaler" with respect to those sales, if:

(1) He sells and distributes the greater part of such fish from the stock of his domestic established place of business; or

(2) He has no established place of business, and he sells and delivers such fish to a retailer or purveyor of meals, without advance order, from the stock of his motor truck or wagon in which he delivers it to the retailer's individual store or to the place of business of the purveyor of meals. (This type of wholesale sale is called a wagon jobber sale. The seller is a wagon jobber with respect to such sale.)

With the exception of the wagon jobber sale, however, if the seller does not sell and distribute the greater part of his fish from the stock of his domestic established place of business, he is not a wholesaler, but is a distributor whose sales are covered by section 1.2, or in the case of an importing distributor by section 3.5. (For the purposes of this article a seller's "established place of business" includes a cold storage warehouse, other than the original freezer, in which the seller rents space and stores his fish.)

SEC. 3.5 *Importer sales.* (a) An importer sale is a sale of frozen fish which the seller (including the agent of a foreign shipper) imported into the United States. It also includes sales by a wholesaler or any other person of imported fish which he bought from an importing distributor (other than a wholesaler or retailer). Such a seller is an importer with respect to such sales. The maximum prices for such sales are the table prices established for sales by primary processors plus all applicable allowances (provided by sections 3.9 through 3.13) and plus or minus any applicable differentials (provided by section 3.12 (a)).

(b) *Inland warehouse sales.* Where an importing wholesaler receives imported frozen fish at his domestic established place of business and ships such fish to another warehouse in less-than-carload lots or in carload lots which he assembled at his domestic established place of business, and such other warehouse and sales from it meet the qualifications set out in section 3.3 (e) (Inland warehouse sales by a primary processor), the maximum prices for such sales are the table prices established by that section plus all applicable allowances and plus or minus any applicable differentials.

SEC. 3.6 *Primary distributor sales*—(a) *What a primary distributor sale is.* A sale by a wholesaler (other than an importer sale) to another wholesaler, chain-store warehouse or retailer-owned cooperative of frozen fish purchased frozen in carload lots or as a portion of a whole carload lot including other species, and distributed in the United States in less-than-carload lots, is a primary distributor sale: *Provided, however,* That the seller handled the same species of frozen fish during the year preceding April 13, 1943 and during the greater part of that year bought in carload lots or as a portion of a whole carload lot including other species the greater portion of that species which he handled, and he distributed from an established place of business in the United States the greater portion in less-than-carload lots. The seller is called a primary distributor with respect to such sales.

[Paragraph (a) amended by Am. 5, 10 F.R. 4536, effective 4-25-45]

(b) *Table price.* The table price for a primary distributor sale is the price listed in column III of Table IB (section 10.1).

SEC. 3.7 *Wholesale sales not covered by sections 3.5 and 3.6*—(a) *Table prices.* The table price for a wholesale sale of frozen fish which is not covered by section 3.5 or 3.6 is as follows (but see paragraph (b)).

(1) To a wholesaler, chain store warehouse or retailer-owned cooperative wholesaler—the prices listed in column I of Table IB (section 10.1).

(2) To a retailer:

(i) By a retailer-owned cooperative wholesaler to an affiliated retail store—the price listed in column IV of table IB (section 10.1) minus one cent. (A retailer-owned cooperative wholesaler is a wholesaler who is either a non-profit organization or a corporation of which 51 percent or more of the stock is owned by its retail customers.)

(ii) By a wholesaler except as provided in the immediately preceding subdivision (i)—the price listed in column IV of Table IB.

(3) To a purveyor of meals:

(i) If the sale involves transportation to the buyer other than local trucking, hauling or handling, or if the seller is entitled to a delivery allowance for the sale under section 3.9—the prices listed in column IV of Table IB (section 10.1) plus ½ cent.

(ii) If the sale is not covered by subparagraph (i)—the prices listed in column IV of Table IB (section 10.1).

(b) *Certain sales to retailers and purveyors of meals at Column V prices.* Notwithstanding the provisions of paragraph (a), a wholesaler who purchases frozen fish from a primary distributor, or from an inland warehouse of a processor or importer pursuant to section 3.3 (e) or section 3.5 (b) may sell that fish to retailers or purveyors of meals at the following table prices:

(1) To a retailer:

(i) If the seller is a retailer-owned cooperative wholesaler (defined in paragraph (a) (2) (i))—selling to an affiliated retail store—the prices listed in column V of Table IB (section 10.1) minus one cent.

(ii) If the seller is not a retailer-owned cooperative wholesaler—the price listed in column V of Table IB (section 10.1).

(2) To a purveyor of meals:

(i) If the sale involves transportation to the buyer other than local trucking, hauling or handling, or if the seller is entitled to a delivery allowance for the sale under section 3.9—the price listed in column V of Table IB (section 10.1) plus ½ cent.

(ii) If the sale is not covered by subdivision (i)—the price listed in column V of Table IB (section 10.1).

SEC. 3.8 *Sales to ultimate consumers.* The maximum price for a sale of frozen fish to an ultimate consumer by a processor, or by an importer-wholesaler who is a primary processor of fish of the same species, is the price listed in column I of Table IB (section 10.1), plus all applicable allowances, plus the mark-up over the total thus obtained provided by Revised Maximum Price Regulation No. 507 for group 3 and group 4 retail stores. The maximum price for a sale of frozen fish to an ultimate consumer by any person other than a processor, who buys frozen fish for resale and sells 50 percent or more of it to persons other than ultimate consumers, is either the price listed in column I of Table IB (section 10.1) plus all applicable allowances, or his supplier's table price on the sale to him plus all applicable allowances, plus the mark-up over the total thus obtained provided by Revised Maximum Price Regulation No. 507 for group 3 and group 4 retail stores. (The maximum price for a sale to an ultimate consumer by a person who buys frozen fish and resells more than 50 percent of it to ul-

timate consumers is fixed by Revised Maximum Price Regulation No. 507.)

SEC. 3.9 *Delivery allowance*—(a) Basic *allowance.* Where a wholesale sale or a sale by a processor is made to a retailer or purveyor of meals, and the frozen fish is delivered by the seller in his own motor truck or wagon, or in a motor truck or wagon used solely for his own deliveries, to the retailer's individual store or to the place of business of the purveyor of meals, the seller may add 1½¢ to his table price.

[Paragraph (a) corrected, 10 F.R. 4035, effective 4-18-45]

(b) *Additional mileage allowance.* Where a delivered sale by a processor or a wholesaler for which an allowance is provided by paragraph (a) is made to an individual retail store or place of business of a purveyor of meals, which is located more than 25 air miles from the seller's place of business, the seller may add to his table price, in addition to the allowance provided in paragraph (a), the appropriate charge listed below.

Distance:	*Allowance in cents per pound*
26 to 75 miles	½
76 to 150 miles	¾
151 to 250 miles	1
Over 250 miles	1¼

SEC. 3.10 *Custom dressing allowance.* (a) Where a wholesale sale or a sale by a processor is made to a purveyor of meals of custom-dressed frozen fish (that is, of fish with the head, entrails, scales and fins removed), the seller may add 3 cents per pound to his table price for the dressed fish. If the applicable table lists a price for round fish but not for dressed fish, the dressed fish price is deemed to be 40 percent more than the listed round fish price. If the applicable table lists a price for drawn fish but not for round or dressed fish, the dressed fish price is deemed to be 25 percent more than the listed drawn fish price. No charge shall be made for any customary services performed by the seller, such as slicing, removing collar bone, wrapping, etc.

SEC. 3.11 *Transportation allowances*—(a) *General.* The allowances provided by this section for transportation costs do not apply to local trucking, hauling or handling charges, for which no charge may be made. No allowance taken for transportation costs pursuant to this section may exceed the common carrier rate from shipping to receiving points.

(b) (1) *Incoming fresh fish transportation for processors.* If a primary or secondary processor freezes fish in a place, which is remote from the place where that fish was landed, he may add to his table price the per pound transportation costs, not to exceed the carload rail freight rate per pound for fresh fish (if such rate is available) from the nearest port where that species is landed, ex-vessel.

[Above paragraph designated subparagraph (1), and (2) added by Am. 6, 10 F.R. 5905, effective 5-22-45]

(2) *New Bedford fillets.* If a processor fillets fresh fish at his place of business in New Bedford, Massachusetts, and freezes the fillets at Boston, Massachusetts, where he delivers them to the Quartermaster Corps of the United States Army, he may add to his table price the transportation cost from New Bedford to Boston. (The allowance taken for such transportation may not exceed the common carrier rate from shipping to receiving points. See paragraph (a) of this section 3.11).

(c) *Incoming transportation for wholesalers and other distributors.* Any wholesaler or other distributor who purchases frozen fish from a domestic supplier may add to his table price the transportation cost from his supplier's shipping point to his receiving point.

(d) *Importer's incoming transportation*—(1) *General rule.* An importer of frozen fish may add to his table price as a transportation allowance the smallest of the following:

(i) The actual transportation cost from the foreign shipper's shipping point to the importer's receiving point.

(ii) The actual transportation cost to the importer's receiving point from the point at which the fish entered the United States, or the carload rail rate from the point in the United States nearest the foreign shipper's shipping point, whichever is designated by the importer.

(iii) The transportation cost for the type of shipment used to his receiving point from Boston.

(2) *Atlantic salmon.* Notwithstanding the provisions of subparagraph (1), an importer of frozen Atlantic salmon (Schedule No. 23) may add to his table price as a transportation allowance the actual transportation cost from the foreign shipper's shipping point to the importer's receiving point.

Duty may be added to the table prices for imported frozen Atlantic salmon. Any seller who processes this fish may add to his table price the amount which will enable him to recover the full amount of the duty paid for the particular lot of fish involved in the processing.

[Subparagraph (d) amended by Am. 4, 10 F.R. 4348, effective 4-28-45]

(e) *Outgoing transportation for processors, wholesalers and distributors.* Any processor, wholesaler, or other distributor, not including an importer, who ships frozen fish from one of his warehouses to another of his warehouses or to his distribution point which is remote from his shipping point and from the original freezing point, may add to his table price for frozen fish distributed from or at that remote warehouse, or other distribution point, the transportation cost from the shipping point nearest the first warehouse to such remote warehouse or other distribution point.

(f) *Allowance paid by purchasing wholesaler.* A purchasing wholesaler who has paid to his domestic supplier a transportation allowance authorized by paragraphs (a), (b), (c), (d), or (e) may add that allowance to his table price.

(g) A wholesaler who further processes the frozen fish he receives before he sells it, may add to his table price for the processed fish an amount which will enable him to recover the full incoming transportation allowance provided by paragraph (c), (d) or (f).

(h) *Mileage allowance for wholesalers.* Any wholesaler of frozen fish may add to his table price for sales to retailers and purveyors of meals 25 percent of the carload freight charge from Boston to his receiving point.

(i) *Authorization to regional offices to fix transportation allowances.* Any regional office of the Office of Price Administration, and such other offices as may be authorized by the appropriate regional office, may by order determine and fix for any area or locality within its jurisdiction, a transportation allowance applicable to any species of frozen fish or seafood. The allowance shall be ascertained by reference to the principal source or sources from which the particular species is shipped to the area or locality and the method of transportation generally used. The transportation allowance thus fixed shall be used by all wholesalers in lieu of the actual transportation cost, in determining their maximum prices for the sale, in the area or locality, of the designated species of frozen fish or seafood. The transportation allowance may be made effective for such time as the appropriate office finds proper, and may be changed from time to time to reflect changes in the principal sources of designated species of fish or seafood or methods of shipment which occur in the regular course of business. In determining the maximum prices for sales of frozen fish and seafood in any area or locality for which a transportation allowance is not established, wholesalers shall add actual transportation cost as provided in paragraph (a) of this section. Any transportation allowance established pursuant to the provisions of this paragraph shall have the same force and effect as if specifically established in this regulation.

SEC. 3.12 *Container differentials and allowances*—(a) *Generally.* The table prices established by this article for sales of frozen fish include an allowance for the usual containers in which the fish is packed. This section sets forth the amount which may be added to, or which must be subtracted from, those table prices when the frozen fish is not packed in containers or is packed in containers of the sizes and kinds herein listed.

Parchment wrapped in 15 lb. wood or paper box		Base price
Parchment wrapped in 10 lb. wood or paper box	Add	¼¢ per lb.
Parchment wrapped in 5 lb. wood or paper box	Add	½¢ per lb.
Parchment wrapped in 1 lb. wood or paper box	Add	1½¢ per lb.
Cellophane wrapped in 15 lb. wood or paper box	Add	¼¢ per lb.
Cellophane wrapped in 10 lb. wood or paper box	Add	½¢ per lb.
Cellophane wrapped in 5 lb. wood or paper box	Add	¾¢ per lb.
Cellophane wrapped in 1 lb. wood or paper box	Add	1¾¢ per lb.
Layer pack in 15 lb. wood or paper box	Subtract	½¢ per lb.
Layer pack in 10 lb. wood or paper box	Subtract	¼¢ per lb.
Layer pack in 5 lb. wood or paper box		Base price

Cry-o-vac: When Cry-o-vac bags or containers of similar materials are used in conjunction with any of the above methods of wrapping or packing add to the above differentials: ¼ cent per pound for a unit of 15 pounds net weight; ½ cent per pound for a unit of 10 pounds net weight; ¾ cent per pound for a unit of 5 pounds net weight.

Frozen fish and frozen sea foods not packed in boxes or other containers . . . subtract 1 cent per pound.

(b) *Less-than-box-lot shipment to retailers or purveyors of meals.* Where a wholesaler purchases, or an inland warehouse of a primary processor qualifying under section 3.3 (e) receives, a species of frozen fish in containers of 100 pounds or more, and resells that fish to a retailer or a purveyor of meals in lots of 80 pounds or less in any one day, and the sale involves transportation from him to the buyer other than local trucking, hauling or handling, that wholesaler, or processor selling from an inland warehouse pursuant to section 3.2 (e), may add 1 cent to his table price for such sales as a container allowance for a broken box lot sale. However, no allowance may be added under this paragraph for a sale of fillets or steaks.

(c) *Special package shipments to outlying country points.* Where a processor or wholesaler packs frozen fish with dry ice in special containers and ships such fish by common carrier to individual retail stores or purveyors of meals located in rural areas he may add to his table price the actual cost of any special shipping case and dry ice used, the total not to exceed 2 cents per pound.

[Paragraph (c) amended by Am. 4, 10 F.R. 4348, effective 4-28-45]

SEC. 3.12a *Winter allowance for certain items of frozen fish.* (a) Any person making a sale of any of the items listed in paragraph (c) may add to the appropriate table price the applicable amount listed in that paragraph, but only if:

(1) Such fish has been landed and frozen in the United States. (This allowance may not be added for imported fish.)

(2) The seller has since September 30, 1945 sold without adding this allowance (on the basis of the summer prices) an amount equal to his inventory on September 30, 1945 plus an amount equal to his total domestic purchases of the item made since that date on the basis of the summer prices and his total imports of the item.

(3) The seller has complied fully with the reporting requirements in paragraph (b).

(4) The seller (other than a processor) has received an invoice setting out this allowance separately. (The allowance must be stated on the invoice pursuant to section 3.2 (c).)

(5) The seller has added no storage allowance under section 3.13 (b).

(6) Such fish is delivered to the customer prior to April 1, 1946 in the case of a sale by a processor and prior to April 16, 1946 in the case of a sale by a wholesaler.

(b) *Reporting requirements.* The allowances provided in this section 3.12a may not be added unless and until the seller has filed with the Office of Price Administration, Washington, D. C., the following information:

(1) His inventory of any of the listed items on hand on September 30, 1945 where such inventory is over 1000 pounds.

(2) Monthly reports of his inventory of any of these items on hand at the end of the last day of each month beginning with October 31, 1945.

(3) Monthly reports of the quantity of each of these items purchased during each month beginning with the month of October 1945 (i) at prices including the allowances (winter prices), (ii) at prices not including the allowances (summer prices) and (iii) as imports. For each purchase of more than 500 pounds, the name and address of the person from whom the purchase was made, the price paid and the freezers or other places of business from which delivery was made and to which delivery was made must be set out.

(4) Monthly reports of the quantity of each of these items sold during each month beginning with the month of October (i) at winter prices; (ii) at summer prices. For each sale of more than 500 pounds, the name and address of the customer, the price charged and the freezers or other places of business to which delivery was made and from which delivery was made must be set out.

(5) Each report must be signed, dated and must contain the name and address of the person reporting. In the case of the inventory reports provided by Nos. 1 and 2 the report must contain the addresses of the places in which the inventories are stored stating separately the amount stored in each place. All monthly reports must be filed with the Office of Price Administration at Washington, D. C. before the 10th of each month. A seller must file monthly reports required by Nos. 2 through 4 with respect to any item only where his inventory (amount he owns) of the item for which no winter allowance may be added exceeds 1000 pounds at any time during the month for which or for the end of which a report is required. Note, however, that all sellers, whether or not they must file reports can take the allowance only if they meet all the requirements of paragraph (a). All sellers must of course, keep records in accordance with section 1.6.

(c) *Amount of allowances.*

Item:	*Addition (cents)*
Codfish fillets, skin-on	4
Codfish fillets, skinless	4½
Codfish steaks	2¼
Cusk fillets	4¼
Blackback fillets	6
Dab, sea and yellowtail fillets	6
Haddock fillets	4
Hake fillets	3¼

[Sec. 3.12a added by Am. 13, 10 F.R. 13403, effective 11-1-45]

SEC. 3.13 *Storage allowances*—(a) *Inland storage.* For inland warehouse sales, primary distributor sales, and other wholesale sales priced on the basis of column III or IV, the seller may add ½ cent per pound to the applicable table price if the seller has previous to the sale stored the fish in a freezer other than the original freezer.

(b) *Winter storage.* Any person making a sale of the listed species of fish during the listed months may add to the appropriate table price the applicable amount:

Species	January	February	March	April
	Cents	*Cents*	*Cents*	*Cents*
Codfish, cusk, blackback, sea dab and yellowtail, haddock hake, mud hake, pollock, gray sole, sea scallops, wolffish	¼	½	¾	0
Whiting	¼	½	¾	1

ARTICLE IV—FRESH FISH AND SEAFOOD (PACIFIC COAST SPECIES)

SEC. 4.1 *General provisions*—(a) *Scope of this article.* This article sets maximum prices for sales by producers and wholesalers of certain species of fresh fish and seafood listed in Table IIA of section 10.1. Table IIA (Pacific Coast Species) lists only species which are primarily landed at Pacific Coast ports. (All fresh fish and seafood of any species listed are included, even though they are occasionally landed elsewhere. Fresh fish and seafood primarily landed in other areas, such as shrimp, are not included, even though they are occasionally landed at Pacific Coast ports).

(b) *Unlisted styles of dressing and sizes.* Where a species of fresh fish (not including seafood) listed in Table IIA is sold in a style of dressing not listed in Table IIA the table price for that style of dressing is the lowest price listed in Table IIA for any style of dressing for that particular species. For the purposes of this paragraph, "round" is a style of dressing. Where a species of fresh fish or seafood listed in Table IIA is sold in a size not listed in Table IIA, the table price for that size is the price listed for the lowest priced size of that species.

(c) *Fresh fish.* As used in this article, the words "fresh fish" mean all fresh fish and seafood of the species listed in Table IIA of section 10.1, unless the context indicates otherwise.

SEC. 4.2 *Sales by producers*—(a) *What a producer is.* A "producer" is a fisherman or any other person who is allied with him in the catching or landing of fish, or who sells or delivers, at a port of entry or at any other place, fresh fish which he bought and received on a vessel owned or hired by him. A person who is a producer with respect to fresh fish listed in any schedule, is treated as a producer with respect to all the fresh fish listed in that schedule which he handles.

(b) *Maximum prices for producers' sales.* The maximum price for a sale of fresh fish, ex-vessel or otherwise, by a producer who is not also a wholesaler (see paragraph (d)), to any person other than an ultimate consumer, is the price listed in Column A of Table IIA (section 10.1) for that species and month. However, if such producer ships his fish by common carrier, or by other means of transportation, not including local trucking, hauling or handling and boxes or barrels his fish for such shipment in containers which are not returned to

him, he may add one cent to the price listed in Column A. War risk insurance premiums may be paid in addition to the listed maximum prices for those species of fish and in those localities where such premiums have customarily been paid by purchasers of fish.

(c) *Regional adjustments of producers' prices.* The provisions in section 2.2 (c) as now or hereafter amended, applicable to fresh fish prices in Table IA, are hereby made applicable to fresh fish prices in Table IIA.

(d) *Sales by producers who are also wholesalers.* If a producer sells and distributes his fish from the stock of his established place of business, and also sold and distributed fish from the stock of his established place of business for the substantial portion of the year prior to July 13, 1943, he is a wholesaler with respect to such sales. Those sales are primary fish shipper sales, and are covered by section 4.5.

SEC. 4.3 *Sales to canners.* The maximum price for a sale of fresh fish to a canner by any person is the price established by section 4.2 for a sale by a producer (other than a producer-wholesaler).

SEC. 4.4 *Maximum prices for wholesale sales*—(a) *What "wholesaler" and "wholesale sales" are.* A person, other than a producer, who buys fresh fish for resale and sells more than 20 percent of it to persons other than ultimate consumers, is a "wholesaler" with respect to all his purchases (including his purchases of fish which he sells at retail). A sale by such person is a "wholesale" sale, and the seller is a "wholesaler" with respect to such sale if:

(1) He sells and distributes at least 80 percent of the fresh fish he handles from the stock of his domestic established place of business (i) in which such fish has been unloaded and warehoused (ii) at which he maintains fulltime employees for the purpose of handling and packing fish exclusively for him, or

(2) The fish is sold and delivered to a retailer or a purveyor of meals, without advance order, from the stock of the seller's motor truck or wagon in which he delivers it to the retailer's individual store or to the place of business of the purveyor of meals, and the seller has no established place of business. (This type of wholesale sale is called a wagon jobber sale, and the seller is called a wagon-jobber with respect to such sales).

With the exception of the wagon jobber sale, however, if the seller does not sell and distribute at least 80 percent of his fresh fish from the stock of his domestic established place of business as provided in subparagraph (1) of this section he is not a wholesaler but is a distributor whose sales are covered by section 1.2 or 4.7a in the case of an importing distributor or 4.7b in the case of a distributor buying from a primary fish shipper or port wholesaler.

(b) *Maximum prices for wholesale sales.* The maximum price for a wholesale sale of fresh fish (other than a sale to an affiliated retail store by a retailer-owned cooperative wholesaler) is the table price provided by Article X for that sale (section 10.1) plus all applicable allowances. If Article X does not specifically provide a table price for the sale, the maximum price is the lowest table price provided by Article X for any sale by that seller, plus all applicable allowances.

(c) *Maximum prices for sales of lots of more than 500 pounds.*—(1) The maximum price for sales (except primary fish shipper or port sales to distributors other than wholesalers, retailers or purveyors of meals) of fresh fish which is delivered or shipped to any place of business or other distribution point of the customer in lots totalling more than 500 pounds of any one species in any one day is the table price provided in the following subdivisions (i), (ii) and (iii) plus all applicable allowances:

(i) Sales to purveyors of meals by port wholesalers (other than primary fish shippers)—the price listed in Column B of Table IIA (section 10.1) plus one cent.

(ii) Sales to purveyors of meals by wholesalers who bought the fish at prices based on Column E of Table IIA—the price listed in Column E of Table IIA (section 10.1) plus one cent.

(iii) All other sales—the applicable table price for sales to wholesalers.

(2) Where a customer (except a distributor other than a wholesaler, retailer or purveyor of meals) takes delivery of more than 500 pounds of any one species of fresh fish on any one day at the seller's place of business or other distribution point the maximum price for the sale of such fish is the applicable table price for sales to wholesalers plus all applicable allowances.

(d) *Maximum prices for sales by retailer-owned cooperative wholesalers.* A retailer-owned cooperative wholesaler is a wholesaler who is either a non-profit organization or a corporation of which 51 percent or more of the stock is owned by its retail customers. The maximum price for a sale by such wholesaler to an affiliated retail store is the price computed pursuant to paragraph (b) less one cent. (The maximum price for a sale by such wholesaler to any person other than an affiliated retail store is the price computed pursuant to paragraph (b)).

(e) *Allowances generally.* No allowance provided by sections 4.9 through 4.12 of this article may be added by a seller to his table price for any sale unless he separately states that allowance on an invoice to his customer.

SEC. 4.5 *Primary fish shipper sales*—(a) *What a primary fish shipper sale is.* A primary fish shipper sale is a sale of fresh fish by a wholesaler who bought such fish from a producer, or from a distributor (other than a producer, wholesaler or retailer) who in turn bought or received it from a producer. The term also includes a sale from his established place of business by a producer who is also a wholesaler (see section 4.2 (d)).

(b) *Table prices for primary fish shipper sales.* The table price for a primary fish shipper sale, other than an inland warehouse sale covered by paragraph (c) is as follows:

(1) To a wholesaler, chain store warehouse or retailer-owned cooperative wholesaler—the price listed in Column B of Table IIA (section 10.1).

(2) To a distributor (other than a wholesaler, retailer or purveyor of meals):

(i) For a sale of fish for which the price in Column B of Table IIA is 10 cents or less and for a sale of round, drawn or dressed halibut—the price listed in Column B of Table IIA (section 10.1) minus ½ cent.

(ii) Where the sale does not fall within subdivision (i)—the price listed in Column B of Table IIA (section 10.1) minus one cent.

(3) To a retailer—the price listed in Column C of Table IIA (section 10.1).

(4) To a purveyor of meals:

(i) If the sale involves transportation to the buyer other than local trucking, hauling or handling, or if the seller is entitled to a delivery allowance for the sale under section 4.9—the price listed in Column C of Table IIA (section 10.1) plus one cent.

(ii) If the sale does not fall within subdivision (i)—the price listed in Column C of Table IIA (section 10.1).

(c) *Inland warehouse sales.* Where a primary fish shipper ships fresh fish from his domestic established place of business at which he received the fish to his warehouse (1) which is not within Alaska, the States of Washington, Oregon or California and (2) at which he maintains full-time employees for the purpose of handling and packing fish exclusively for him—the table price for a sale of fresh fish which has been unloaded into the warehouse and is sold and distributed from the stock of such warehouse is as follows:

(i) To a wholesaler, chain store warehouse or retailer-owned cooperative wholesaler—the price listed in Column E of Table IIA (section 10.1);

(ii) To a retailer—the price listed in Column F of Table IIA (section 10.1);

(iii) To a purveyor of meals:

(*a*) If the sale involves transportation to the buyer other than local trucking, hauling or handling, or if the seller is entitled to a delivery allowance for the sale under section 4.9—the price listed in Column F of Table IIA (section 10.1) plus one cent.

(*b*) If the sale does not fall within subdivision (*a*)—the price listed in Column F of Table IIA (section 10.1).

SEC. 4.6 *Port sales*—(a) *What a port sale is.* A port sale is a wholesale sale, other than a primary fish shipper sale, of fresh fish where the sale falls within any of the following types (The seller is called a "port wholesaler" with respect to a port sale):

(1) A sale which involves delivery at or from a place other than San Francisco or Los Angeles, if such place is within 50 miles from a point where the fish was landed;

(2) A sale of fresh fish which was imported into the United States into the State of Washington and involves delivery at or from any place in the State of Washington;

(3) A sale of halibut or salmon which involves delivery at or from Alaska or Seattle;

(4) A sale of fresh fish which involves delivery from Alaska, Washington, Oregon or California to any point outside Alaska and any of the following states: Arizona, California, Colorado, Idaho, Montana, Nevada, New Mexico, Oregon, Utah, Washington and Wyoming.

(5) A sale which involves delivery at or from a place within a "port area" established for the species sold and the time of sale by the Administrator or by order pursuant to paragraph (b).

(b) *Regional designation of port areas.* Any regional office of the Office of Price Administration, or any other office which is authorized by the appropriate regional office to do so may by order designate as a port area for any species and period of time, any area within its jurisdiction in which a substantial volume of that species is landed or to which a substantial volume is shipped by producers.

(c) *Table prices for port sales.* The table price for a port sale of fresh fish is as follows:

(1) To a wholesaler, chain store warehouse or retailer-owned cooperative wholesaler—the price listed in Column B of Table IIA (section 10.1).

(2) To a distributor (other than a wholesaler, retailer or purveyor of meals):

(i) For a sale of fish for which the price in Column B of Table IIA is 10 cents or less, and for a sale of round, drawn or dressed halibut—the price listed in Column B of Table IIA (section 10.1) minus ½ cent.

(ii) Where the sale does not fall in subdivision (i)—the price listed in Column B of Table IIA (section 10.1) minus one cent.

(3) To a retailer—the price listed in Column C of Table IIA (section 10.1).

(4) To a purveyor of meals—the price listed in Column D of Table IIA (section 10.1).

SEC. 4.7 *Wholesale sales other than primary fish shipper sales and port sales*—(a) *Table prices.* The table price for a wholesale sale of fresh fish other than a primary fish shipper sale or a port sale is as follows: (but see paragraphs (b) and (c)).

(1) To another wholesaler (other than a wagon jobber), a chain store warehouse or a retailer-owned cooperative wholesaler:

(i) If the selling wholesaler makes wholesale sales of at least 20 percent of the fish which he buys from other wholesalers to persons who sell at retail or purveyors of meals—the price listed in Column E of Table IIA (section 10.1).

(ii) If the sale does not fall within subdivision (i)—the selling wholesaler must take his supplier's table prices.

(2) To a wagon jobber.

(i) If the sale and delivery is made from the wholesaler's established place of business in Washington, Oregon or California in lots containing 160 pounds or less of round, drawn or dressed halibut and/or 80 pounds or less of any other fish (except fillets or steaks) to that wagon jobber in any one day and the sale involves no transportation to the buyer—the price listed in Column E of Table IIA (section 10.1) plus ½ cent.

(ii) If the sale does not fall within subdivision (i)—the price listed in Column E of Table IIA (section 10.1).

(3) To a retailer—the price listed in Column F of Table IIA (section 10.1).

(4) To a purveyor of meals:

(i) If the sale involves transportation to the buyer other than local trucking, hauling or handling, or if he is entitled to a delivery allowance for the sale under section 4.9—the price listed in Column F of Table IIA (section 10.1) plus one cent.

(ii) If the sale does not fall within subdivision (i)—the price listed in Column F of Table IIA (section 10.1).

(b) *Certain sales to retailers and purveyors of meals at Column G prices.* The provisions of section 2.7 (b) as now or hereafter amended, applicable to sales of fresh fish listed in Table IA are hereby made applicable to sales of fresh fish listed in Table IIA, except that the provision with reference to a wholesaler buying fish from New York City does not apply.

(c) *Sales to retailers at Column G prices on permission of district offices.* The provisions of section 2.7 (c) as now or hereafter amended, applicable to sales of fresh fish listed in Table IA are hereby made applicable to sales of fresh fish listed in Table IIA.

(d) *Sales of more than 500 pounds to a customer delivered in lots of 500 pounds or less.* Where a sale is made pursuant to paragraph (b) or (c) of this section but the wholesaler sells or delivers more than 500 pounds of any one species of fresh fish to the customer on any one day, the table price for that part of such fresh fish which is shipped or delivered to any place of business or other distribution point of the customer in lots totalling 500 pounds or less in any one day is the appropriate table price provided in section 4.7 (a). The table prices in paragraphs (b) and (c) do not apply to such sales.

SEC. 4.7a *Importer sales.* (a) An importer sale is a sale of fresh fish which the seller (including the agent of a foreign shipper) imported into the United States. It also includes sales by a wholesaler or any other person of imported fish which he bought from an importing distributor (other than a wholesaler or retailer.) Such a seller is an importer with respect to such sales. The maximum prices for such sales are the table prices established for primary fish shipper sales plus all applicable allowances.

(b) *Inland warehouse sales.* Where an importing wholesaler ships imported fresh fish from his domestic established place of business at which he received the fish to his warehouse (1) which is not within Alaska, the States of Washington, Oregon or California and (2) at which he maintains fulltime employees for the purpose of handling and packing fish exclusively for him—the maximum prices for sales of fish which has been unloaded into the warehouse and is sold and distributed from the stock of such warehouse are the table prices established for inland warehouse sales (section 4.5(c)) plus all applicable allowances.

(c) *Halibut.* No person shall buy halibut landed on the Pacific Coast of Canada which halibut is intended for transshipment in bond into the United States at a price higher than the price provided for sales by producers (see (Schedule No. 4 (b), Column A of Table IIA) when the fish is bought from the producer, or the price provided for primary fish shipper sales to wholesalers (Schedule No. 4 (b), Column B of Table IIA) when bought from any wholesaler. No producer shall sell any halibut landed on the Pacific Coast of Canada from a vessel of the United States which halibut is intended for transshipment in bond to the United States at a price higher than the price for a producer's sale (see Schedule No. 4 (b), Column A of Table IIA). No person shall sell and distribute from Canada either directly or indirectly through a foreign or domestic corporation which he owns or controls any such halibut at a price higher than the price provided for a primary fish shipper sale.

(d) Notwithstanding the provisions of paragraphs (a) and (b) the maximum price which a person may charge for a sale of fish which he receives in bond from the Pacific Coast of Canada is the appropriate table price applicable to a sale of such fish purchased from a producer (where such is the case) or from a primary fish shipper (where the fish is bought or received by the seller from a distributor in Canada who otherwise qualifies as a wholesaler) plus all applicable allowances for importer sales.

SEC. 4.7b *Certain distributor sales.* The maximum price for a sale by a distributor (other than wholesaler, retailer or purveyor of meals) of fish which he bought from a primary fish shipper or port wholesaler pursuant to section 4.5 (b) (2) or section 4.6 (c) (2) is his supplier's maximum price for such sale plus any applicable allowance. (See section 1.2).

SEC. 4.8 *Sales to ultimate consumers.* The provisions of section 2.8 as now or hereafter amended, applicable to sales of fresh fish listed in Table IA are hereby made applicable to sales of fresh fish listed in Table IIA.

SEC. 4.9 *Delivery allowance.* The provisions of section 2.9 as now or hereafter amended, applicable to sales of fresh fish listed in Table IA are hereby made applicable to sales of fresh fish listed in Table IIA.

SEC. 4.10 *Custom dressing allowance.* The provisions of section 2.10 as now or hereafter amended applicable to sales of fresh fish listed in Table IA are hereby made applicable to sales of fresh fish listed in Table IIA.

SEC. 4.11 *Transportation allowance*—(a) *General.* The allowances provided by this section for transportation costs do not apply to local trucking, hauling or handling charges for which no charge may be made. No allowance taken for transportation costs pursuant to this section may exceed the common carrier rate from shipping to receiving points. Where a wholesaler further processes the fresh fish he receives before he sells it, he may add to his table price for the processed fish an amount which will enable him to recover the full allowance

provided by this section for his incoming transportation.

(b) *Wholesaler's or other distributor's incoming transportation.* Any wholesaler, or other distributor covered by section 1.2 or 4.7b who buys fresh fish from another domestic wholesaler may add to his table price the actual cost of the transportation of such fish from his seller's shipping point to his receiving point. However, no such transportation may be added for troll caught salmon transported to Seattle or Tacoma from any place other than Alaska.

(c) *Wholesalers transportation to distribution point*—(1) *Shipments to branch warehouses by wholesalers.* A wholesaler who ships fish from his principal place of business to his warehouse or other distribution point which is remote from that place of business and the sale from which is not a port sale, may add to his table price the actual cost of transportation from his place of business to that warehouse or other distribution point.

(2) *Primary fish shipper transportation of certain Alaskan fish.* A primary fish shipper who transports lingcod, sablefish, troll caught salmon, halibut, red cod or true cod landed in Alaska to any state of the United States may add to his table price the actual cost of transportation from the shipping point in Alaska to his receiving point in the United States.

(3) *Primary fish shipper's transportation of California fish.* A primary fish shipper who transports any species of fresh fish landed in California from his receiving station (including facilities for receiving, packing and shipping fish) to his principal place of business may add to his table price the actual cost of transportation from such receiving station to his principal place of business. However, he may add this transportation cost only where the receiving station is located at a point where a substantial quantity of that species of fresh fish was landed during the year preceding July 13, 1943.

(d) *Importer's incoming transportation.* An importer may add to his table price as a transportation allowance the smallest of the following:

(1) The actual transportation cost from the foreign shipper's shipping point to the importer's receiving point;

(2) The actual transportation cost to the importer's receiving point from the point at which the fish entered the United States, or the carload rail rate from the point in the United States nearest the foreign shipper's shipping point, whichever is designated by the importer;

(3) The cost of transportation for the type of shipment used to the importer's receiving point from Seattle in the case of fish imported from Canada or from San Diego, California, in the case of fish imported from Mexico.

(4) Where the importer's transportation cost from the place at which fish, imported from Canada into the State of Washington, enters the United States to the importer's receiving point is less than the transportation cost for the same type of shipment from such place of entry to Seattle the importer may add no incoming transportation.

(e) *Allowance paid by purchasing wholesaler.* A purchasing wholesaler who has paid to his domestic supplier an allowance for transportation costs pursuant to paragraphs (b), (c) or (d), may add that allowance to his table price.

(f) *Authorization to regional offices to fix transportation allowances.* The provisions of section 2.11 (f) as now or hereafter amended applicable to the transportation allowances in Article II are hereby made applicable to the transportation allowances in this Article IV.

(g) *Special rules affecting halibut.* The table price appropriate with respect to the type of sale, the style of dressing and the point of landing, plus the transportation allowance in this section shall not exceed whichever of the following three is lowest:

(1) The appropriate table price for halibut which was landed on the Pacific Coast of the continental United States (Schedule 4 (a)) plus the rail rate from Seattle to the seller's receiving point for the type of shipment used;

(2) The appropriate table price for halibut which was landed on the Pacific Coast of Canada, (Schedule 4 (b)) plus the rail rate from Prince Rupert to the seller's receiving point for the type of shipment used;

(3) The appropriate table price plus the transportation allowance as fixed in this section.

SEC. 4.12 *Container allowances.* The provisions of section 2.12 as now or hereafter amended, applicable to the container allowances in Article II are hereby made applicable to this Article IV. Any reference to sections 2.1–2.12 shall be considered a reference to sections 4.1–4.12 respectively. However, a wholesaler who otherwise qualifies for the outgoing container allowances for sales of fish other than fillets or steaks, as set out in section 2.12 (c) (2), may add that allowance for sales of round, drawn or dressed halibut where not more than 160 pounds are shipped to that customer on any one day. (See section 2.12 (c) (2) (iii).)

SEC. 4.13 *Authorization to regional office to fix prices for local varieties.* The Regional Administrator for Region VIII is hereby authorized to exercise within his region the functions, duties, powers and authority conferred upon the Price Administration for the purpose of establishing by order specific maximum prices for all sales (other than those covered by Revised Maximum Price Regulation No. 507) of fresh fish, domestic and imported, for which maximum prices have not been established in the articles of this regulation covering fresh fish, *Provided*, That:

(a) During the year preceding the issuance of the order substantially all of such fresh fish which was consumed in the United States entered the United States at or was produced within Region VIII.

(b) Substantially all of such fresh fish during the year preceding the issuance of the order was consumed within Region VIII.

(c) The maximum price fixed for producers' sales does not exceed the 1942 weighted average price for such sales.

(d) The markup established for wholesale sales does not exceed those generally prevailing during 1942.

(e) The prices established are fixed in accordance with and will effectuate the purposes of the Emergency Price Control Act of 1942, as amended, Executive Order No. 9250 and Executive Order No. 9328.

(f) The Regional Administrator shall consider the level of prices, the pattern of distribution and the allowances and deductions provided in Maximum Price Regulation No. 579.

(g) The Regional Administrator for Region VIII shall issue with each order an opinion setting out the above circumstances.

ARTICLE V—FROZEN FISH AND SEAFOOD (PACIFIC COAST SPECIES)

SEC. 5.1 *General provisions*—(a) *Scope of this article.* This article sets maximum prices for sales by processors and wholesalers of certain species of frozen fish and seafood listed in Table IIB of section 10.1. Table IIB (Pacific Coast species) lists only species which are primarily landed and frozen at Pacific Coast ports. (All frozen fish and seafood of any species and style of dressing listed are included, even though they are occasionally landed or frozen elsewhere. Frozen fish and seafood primarily landed and frozen in other areas, such as shrimp, are not included, even though they are occasionally landed and frozen at Pacific Coast ports.)

(b) *Frozen fish.* As used in this article, the words "frozen fish" mean all frozen fish and seafood of the species and styles of dressing listed in Table IIB of section 10.1, unless the context indicates otherwise.

SEC. 5.2 *Maximum prices for sales by processors and wholesalers*—(a) *Maximum prices.* The maximum price for any sale of frozen fish by a processor (defined in section 5.3) or a wholesaler (defined in section 5.4) is the table price provided for that sale (by sections 5.3 through 5.8), plus all applicable allowances (provided by sections 5.9 through 5.13), and plus or minus any applicable differentials (provided by section 5.12). If this article does not specifically provide a table price for the sale, the maximum price is the lowest table price provided by this article for any sale by that seller, plus all applicable allowances, and plus or minus any applicable differential.

(b) *Maximum prices for sales of lots of more than 500 pounds.* (1) The maximum price for sales of frozen fish (other than primary processor's sales to certain distributors covered by section 5.3 (d) (2)) which is delivered or shipped to any place of business or other distribution point of the customer in lots totalling more than 500 pounds of any one species in any one day, is the table price provided in the following subdivisions plus all applicable allowances and plus or minus any applicable differential:

(i) Sales to purveyors of meals by wholesalers who bought the fish at prices based on Column III of Table IIB (section 10.1)—the price listed in Column III of Table IIB (section 10.1) plus one cent.

(ii) All other sales—the applicable table price for sales to wholesalers.

(2) Where a customer takes delivery of more than 500 pounds of any one species of frozen fish on any one day at the seller's place of business or other distribution point, the maximum price for the sale of such fish is the applicable table price for sales to wholesalers plus all applicable allowances and plus or minus any applicable differential.

(c) *Allowances generally.* No allowance or differential (provided by sections 5.9 through 5.13) may be added by a seller to his table price unless it is separately stated on an invoice to his customer.

SEC. 5.3 *Sales by processors*—(a) *What a processor is.* A "processor" of frozen fish is a person who owns the frozen fish before it leaves the original freezer.

(b) *What a secondary processor is.* A "secondary processor" with respect to frozen fish of any species, is a person other than a producer or producer-wholesaler (defined in section 4.2), of fresh fish of that species, or a primary processor of frozen fish of the same species, who freezes fresh fish which he purchased pursuant to Article IV at the table price listed in Column B of Table IIA (section 10.1) or higher, and who normally purchases 80 percent or more of the fresh fish of that species which he freezes at the table price listed in Column B of Table IIA (section 10.1) or higher. He is a secondary processor only with respect to fish of that species purchased at such prices which he freezes. The term also includes a person other than a primary processor of the same species, who acquires such frozen fish from such secondary processor before the fish leaves the original freezer.

(c) *What a primary processor is.* (1) A processor of any frozen fish who fails to fill the requirements of paragraph (b) with respect to that frozen fish, is a primary processor of that frozen fish.

(2) A person who is a primary processor with respect to more than 20 per cent of the frozen fish of any species which he sells, is considered, for the purposes of this regulation a primary processor with respect to all the frozen fish of that species which he sells. However, he shall not be considered a processor with respect to such fish as he buys already frozen and which is shipped to him from a point more than 125 miles from his place of business.

[Paragraph (c) amended by Am. 14, effective 11-26-45]

(d) *Table prices for sales by a primary processor.* The table price for a sale of frozen fish by a primary processor, other than a sale covered in paragraph (e) is as follows:

(1) To a wholesaler, chain store warehouse or retailer-owned cooperative wholesaler—the price listed in Column I of Table IIB (section 10.1).

(2) To a distributor (other than a wholesaler, retailer or purveyor of meals):

(i) For a sale of fish for which the price in Column I of Table IIB is 10 cents or less and for a sale of round, drawn or dressed halibut—the price listed in Column I of Table IIB (section 10.1) minus ½ cent.

(ii) Where the sale does not fall within subdivision (i)—the price listed in Column I of Table IIB (section 10.1) minus one cent.

(3) To a retailer—the price listed in Column II of Table IIB (section 10.1).

(4) To a purveyor of meals:

(i) If the sale involves transportation to the buyer other than local trucking, hauling, or handling, or if the seller is entitled to a delivery allowance for the sale under section 5.9—the price listed in Column II of Table IIB (section 10.1) plus one cent.

(ii) If the sale is not covered by subdivision (i)—the price listed in Column II of Table IIB (section 10.1).

(e) *Inland warehouse sales by a primary processor.* Where a primary processor ships fish, frozen in the United States or Alaska, to a warehouse which is at least 250 miles away from the original freezer, not within Alaska, the States of Oregon, Washington or California and at which warehouse he has two or more full-time employees stationed and engaged in selling frozen fish and performing related services for him exclusively, and he sells and distributes such frozen fish from the stock of that warehouse in less-than-carload lots, his table prices for such sales are the prices listed below: *Provided, however,* That during the greater portion of the year preceding April 13, 1943, he received frozen fish of the same species at that warehouse, for the most part in carload lots, or as a portion of a whole carload lot including other species, and sold and distributed it from there for the most part in less-than-carload lots:

(1) To a wholesaler, chain-store warehouse, or retailer-owned cooperative wholesaler—the price listed in Column III of Table IIB (section 10.1) but only if such fish was received at the warehouse in carload lots, or as a portion of a whole carload lot including other species.

(2) To a retailer—the price listed in Column IV of Table IIB (section 10.1).

(3) To a purveyor of meals:

(i) If the sale involves transportation to the buyer other than local trucking, hauling or handling, or if the seller is entitled to a delivery allowance for the sale under section 5.9—the price listed in Column IV of Table IIB (section 10.1) plus one cent.

(ii) If the sale is not covered by subdivision (i)—the price listed in Column IV of Table IIB (section 10.1).

(f) *Table prices for sales by a secondary processor.* The table price for a sale of frozen fish by a secondary processor is as follows:

(1) To a wholesaler, chain-store warehouse, or retailer-owned cooperative wholesaler—the price listed in Column I of Table IIB (section 10.1).

(2) To a retailer:

(i) If the sale is made by a secondary processor who has no place of business in Alaska, the States of Oregon or Washington, and the fish is frozen at or delivered from or at, a place other than those listed above—the price listed in Column IV of Table IIB (section 10.1).

(ii) If the sale is not covered by subdivision (i)—the price listed in Column II of Table IIB (section 10.1).

(3) To a purveyor of meals:

(i) If the sale involves transportation to the buyer other than local trucking, hauling or handling, or if the seller is entitled to a delivery allowance for the sale under section 5.9—the price listed in Column IV of Table IIB (section 10.1) plus one cent.

(ii) If the sale is not covered by subdivision (i)—the price listed in Column IV of Table IIB (section 10.1).

SEC. 5.4 *Wholesale sales generally*—(a) *What "wholesale sales" and "wholesalers" are.* A person other than a processor who buys frozen fish for resale, and sells more than 20 percent of it to persons other than ultimate consumers, is a "wholesaler" with respect to all his purchases (including his purchases of fish which he sells at retail). His sales of that fish are "wholesale sales", and he is a "wholesaler" with respect to those sales, if:

(1) He sells and distributes at least 80 percent of the frozen fish he handles from the stock of his domestic established place of business (i) in which such fish has been unloaded and warehoused, (ii) at which he maintains fulltime employees for the purpose of handling and packing such fish exclusively for him, and (iii) from the stock of which he sells and distributes at least 20 percent of the frozen fish he purchases to persons who sell at retail and purveyors of meals. Except as applicable to primary distributor sales (see section 5.6), "domestic established place of business" does not include public freezing facilities: it includes only a warehouse or the freezer which is wholly owned or controlled by the seller; or

(2) He has no established place of business, and he sells and delivers such fish to a retailer or purveyor of meals, without advance order, from the stock of his motor truck or wagon in which he delivers it to the retailer's individual store or to the place of business of the purveyor of meals. (This type of wholesale sale is called a wagon jobber sale. The seller is a wagon jobber with respect to such sale.)

With the exception of the wagon jobber sale, however, if the seller does not sell and distribute at least 80 percent of his frozen fish from the stock of his domestic established place of business, he is not a wholesaler, but is a distributor whose sales are covered by section 1.2 or section 5.5 in the case of an importing distributor or section 5.6a in the case of a distributor buying from a primary fish shipper or port wholesaler.

SEC. 5.5 *Importer sales.* (a) An importer sale is a sale of frozen fish, which the seller (including the agent of a foreign shipper) imported into the United States. It also includes sales by a wholesaler or any other person of imported fish which he bought from an importing distributor (other than a wholesaler or retailer). Such a seller is an importer with respect to such sales. The maximum prices for such sales are the table

prices established for sales by primary processors plus all applicable allowances (provided by sections 5.9 through 5.13) and plus or minus any applicable differentials (provided by section 5.12).

(b) *Inland warehouse sales.* Where an importing wholesaler receives imported frozen fish at his domestic established place of business and ships such fish to another warehouse in less-than-carload lots or in carload lots which he assembled at his domestic established place of business, and such other warehouse and sales from it meet the qualifications set out in section 5.3 (e) (Inland warehouse sales by a primary processor), the maximum price for such sale is the table price established by that section plus all applicable allowances and plus or minus any applicable differentials.

(c) *Halibut.* No person shall buy frozen halibut originally landed fresh on the Pacific Coast of Canada which halibut is intended for transshipment in bond into the United States at a price higher than the price provided for sales by primary processors to wholesalers (see Schedule 4, footnote 3, Column I of Table IIB). No person shall sell or distribute from Canada either directly or indirectly through a foreign or domestic corporation which he owns or controls any such halibut at a price higher than the price provided for primary processors' sales to wholesalers.

(d) Notwithstanding the provisions of paragraphs (a) and (b) the maximum price which a person may charge for a sale of frozen fish which he receives in bond from the Pacific Coast of Canada is the appropriate table price applicable to a sale of such fish purchased from a primary processor plus all applicable allowances for an importer sale.

[Paragraphs (c) and (d) amended by Am. 9, 10 F.R. 9880, effective 8-7-45]

SEC. 5.6 *Primary distributor sales—*(a) *What a primary distributor sale is.* A sale by a wholesaler (other than an importer sale) to another wholesaler, chain-store warehouse or retailer-owned cooperative, of frozen fish purchased frozen in carload lots or as a portion of a whole carload lot including other species and distributed in the United States in less-than-carload lots, is a primary distributor sale: *Provided, however,* That the seller handled the same species of frozen fish during the year preceding April 13, 1943, and during the greater portion of that year bought in carload lots or as a portion of a whole carload lot including other species the greater portion of that species which he handled, and he distributed from an established place of business in the United States the greater portion in less-than-carload lots. The seller is called a primary distributor with respect to such sales. *Provided, further,* That a primary distributor sale shall not include a sale of frozen fish which involves delivery from or within Alaska, Washington, Oregon or California.

(b) *Table price.* The table price for a primary distributor sale is the price listed in Column III of Table IIB (section 10.1).

SEC. 5.6a *Certain distributor sales.* The maximum price for a sale by a distributor (other than a wholesaler, retailer or purveyor of meals) of fish which he bought from a primary processor pursuant to section 5.3 (d) (2) is his supplier's maximum price for such sale plus any applicable allowances.

SEC. 5.7 *Wholesale sales not covered by sections 5.5 and 5.6—*(a) *Table prices.* The table price for a wholesale sale of frozen fish which is not covered by section 5.5 or 5.6 is as follows: (but see paragraph (b)).

(1) To a wholesaler, chain-store warehouse or retailer-owned cooperative wholesaler:

(i) If the sale involves transportation from any point within 50 miles from the place where the fish was originally landed fresh or was frozen, other than San Francisco and Los Angeles, or, if the sale involves transportation from Alaska, Washington, Oregon, or California to any point outside Alaska or any of the following States: Arizona, California, Colorado, Idaho, Montana, Nevada, New Mexico, Oregon, Utah, Washington, Wyoming—the price listed in Column I of Table IIB (section 10.1).

(ii) If the sale does not fall within subdivision (i) and is made to a wagon jobber and involves delivery from the wholesaler's established place of business in Washington, Oregon or California in lots containing 160 pounds or less of round, drawn or dressed halibut and/or 80 pounds or less of any other fish (except fillets or steaks) to that wagon jobber in any one day and the sale involves no transportation to the buyer—the price listed in Column III of Table IIB (section 10.1) plus ½ cent.

(iii) If the sale does not fall within subdivisions (i) or (ii)—the price listed in Column III of Table IIB (section 10.1).

(2) To a retailer:

(i) By a retailer-owned cooperative wholesaler to an affiliated retail store—the price listed in Column IV of Table IIB (section 10.1) minus one cent.

(ii) By a wholesaler except as provided in the immediately preceding subdivision (i) if the sale involves transportation from any point within 50 miles from the place where the fish was originally landed fresh or was frozen, or if the sale involves transportation from Alaska, Washington, Oregon or California, to any point outside Alaska or any of the following States: Arizona, California, Colorado, Idaho, Montana, Nevada, New Mexico, Oregon, Utah, Washington, Wyoming—the price listed in Column II of Table IIB (section 10.1).

(iii) If the sale does not fall within subdivisions (i) or (ii)—the price listed in Column IV of Table IIB.

(3) To a purveyor of meals:

(i) If the sale involves transportation to the buyer other than local trucking, hauling, or handling, or if the seller is entitled to a delivery allowance for the sale under section 5.9—the price listed in Column IV of Table IIB (section 10.1) plus one cent.

(ii) If the sale is not covered by subdivision (i)—the price listed in Column IV of Table IIB (section 10.1).

(b) *Certain sales to retailers and purveyors of meals at Column V prices.* Notwithstanding the provisions of paragraph (a), a wholesaler who purchases frozen fish from a primary distributor, or from an inland warehouse of a processor or importer pursuant to section 5.3 (e) or section 5.5 (b) or from a wholesaler who prices on the basis of Column III (see section 5.7 (a) (1) (ii) or (iii)), may sell that fish to retailers or purveyors of meals at the following table prices:

(1) To a retailer:

(i) If the seller is a retailer-owned cooperative wholesaler (defined in section 4.4 (d)) selling to an affiliated retail store—the price listed in Column V of Table IIB (section 10.1) minus one cent.

[Subparagraph (i) amended by Am. 9, 10 F.R. 9880, effective 8-7-45]

(ii) If the seller is not a retailer-owned cooperative wholesaler—the price listed in Column V of Table IIB (section 10.1).

(2) To a purveyor of meals:

(i) If the sale involves transportation to the buyer other than local trucking, hauling or handling, or if the seller is entitled to a delivery allowance for the sale under section 5.9—the price listed in Column V of Table IIB (section 10.1) plus one cent.

(ii) If the sale does not fall within subdivision (i)—the price listed in Column V of Table IIB (section 10.1).

SEC. 5.8 *Sales to ultimate consumers.* The provisions of section 3.8 as now or hereafter amended applicable to sales of frozen fish listed in Table IB are hereby made applicable to sales of frozen fish listed in Table IIB.

SEC. 5.9 *Delivery allowance.* The provisions of section 3.9 as now or hereafter amended applicable to sales of frozen fish listed in Table IB are hereby made applicable to sales of frozen fish listed in Table IIB.

SEC. 5.10 *Custom dressing allowance.* The provisions of section 3.10 as now or hereafter amended applicable to sales of frozen fish listed in Table IB are hereby made applicable to sales of frozen fish listed in Table IIB.

SEC. 5.11 *Transportation allowance—*(a) *General.* The allowances provided by this section for transportation costs do not apply to local trucking, hauling or handling charges, for which no charges may be made. No allowance taken for transportation costs pursuant to this section may exceed the common carrier rate from shipping to receiving point.

(b) *Incoming fresh fish transportation for processors.* If a primary or secondary processor freezes fish in a place which is remote from the place where that fish was landed, he may add to his table price the per pound transportation costs, not to exceed the carload rail freight rate per pound for fresh fish (if such rate is available) from the nearest port where that species is landed, ex-vessel.

(c) *Incoming transportation for wholesalers and other distributors.* Any wholesaler or other distributor who purchases frozen fish from a domestic supplier may add to his table price the transportation cost from his supplier's shipping point to his receiving point.

(d) *Importer's incoming transportation.* Any importer of frozen fish may

add to his table price as a transportation allowance the smallest of the following:

(1) The actual transportation cost from the foreign shipper's shipping point to the importer's receiving point;

(2) The actual transportation cost to the importer's receiving point from the point at which the fish entered the United States, or the carload rail rate from the point in the United States nearest the foreign shipper's shipping point, whichever is designated by the importer;

(3) The transportation cost for the type of shipment used to the importer's receiving point from Seattle in the case of fish imported from Canada or from San Diego in the case of fish imported from Mexico.

(4) Where the importer's transportation cost from the place at which fish, imported from Canada into the State of Washington, enters the United States to the importer's receiving point is less than the transportation cost for the same type of shipment from such place of entry to Seattle, the importer may add no incoming transportation.

(e) *Outgoing transportation for processors, wholesalers, and distributors.* Any processor, wholesaler, or other distributor, not including an importer, who ships frozen fish from one of his warehouses to another of his warehouses or to his distribution point which is remote from his shipping point and from the original freezing point, may add to his table price for frozen fish distributed from or at that remote warehouse, or other distribution point, the transportation cost from the shipping point nearest the first warehouse to such remote warehouse or other distribution point.

(f) *Allowance paid by purchasing wholesaler.* A purchasing wholesaler who has paid to his domestic supplier a transportation allowance authorized by paragraphs (a), (b), (c), (d), or (e) may add that allowance to his table price.

(g) A wholesaler who further processes the frozen fish he receives before he sells it, may add to his table price for the processed fish an amount which will enable him to recover the full incoming transportation allowance provided by paragraph (c), (d) or (f).

(h) *Mileage allowance for wholesalers.* Any wholesaler of frozen fish may add to his table price for sales to retailers and purveyors of meals 25 percent of the carload freight charge to his receiving point from Seattle or Astoria, whichever is least.

(i) *Authorization to regional offices to fix transportation allowances.* The provisions of section 3.11 (i) as now or hereafter amended applicable to the transportation allowances in Article III are hereby made applicable to the transportation allowances in this Article V.

(j) *Special rules affecting halibut—*(1) *Sales of halibut in the East.* Where any person sells or delivers halibut from a distribution point located outside Arizona, California, Colorado, Idaho, Montana, Nevada, New Mexico, Oregon, Utah, Washington, and Wyoming, the table price (listed in Table IIB) appropriate with respect to the type of sale, the style of dressing and the point of landing plus the transportation allowance in this section shall not exceed whichever of the following is lower:

(i) The appropriate table price for frozen halibut which was originally landed fresh on the Pacific Coast of Canada plus the rail rate for frozen fish for the type of shipment used from Prince Rupert, B. C., to the seller's distribution point; or

(ii) The appropriate table price with respect to the point of landing plus the transportation allowance fixed in this section.

(2) *Sales of frozen halibut to government agencies.* The maximum price for a sale of frozen halibut f. o. b. Seattle to any government agency is the price applicable to frozen halibut originally landed fresh on the Pacific Coast of continental United States and listed in Column I of Table IIB. This price applies only where frozen halibut is packed according to specifications of the buying government agency. No transportation, container or other charge may be added to this maximum price.

SEC. 5.12 *Container differentials and allowances.* The provisions of section 3.12 as now or hereafter amended applicable to the container allowances and differentials in Article III are hereby made applicable to this Article V. Any reference to sections 3.1–3.12 shall be considered a reference to sections 5.1–5.12 respectively. However, a wholesaler who otherwise qualifies for the allowance for less than box lot shipments to retailers or purveyors of meals as set out in section 3.12 (b) may add that allowance for sales of round, drawn, or dressed halibut where not more than 160 pounds are shipped to that customer on any one day.

SEC. 5.12a *Winter allowance for certain items of frozen fish.* (a) Any person making a sale of any of the items listed in paragraph (c) may add to the appropriate table price the applicable amount listed in that paragraph, but only if:

(1) Such fish has been landed and frozen in the United States. (This allowance may not be added for imported fish.)

(2) The seller has since September 30, 1945 sold without adding this allowance (on the basis of the summer prices) an amount equal to his inventory on September 30, 1945 plus an amount equal to his total domestic purchases of the item made since that date on the basis of the summer prices and his total imports of the item.

(3) The seller has complied fully with the reporting requirements in paragraph (b).

(4) The seller (other than a processor) has received an invoice setting out this allowance separately. (The allowance must be stated on the invoice pursuant to section 5.2 (c).)

(5) The seller has added no storage alowance under section 5.13 (b).

(6) Such fish is delivered to the customer prior to May 1, 1946 in the case of a sale by a processor and prior to May 16, 1946 in the case of a sale by a wholesaler.

(b) *Reporting requirements.* The allowances provided in this section 5.12a may not be added unless and until the seller has filed with the Office of Price Administration, Washington, D. C., the following information:

(1) His inventory of any of the listed items on hand on September 30, 1945 where such inventory is over 1000 pounds.

(2) Monthly reports of his inventory of any of these items on hand at the end of the last day of each month beginning with October 31, 1945.

(3) Monthly reports of the quantity of each of these items purchased during each month beginning with the month of October 1945 (i) at prices including the allowances (winter prices), (ii) at prices not including the allowances (summer prices) and (iii) as imports. For each purchase of more than 500 pounds, the name and address of the person from whom the purchase was made, the price paid and the freezers or other places of business from which delivery was made and to which delivery was made must be set out.

(4) Monthly reports of the quantity of each of these items sold during each month beginning with the month of October (i) at winter prices, (ii) at summer prices. For each sale of more than 500 pounds, the name and address of the customer, the price charged and the freezers or other places of business to which delivery was made and from which delivery was made must be set out.

(5) Each report must be signed, dated and must contain the name and address of the person reporting. In the case of the inventory reports provided by Nos. 1 and 2 the report must contain the addresses of the places in which the inventories are stored stating separately the amount stored in each place. All monthly reports must be filed with the Office of Price Administration at Washington, D. C., before the 10th of each month. A seller must file monthly reports required by Nos. 2 through 4 with respect to any item only where his inventory (amount he owns) of the item for which no winter allowance may be added exceeds 1000 pounds at any time during the month for which or for the end of which a report is required. Note, however, that all sellers whether or not they must file reports can take the allowance only if they meet all the requirements of paragraph (a). All sellers must of course, keep records in accordance with section 1.6.

(c) *Amount of allowances.*

Item:	*Addition (cents)*
Lingcod fillets	3¾
Lingcod steaks	1½
True cod fillets	5
Soles and flounder fillets	3

[Sec. 5.12a added by Am. 13, 10 F.R. 13403, effective 11-1-45]

SEC. 5.13 *Storage allowances*—(a) *Inland storage.* For certain distributor sales priced in section 5.6a, inland warehouse sales, primary distributor sales, and other wholesale sales priced on the basis of Column III or IV, the seller may add ½ cent per pound to the applicable table price if the seller has previous to the sale stored the fish in a freezer other than the original freezer. However, where a wholesaler pricing on the basis of Column III or IV has paid a storage charge pursuant to this paragraph (a), he may pass on such charge to his customer but may not himself add an additional charge for storage under this paragraph.

(b) *Winter storage.* Any person making a sale of the listed species of fish in the listed styles of dressing during the listed months may add to the appropriate table price the applicable amount:

Species	Style of dressing	Sept.	Oct.	Nov.	Dec.	Jan.	Feb.	Mar.	Apr.
Lingcod, True Cod, Silver Smelt	All	¼	½	¾	1	1¼	1½	1¾	2
Flounder, Dover Sole, English Sole, Petrale Sole, Rex Sole, Sand Sole, Turbot Sole.	Fillets or dressed and skinned.	¼	½	¾	1	1¼	1½	1¾	2
Flounder, Dover Sole, English Sole, Petrale Sole, Rex Sole, Sand Sole, Turbot Sole.	Round or dressed	¼	½	¾	1	1	1	1	1
Chinook or King Salmon	All	0	0	0	0	¼	½	¾	0

SEC. 5.14 *Authorization to regional office to fix prices for local varieties.* See Revised General Order No. 32—Amendment 19.

[Sec. 4.1 through 5.14 added by Am. 8, 10 F.R. 9432, effective 8-15-45 (effective date amended by Am. 9, 10 F.R. 9880, effective 8-7-45); amended as otherwise noted]

ARTICLE X—TABLES

SEC. 10.1 *Tables of prices*—(a) *Table IA—North Atlantic fresh fish and seafood maximum prices in cents per pound.* The following are the table prices applicable to various types of producer and wholesaler items. Under certain circumstances one or more allowances may be added to these table prices as indicated below:

[Section heading amended by Am. 14, effective 11-26-45]

PRODUCER ALLOWANCE

Boxed fish—See section 2.2 (b)

WHOLESALER ALLOWANCE

Containers—See section 2.12
Transportation—See section 2.11
Delivery to retailers and purveyors of meals—See section 2.9
Custom dressing on sales to purveyors of meals—See section 2.10

Column
A—Producer Sales.
B—Port and Primary Fish Shipper Sales to Wholesalers and Chain Store Warehouses.
C—Port Sales to Retailers and Primary Fish Shipper Sales to Retailers and Purveyors of Meals.
D—Port Sales to Purveyors of Meals (Other than Primary Fish Shipper Sales).
E—Non-Port Wholesaler Sales to other Wholesalers and Chain Store Warehouses.
F—Non-Port Wholesaler Sales to Retailers and Purveyors of Meals. (On common carrier shipments and delivered sales to purveyors of meals add 1 cent per pound to these prices. See section 2.7 (a) (3) (i).)
G—Certain Other Wholesaler Sales to Retailers and Purveyors of Meals—See section 2.7 (b) (On common carrier shipments and delivered sales to purveyors of meals add 1 cent per pound to these prices.)

ARTICLE X—TABLES—continued

Sched. No.	Species	Item No.	Style of dressing	Size	Season	A	B	C	D	E	F	G
1	Alewives and Sea Herring.	1	Round	All	All year	1¼	2¼	3	4¾	3¼	4¼	5¼
2	Codfish [1] Atlantic.	1	Drawn	Under 2½#	Apr.-Sept.	5½	7	7¾	9¾	8	9¼	10¼
		2	Drawn	2½ to 10#	Apr.-Sept.	6	7½	8¼	10¼	8½	9¾	10¾
		3	Drawn	10 to 25#	Apr.-Sept.	6½	8	8¾	10¾	9	10¾	11¾
		4	Drawn	25# & up	Apr.-Sept.	6	7½	8¼	10¼	8½	9¾	10¾
		5	Dressed	5 to 10#	Apr.-Sept.	8	9½	10½	12½	10¾	12	13¼
		6	Dressed	10 to 25#	Apr.-Sept.	8¾	10½	11¼	13½	11¾	13	14¼
		7	Dressed	25# & up	Apr.-Sept.	8	9½	10½	12¼	10¾	12	13¼
		8	Round	Under 1½#	Apr.-Sept.	2	3	3¾	5½	4	5	6
		9	Round	1½ to 2½#	Apr.-Sept.	3	4	4¾	6½	5	6	7
		10	Round	2½ to 10#	Apr.-Sept.	3½	4¾	5½	7¼	5¾	6¾	7¾
		11	Round	10 to 25#	Apr.-Sept.	4	5¼	6	7¾	6¼	7¼	8¼
		12	Round	25# and up	Apr.-Sept.	3½	4¾	5½	7¼	5¾	6¾	7¾
		13	Fillets (skin on).	All	Apr.-Sept.	.....	20½	22	24¾	22½	24¼	26¼
		14	Fillets (skinless).	All	Apr.-Sept.	.....	23	24½	27¼	25	26¾	28¾
		15	Steaks	All	Apr.-Sept.	.....	16½	17¾	20¼	18	19¾	21¼
		1	Drawn	Under 2½#	Oct.-Mar.	7	8½	9¼	11¼	9½	10¾	11¾
		2	Drawn	2½ to 10#	Oct.-Mar.	8	9½	10½	12¼	10½	11¾	12¾
		3	Drawn	10 to 25#	Oct.-Mar.	8½	10	11	12¾	11	12¼	13¼
		4	Drawn	25# and up	Oct.-Mar.	8	9½	10½	12¼	10½	11¾	12¾
		5	Dressed	5 to 10#	Oct.-Mar.	10¾	12½	13½	15¾	13¾	15¼	16½
		6	Dressed	10 to 25#	Oct.-Mar.	11¾	13	14	16¼	14¼	15¾	17
		7	Dressed	25# and up	Oct.-Mar.	10¾	12½	13½	15¾	13¾	15¼	16½
		8	Round	Under 1½#	Oct.-Mar.	3	4	4¾	6½	5	6	7
		9	Round	1½ to 2½#	Oct.-Mar.	4	5¼	6	8	6¼	7½	8½
		10	Round	2½ to 10#	Oct.-Mar.	5	6¼	7	9	7¼	8½	9½
		11	Round	10 to 25#	Oct.-Mar.	5½	6¾	7½	9½	7¾	9	10
		12	Round	25# and up	Oct.-Mar.	5	6¼	7	9	7¼	8½	9½
		13	Fillets (skin on).	All	Oct.-Mar.	.....	25¼	26¾	29½	27¼	29	31
		14	Fillets (skinless).	All	Oct.-Mar.	.....	27¾	29¼	32	29¾	31½	33½
		15	Steaks	All	Oct.-Mar.	.....	19½	21	23¼	21½	23¼	25¼
3	Cusk [1]	1	Drawn	All	Apr.-Sept.	5½	7	7¾	9¾	8	9¼	10¼
		2	Dressed	All	Apr.-Sept.	.....	9	9¾	11¾	10	11¼	12¼
		3	Fillets	All	Apr.-Sept.	.....	19¾	21¾	24	21¾	23½	25½
		1	Drawn	All	Oct.-Mar.	7½	9	9¾	11¾	10	11¼	12¼
		2	Dressed	All	Oct.-Mar.	.....	12	13	15¼	13¼	14¾	16
		3	Fillets	All	Oct.-Mar.	.....	24¾	26¾	29	26¾	28½	30½
4	Blackback [1]	1	Round	All	Apr.-Nov.	7	8	9	10¾	9	10¼	11¼
		2	Dressed	All	Apr.-Nov.	.....	11½	13	14¾	12¾	14¼	15½
		3	Fillets	All	Apr.-Sept.	.....	23½	25	27¾	25½	27¼	29¼
		1	Round	All	Dec.-Mar.	10	11½	13	14¾	12¾	14¼	15½
		2	Dressed	All	Dec.-Mar.	.....	15½	17	19¼	17	18¾	20¼
		3	Fillets	All	Oct.-Mar.	.....	30½	32	35½	33	35	37½
5	Dab, sea [1] and Yellowtail. [1]	1	Round	All	Apr.-Sept.	4½	5½	6½	8¼	6½	7¾	8¾
		2	Dressed	All	Apr.-Sept.	.....	8½	9½	11¾	9½	10¾	11¾
		3	Fillets	All	Apr.-Sept.	.....	23½	25	27¾	25½	27¼	29¼
		1	Round	All	Oct.-Mar.	6½	7½	8½	10¼	8½	9¾	10¾
		2	Dressed	All	Oct.-Mar.	.....	11	12½	14¼	12¼	13¾	15
		3	Fillets	All	Oct.-Mar.	.....	30½	32	35½	33	35	37½
6	Fluke	1	Fillets	All	Apr.-Sept.	.....	23½	25	27¾	25½	27¼	29¼
			Fillets	All	Oct.-Mar.	.....	30½	32	35½	33	35	37½
7	Haddock [1]	1	Drawn	Under 2½#	Apr.-Sept.	6½	8	8¾	10¾	9	10¼	11¼
		2	Drawn	2½# and up	Apr.-Sept.	7	8½	9¼	11¼	9½	10¾	11¾
		3	Round	Under 1½#	Apr.-Sept.	2	3	3¾	5½	4	5	6
		4	Round	1½# to 2½#	Apr.-Sept.	3¾	5	5¾	7¾	6	7¼	8¼
		5	Round	2½# and up	Apr.-Sept.	4¼	5½	6¼	8¼	6½	7¾	8¾
		6	Dressed	Under 2½#	Apr.-Sept.	.....	10	11	13¼	11¼	12¾	14
		7	Dressed	2½# up	Apr.-Sept.	.....	10¾	11¾	14	12	13½	14¾
		8	Fillets	All	Apr.-Sept.	.....	23	24½	27¼	25	26¾	28¾
		1	Drawn	Under 2½#	Oct.-Mar.	8½	10¼	11¼	13½	11½	13	14¼
		2	Drawn	2½# up	Oct.-Mar.	9	10¾	11¾	14	12	13½	14¾
		3	Round	Under 1½#	Oct.-Mar.	3	4	4¾	6½	5	6	7
		4	Round	1½ to 2½#	Oct.-Mar.	5¼	6½	7¼	9¼	7½	8¾	9¾
		5	Round	2½# up	Oct.-Mar.	5¾	7	7¾	9¾	8	9¼	10¾
		6	Dressed	Under 2½#	Oct.-Mar.	.....	12½	13½	15¾	13¾	15¼	16½
		7	Dressed	2½# up	Oct.-Mar.	.....	13¼	14¼	16½	14½	16	17¼
		8	Fillets	All	Oct.-Mar.	.....	27¾	29¼	32	29¾	31½	33½

See footnotes end of table.

ARTICLE X—TABLES—continued

Sched. No.	Species	Item No.	Style of dressing	Size	Season	A	B	C	D	E	F	G
8	Hake [1]	1	Dressed	Under 2½#	Apr.-Sept.	4½	6	6¾	8¾	7	8¼	9¼
		2	Dressed	2½# up	Apr.-Sept.	6½	8	8¾	10¾	9	10¾	11¾
		3	Round	Under 1½#	Apr.-Sept.	2	3	3¾	5½	4	5	6
		4	Round	1½ to 2½#	Apr.-Sept.	2¾	3¼	4	5¾	4¼	5¼	6¼
		5	Round	2½# up	Apr.-Sept.	3¼	4¼	5	6¾	5¼	6¼	7¼
		6	Fillets	All	Apr.-Sept.	-----	19	20½	22¾	20½	22¼	23¾
		1	Dressed	Under 2½#	Oct.-Mar.	6½	8	8¾	10¾	9	10¾	11¾
		2	Dressed	2½# up	Oct.-Mar.	8½	10	11	13¼	11¼	12¾	14
		3	Round	Under 1½#	Oct.-Mar.	3	4	4¾	6½	5	6	7
		4	Round	1½ to 2½#	Oct.-Mar.	3¼	4¼	5	6¾	5¼	6¼	7¼
		5	Round	2½# up	Oct.-Mar.	4¼	5½	6¼	8¼	6½	7¾	8¾
		6	Fillets	All	Oct.-Mar.	-----	23	24½	27¼	25	26¾	28¾
9	Hake, mud [1] [3]	1	Round	All	Apr.-Sept.	2	3	3¾	5½	4	5	6
		2	Drawn	All	Apr.-Sept.	-----	3¾	4½	6¼	4¾	5¾	6¾
		1	Round	All	Oct.-Mar.	3	4	4¾	6½	5	6	7
		2	Drawn	All	Oct.-Mar.	-----	5	5¾	7¾	6	7¼	8¼
10	Pollock	1	Drawn	All	Apr.-Nov.	5	6½	7¼	9¼	7½	8¾	9¾
		2	Round	Under 1½#	Apr.-Nov.	2¾	3¼	4	5¾	4¼	5¼	6¼
		3	Round	1½# to 2½#	Apr.-Nov.	3	4	4¾	6½	5	6	7
		4	Round	2½# up	Apr.-Nov.	3¾	4¾	5½	7¼	5¾	6¾	7¾
		5	Dressed	All	Apr.-Nov.	-----	8	8¾	10¾	9	10¼	11¼
		6	Fillets	All	Apr.-Nov.	-----	16	17½	19¾	17½	19¼	20¾
		1	Drawn	All	Dec.-Mar.	7	8½	9¼	11¼	9½	10¾	11¾
		2	Round	Under 1½#	Dec.-Mar.	3	4	4¾	6½	5	6	7
		3	Round	1½ to 2½#	Dec.-Mar.	4½	6	6¾	8¾	7	8¼	9¼
		4	Round	2½# up	Dec.-Mar.	5½	7	7¾	9¾	8	9¼	10¼
		5	Dressed	All	Dec.-Mar.	-----	10¾	11¾	14	12	13½	14¾
		6	Fillets	All	Dec.-Mar.	-----	20	21½	24¼	22	23¾	25¾
11	Pout, ocean (eel pout or conger eel).	1	Round	All	All year	3	4	4¾	6½	5	6	7
		2	Fillets	All	All year	-----	18	19¼	21¾	19½	21¼	22¾
12	Rajafish (skate)	1	Round	All	All year	1	2	2¾	4½	3	4	5
		2	Saddles	All	All year	2½	3½	4¼	6	4½	5½	6½
		3	Wings	All	All year	3½	4½	5¼	7	5½	6½	7½
13	Rosefish	1	Round	All	Apr.-Sept.	3¾	5¼	6	8	6¾	7½	8½
		2	Fillets	All	Apr.-Sept.	-----	20	21½	24¼	22	23¾	25¾
		1	Round	All	Oct.-Mar.	4¼	5¾	6½	8½	6¾	8	9
		2	Fillets	All	Oct.-Mar.	-----	22	23½	26¾	24	25¾	27¾
14	Scallops, sea	1	Meats	All	Apr.-Sept.	30	33	34½	38	35½	37½	40
		1	Meats	All	Oct.-Mar.	38	41½	43	47	44½	46½	49½
*15	Scallops, bay	1	Meats	All	All year	48	52	53½	58	55½	57½	61
16	Sole, gray [1]	1	Round	All	Apr.-Sept.	7	8½	9¼	11¼	9½	10¾	11¾
		2	Fillets [2]	All	Apr.-Sept.	-----	33	34½	38	35½	37½	40
		1	Round	All	Oct.-Mar.	9	10¾	11¾	14	12	13½	14¾
		2	Fillets [2]	All	Oct.-Mar.	-----	39½	41	45	42½	44½	47½
17	Sole, lemon [1]	1	Round	All	Apr.-Sept.	10	11¾	12¾	15	13	14½	15¾
		2	Fillets [2]	All	Apr.-Sept.	-----	43¾	45¾	49¼	46¾	48¾	51¾
		3	Dressed	All	Apr.-Sept.	-----	15½	17	19¼	17	18¾	20¼
		1	Round	All	Oct.-Mar.	16	18	19¼	21¾	19½	21¼	22¾
		2	Fillets [2]	All	Oct.-Mar.	-----	63	64½	69½	67	69	73
		3	Dressed	All	Oct.-Mar.	-----	24	25½	28¾	26	27¾	29¾
18	Swordfish	1	Dressed, tail off.	All	All year	30	33	34½	38	35½	37½	40
		2	Cuts, center	All	All year	-----	35¼	36¾	40¼	37¾	39¾	42¼
		3	Cuts, head	All	All year	-----	32¼	33¾	37¼	34¾	36¾	39¼
		4	Cuts, tail	All	All year	-----	32¼	33¾	37¼	34¾	36¾	39¼
		5	Steaks, individual.	All	All year	-----	46	47½	51½	49	51	54

See footnotes at end of table.

ARTICLE X—TABLES—continued

Sched. No.	Species	Item No.	Style of dressing	Size	Season	A	B	C	D	E	F	G
19	Whiting	1	Round	All	May-Oct.	2	3	3¾	5½	4	5	6
		2	Dressed	All	May-Oct.	4½	6	6¾	8¾	7	8¼	9¼
		3	Dressed and scaled.	All	May-Oct.	-----	6½	7¾	9¼	7½	8¾	9¾
		4	Dressed and skinned.	All	May-Oct.	-----	14½	15¾	18¼	16	17¾	19¼
		5	Fillets, butterfly.	All	May-Oct.	-----	14¾	16	18½	16¾	18	19½
		6	Fillets, regular.	All	May-Oct.	-----	15¾	17	19½	17¾	19	20½
		1	Round	All	Nov.-Apr.	3½	4½	5½	7	5½	6½	7½
		2	Dressed	All	Nov.-Apr.	6¼	7¾	8½	10½	8¾	10	11
		3	Dressed and sealed.	All	Nov.-Apr.	-----	8¼	9	11	9¼	10½	11¾
		4	Dressed and skinned.	All	Nov.-Apr.	-----	17½	18¾	21¼	19	20¾	22¼
		5	Fillets, butterfly.	All	Nov.-Apr.	-----	17½	18¾	21¼	19	20¾	22¼
		6	Fillets, regular.	All	Nov.-Apr.	-----	18½	19¾	22¼	20	21¾	23¼
20	Wolffish	1	Drawn	All	Apr.-Sept.	4½	6	6¾	8¾	7	8¾	9¾
		2	Dressed	All	Apr.-Sept.	-----	7¾	8½	10½	8¾	10	11
		3	Dressed and skinned.	All	Apr.-Sept.	-----	15½	16¾	19¾	17	18¾	20¼
		4	Fillets	All	Apr.-Sept.	-----	21	22½	25¼	23	24¾	26¾
		1	Drawn	All	Oct.-Mar.	7½	9	9¾	11¾	10	11¾	12¾
		2	Dressed	All	Oct.-Mar.	-----	12	13	15¾	13¼	14¾	16
		3	Dressed and skinned.	All	Oct.-Mar.	-----	23	24½	27¼	25	26¾	28¾
		4	Fillets	All	Oct.-Mar.	-----	30¼	31¾	35¼	32¾	34¾	37¼
23	Salmon, Atlantic.	1	Round	All	All year	-----	21½	23	25¾	23½	25¼	27¼
		2	Drawn	All	All year	-----	24½	26	28¾	26½	28¼	30¼
		3	Dressed	All	All year	-----	27	28½	31¼	29	30¾	32¾
		4	Steaks	All	All year	-----	31½	33	36½	34	36	38½

[1] Add 1 cent per pound when these species are landed ex-vessel in or shipped by a producer (other than a producer who is also a wholesaler under section 2.2 (d)) to New York City. Any seller other than the producer, who processes this fish (and any subsequent purchaser) may add to his table price for the processed fish that amount which will enable him to recover the full amount of the addition paid for the particular lot of fish involved in the processing.

[2] Prices listed for these fillets apply only if they are wrapped and marked as gray sole or lemon sole, whichever is the case; otherwise the applicable prices are those listed for yellowtail and sea dab fillets in Item 3 of Schedule No. 5.

[3] The prices listed for hake fillets in Schedule No. 8 also apply to mud hake fillets.

[Footnote 1 amended by Am. 4. Footnote 3 added by Am. 6, 10 F.R. 5905, effective 5-22-45]

[*Schedule 15 amended by Am. 14, effective 11-26-45]

[Above table amended by Am. 4, 10 F.R. 4348, effective 4-28-45; Am. 7, 10 F.R. 8658, effective 7-16-45; and Am. 11, 10 F.R. 12403, effective 10-1-45]

(b) *Table IB—North Atlantic frozen fish and seafood maximum prices in cents per pound.* The following are the table prices applicable to various types of processor and wholesaler sales. Under certain circumstances one or more adjustments of these table prices must be made to determine maximum prices.

Adjustments

Container allowances and differentials	See section 3.12
Transportation allowances	See section 3.11
Storage allowances	See section 3.13
Delivery allowance on sales to retailers and purveyors of meals	See section 3.9
Custom-dressing allowance on sales to purveyors of meals	See section 3.10

ARTICLE X—TABLES—continued

Adjustments—Continued

Column

I. Processor Sales to Wholesalers and Chain Store Warehouses.

II. Processor Sales to Retailers and Purveyors of Meals.

III. Primary Distributor Sales to Wholesalers and Chain Store Warehouses. (When placed in storage add ½ cent per pound to these prices. See section 3.13 (a).)

IV. Wholesaler Sales to Retailers and Purveyors of Meals. (When placed in storage add ½ cent per pound to these prices. See section 3.13 (a).) (On common carrier shipments and delivered sales to purveyors of meals add ½ cent per pound to these prices. See section 3.7 (a) (3) (i).)

V. Certain Other Wholesaler Sales to Retailers and Purveyors of Meals. See section 3.7 (b). (On common carrier shipments and delivered sales to purveyors of meals add ½ cent per pound to these prices. See section 3.7 (b) (2) (i).)

Sched. No.	Species	Item No.	Style of dressing	Size	I	II	III	IV	V
1	Alewives and sea herring	1	Round	All	4¼	5	5¼	6¼	7¾
		2	Fillets	All	11	12	12	13¼	14¾
2	Codfish, Atlantic	1	Drawn	Under 2½#	9	9¾	10	11¼	12¾
		2	Drawn	2½# and up	9½	10¾	10½	11¾	13¼
		3	Dressed	2½# to 10#	11½	12½	12¾	14	15¾
		4	Dressed	10 to 25#	12½	13½	13¾	15	16¾
		5	Dressed	25# and up	11½	12½	12¾	14	15¾
		6	Steaks (sliced)	All	18	19¼	19½	21¼	23¼
		7	Fillets (skin on)	All	22	23½	24	25¾	28¼
		8	Fillets (skinless)	All	24½	26	26½	28¼	30¾
3	Cusk	1	Drawn	All	9	9¾	10	11¼	12¾
		2	Dressed	All	11	12	12	13¼	14¾
		3	Fillets	All	21¼	22¾	23¼	25	27½
4	Blackback	1	Round	All	10	11	11	12¼	13¾
		2	Dressed	All	13½	14½	14¾	16¼	17¾
		3	Fillets	All	25	26½	27	28¾	31¼
5	Dab, sea and yellow tail	1	Round	All	7½	8¼	8½	9¾	11¼
		2	Dressed	All	10½	11½	11½	12¾	14¼
		3	Fillets	All	25	26½	27	28¾	31¼
6	Fluke	1	Fillets	All	25	26½	27	28¾	31¼
7	Haddock	1	Drawn	Under 2½#	10	11	11	12¼	13¾
		2	Drawn	2½# and up	10½	11½	11½	12¾	14¼
		3	Dressed	Under 2½#	12	13	13¼	14¾	16½
		4	Dressed	2½# and up	12¾	13¾	14	15½	17¼
		5	Fillets	All	24½	26	26½	28¾	30¾
8	Hake	1	Dressed	Under 2½#	8	8¾	9	10¼	11¾
		2	Dressed	2½# and up	10	11	11	12¼	13¾
		3	Fillets	All	20½	22	22	23¾	25¾
9	Hake, mud [4]	1	Drawn	All	5¾	6½	6¾	7¾	9¼
10	Pollock	1	Drawn	All	8½	9¼	9½	10¾	12¼
		2	Round	Under 1½#	5¼	6	6¼	7¼	8¾
		3	Round	1½# to 2½#	6	6¾	7	8	9½
		4	Round	2½# up	6¾	7½	7¾	8¾	10¼
		5	Dressed	All	10	11	11	12¼	13¾
		6	Fillets	All	17½	18¾	19	20¾	22¾
11	Pout, ocean (eel pout or conger eel).	1	Round	All	6	6¾	7	8	9¼
		2	Drawn	All	7½	8¼	8½	9¾	11¼
		3	Dressed and skinned	All	10	11	11	12¼	13¾
		4	Fillets	All	20	21¾	21½	23¼	25¼
12	Rajafish (skate)	1	Round	All	4	4¾	5	6	7½
		2	Saddles	All	5½	6¼	6½	7½	9
		3	Wings	All	6½	7¼	7½	8½	10
13	Rosefish:								
	(Apr.-Sept.) [1]	1	Fillets	All	22½	24	24½	26¼	28¾
	(Oct.-Mar.) [1]	2	Fillets	All	24¼	25¾	26¾	28	30½
	All year	3	Round	All	6¾	7½	7¾	8¾	10¼

See footnotes at end of table.

ARTICLE X—TABLES—continued

Sched. No.	Species	Item No.	Style of dressing	Size	I	II	III	IV	V
14	Scallops, sea [2]	1	Meats	All	35	36½	37½	39½	42½
*15	Scallops, bay [2]	1	Meats	All	54	55½	57½	59½	63½
16	Sole, gray	1	Round	All	10½	11½	11½	12¾	14¼
		2	Fillets [3]	All	34½	36	37	39	42
17	Sole, lemon	1	Round	All	11½	12½	12½	13¾	15¼
		2	Fillets [3]	All	38¾	40¼	41¼	43¼	46¼
		3	Dressed	All	17½	18¾	19	20¾	22¾
18	Swordfish	1	Dressed, tail off	All	35	36½	37½	39½	42½
		2	Cuts, center	All	37¼	38¾	39¾	41¾	44¾
		3	Cuts, head	All	34¼	35¾	36¾	38¾	41¾
		4	Cuts, tail	All	34¼	35¾	36¾	38¾	41¾
		5	Steaks, individual	All	48	49½	51	53	56½
19	Whiting	1	Round	All	5¼	6	6¾	7¾	8¾
		2	Dressed	All	8	8¾	9	10¾	11¾
		3	Dressed and scaled	All	8½	9¼	9½	10¾	12¼
		4	Dressed and skinned	All	16¾	18	18¾	20	22
		5	Fillets, butterfly	All	15¾	17	17¼	19	21
		6	Fillets, regular	All	16¾	18	18¼	20	22
20	Wolffish	1	Drawn	All	8	8¾	9	10¼	11¾
		2	Dressed	All	9¾	10½	10¾	12	13½
		3	Dressed and skinned	All	17½	18¾	19	20¾	22¾
		4	Fillets	All	22½	24	24½	26¼	28¾
		5	Chunks	All	20	21½	21½	23¼	25¾
21	Mackerel, Atlantic	1	Round	Under ½#	6	6¾	7	8	9½
		2	Round	½ to 1#	8	8¾	9	10¼	11¾
		3	Round	1 to 1½#	10	11	11	12¼	13¾
		4	Round	1½# and up	11	12	12	13¼	14¾
		5	Fillets	All	20	21½	21½	23¼	25¾
22	Eel, common	1	Round	All	11	12	12	13¾	14¾
		2	Drawn	All	13	14	14¼	15¾	17½
		3	Dressed and skinned	All	18	19¼	19½	21¾	23¾
23	Salmon, Atlantic	1	Round	All	22½	24	24½	26¼	28¾
		2	Drawn	All	25½	27	27½	29¼	31¾
		3	Dressed	All	28	29½	30	31¾	34¼
		4	Steaks	All	32½	34	35	37	40

[1] No processor shall sell rosefish fillets between October 1 and April 1 on the basis of the winter prices (Item 2) until he shall have sold on the basis of the summer prices (Item 1) an amount equal to his inventory at the close of business on the last business day in September.

A wholesaler must sell on the basis of the summer prices (Item 1) all frozen rosefish fillets bought on the basis of the summer prices (Item 1).

A processor may sell or deliver rosefish fillets frozen between October 1 and April 1, on the basis of the prices listed for Item 2 through April 7. A wholesaler who buys such rosefish fillets may sell them on the basis of the prices listed for Item 2 through April 14.

All other sales of rosefish fillets must be made on the basis of the summer prices (Item 1).

[2] When scallops are frozen in scallop bags, deduct 1½ cents per pound from the appropriate table price.

[3] Prices listed for these fillets apply only if they are wrapped and marked as gray sole or lemon sole, whichever is the case; otherwise the applicable prices are those listed for yellowtail and sea dab fillets in Item 3 of Schedule No. 5.

[4] The prices listed for hake fillets in Schedule No. 8 also apply to mud hake fillets.

[Footnote 1 amended by Am. 2, 10 F.R. 3555, effective 4–1–45. Footnote 4 added by Am. 6, 10 F.R. 5905, effective 5–22–45]

[*Schedule 15 amended by Am. 14, effective 11–26–45]

[Table amended by Am. 2, Am. 4, Am. 7, 10 F.R. 8658, effective 7–16–45; Am. 11, 10 F.R. 12403, effective 10–1–45; and Am. 12, 10 F.R. 12650, effective 10–4–45]

(c) TABLE IIA—PACIFIC COAST FRESH FISH AND SEAFOOD MAXIMUM PRICES IN CENTS PER POUND

Sched. No.	Species	Item No.	Style of dressing	Size	Season	A	B	C	D	E	F	G
	COD SPECIES											
1	Lingcod [1]	1	Round	All	May-Aug	5½	7½	8½	10¼	8½	9¾	10¾
		2	Dressed	All	May-Aug	8	10	11	13½	11¾	12¾	14
		3	Fillets	All	May-Aug	------	24	25	28½	26	27¾	29¾
		4	Steaks	All	May-Aug	------	15	16	18¾	16½	18¼	19¾
		1	Round	All	Sept.-Apr	7	9	10	11¾	10	11¼	12¼
		2	Dressed	All	Sept.-Apr	10	12	13	15¼	13¼	14¾	16
		3	Fillets	All	Sept.-Apr	------	28¾	29¾	33	30¾	32¼	34½
		4	Steaks	All	Sept.-Apr	------	17¼	18¾	21	18¾	20½	22
2	Red or Rock Cod [1 2]	1	Round	All	All year	4½	6½	7½	9¼	7½	8¾	9¾
		2	Drawn	All	All year	6	8	9	10¾	9	10¼	11¼
		3	Dressed	All	All year	8	10	11	13¼	11¼	12¾	14
		4	Fillets	All	All year	------	25½	26½	29¾	27½	29¼	31¼
3	True Cod [1]	1	Round	All	May-Aug	4½	6½	7½	9¼	7½	8¾	9¾
		2	Dressed	All	May-Aug	6	8	9	10¾	9	10¼	11¼
		3	Fillets	All	May-Aug	------	21	22	25¼	23	24¾	26¾
		1	Round	All	Sept.-Apr	6½	8½	9½	11¾	9½	10¾	11¾
		2	Dressed	All	Sept.-Apr	8¾	10¾	11¾	14	12	13½	14¾
		3	Fillets	All	Sept.-Apr	------	27	28	31¼	29	30¾	32¾
	HALIBUT											
4	(a) Landed on the Pacific coast of the United States.	1	Round	Under 13½ pounds	All year	10½	13	14	16¼	14¼	15¾	17
		2	Round	13½ through 80 pounds	All year	12	14½	15½	17¾	15¾	17¼	18½
		3	Round	Over 80 pounds	All year	10½	13	14	16¼	14½	15¾	17
		4	Drawn	Under 11 pounds	All year	14¼	16¾	17¾	20½	18¼	20	21½
		5	Drawn	11 through 67 pounds	All year	15¾	18¼	19¼	22	19¾	21½	23
		6	Drawn	Over 67 pounds	All year	14¼	16¾	17¾	20½	18¼	20	21½
		7	Dressed	Under 10 pounds	All year	16	18½	19½	22¼	20	21¾	23¼
		8	Dressed	10 through 60 pounds	All year	17½	20	21	23¾	21½	23¼	24¾
		9	Dressed	Over 60 pounds	All year	16	18½	19½	22¼	20	21¾	23¼
		10	Steaks	All	All year	------	25¼	26¼	29½	27¼	29	31
		11	Cheeks	All	All year	------	20	21	23¾	21½	23¼	24¾
		12	Fillets	All	All year	------	28½	29½	32¾	30½	32¼	34¼
	(b) Landed on the Pacific coast of Canada.	1	Round	Under 13½ pounds	All year	8	10½	11½	13¾	11¾	13¼	14¼
		2	Round	13½ through 80 pounds	All year	9½	12	13	15¼	13¼	14¾	16
		3	Round	Over 80 pounds	All year	8	10½	11½	13¾	11¾	13¼	14¼
		4	Drawn	Under 11 pounds	All year	11¾	14¼	15½	17½	15½	17	18¼
		5	Drawn	11 through 67 pounds	All year	13¼	15¾	16¾	19½	17½	19	20½
		6	Drawn	Over 67 pounds	All year	11¾	14¼	15¼	17½	15½	17	18¼
		7	Dressed	Under 10 pounds	All year	13½	16	17	19¾	17½	19¼	20¾
		8	Dressed	10 through 60 pounds	All year	15	17½	18½	21¼	19	20¾	22¼
		9	Dressed	Over 60 pounds	All year	13½	16	17	19¾	17½	19¼	20¾
		10	Steaks	All	All year	------	22	23	26¼	24	25¾	27¾
		11	Cheeks	All	All year	------	17½	18½	21¼	19	20¾	22¼
		12	Fillets	All	All year	------	24½	25½	28¾	26½	28¼	30¼
	(c) Landed in Alaska [3]	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----
	(d) Landed on the Atlantic coast	1	Round	Under 13½ pounds	All year	12½	15	16	18¾	16½	18¼	19¾
		2	Round	13½ through 80 pounds	All year	14	16½	17½	20¼	18	19¾	21¼
		3	Round	Over 80 pounds	All year	12½	15	16	18¾	16½	18¼	19¾
		4	Drawn	Under 11 pounds	All year	16¼	18¾	19¾	22½	20¼	22	23½
		5	Drawn	11 through 67 pounds	All year	17¾	20¼	21¼	24½	22¼	24	26
		6	Drawn	Over 67 pounds	All year	16¼	18¾	19¾	22½	20¼	22	23½
		7	Dressed	Under 10 pounds	All year	18	20½	21½	24¼	22	23¾	25¼
		8	Dressed	10 through 60 pounds	All year	19½	22	23	25¾	23½	25¼	26¾
		9	Dressed	Over 60 pounds	All year	18	20½	21½	24¼	22	23¾	25¼
		10	Steaks	All	All year	------	28	29	32¼	30	31¾	33¾
		11	Cheeks	All	All year	------	22	23	25¾	23½	25¼	26¾
		12	Fillets	All	All year	------	32	33	37	34	36½	39
5	PILCHARDS (per ton) [4]	1	Round	All	Aug.-Feb	$22	-----	-----	-----	-----	-----	-----
6	SABLEFISH [1]	1	Round	All	All year	8¾	10¾	11¾	14	12	13½	14¾
		2	Dressed	All	All year	11½	14	15	17¼	15¼	16¾	18
		3	Fillets	All	All year	------	29	30	33¼	31	32¾	34¾
		4	Steaks	All	All year	------	18½	19½	22¾	20	21¾	23¼
	SALMON [5]											
7	Chinook and Silver, troll caught. [6 7] (a) Chinook or King, red-meated	1	Round	Under 16 pounds	Jan.-Mar	18¼	20¾	21¾	25	22¾	24½	26¼
		2	Round	16 pounds up	Jan.-Mar	20	22½	23½	26¾	24½	26¼	28¼
		3	Drawn	Under 14 pounds	Jan.-Mar	22	25	26	29¼	27	28¾	30¾
		4	Drawn	14 pounds up	Jan.-Mar	24	27	28	31¼	29	30¾	32¾
		5	Dressed	Under 12¾ pounds	Jan.-Mar	------	27¾	28¾	32	29¾	31½	33¼
		6	Dressed	12¾ pounds up	Jan.-Mar	------	30	31	35	32½	34½	37
		7	Fillets	All	Jan.-Mar	------	40	41	45½	43	45	48
		8	Steaks	All	Jan.-Mar	------	34	35	39	36½	38¼	41
		1	Round	Under 16 pounds	Apr.-Dec	15	17¼	18¼	21¼	19	20¾	22¼
		2	Round	16 pounds up	Apr.-Dec	18¼	20¾	21¾	25	22¾	24½	26½
		3	Drawn	Under 14 pounds	Apr.-Dec	18¼	20¾	21¾	25	22¾	24½	26½
		4	Drawn	14 pounds up	Apr.-Dec	22	25	26	29¼	27	28¾	30¾
		5	Dressed	Under 12¾ pounds	Apr.-Dec	------	23¼	24¼	27½	25¼	27	29
		6	Dressed	12¾ pounds up	Apr.-Dec	------	27½	28½	31¾	29½	31¼	33¼
		7	Fillets	All	Apr.-Dec	------	32¾	33¾	37¾	35¼	37¼	39¾
		8	Steaks	All	Apr.-Dec	------	29	30	33¼	31	32¾	34¾
	(b) Chinook or King, white-meated	1	Round	All	All year	11½	14	15	17¼	15¼	16¾	18
		2	Drawn	All	All year	14	16½	17½	20¼	18	19¾	21¼
		3	Dressed	All	All year	------	18	19	21¾	19½	21¼	22¾
		4	Fillets	All	All year	------	26	27	30¼	28	29¾	31¾
		5	Steaks	All	All year	------	21½	22½	25¾	23½	25¼	27¼
	(c) Silver	1	Round	All	All year	13½	16	17	19¾	17½	19¼	20¾
		2	Drawn	All	All year	16½	19	20	22¾	20½	22½	23¾
		3	Dressed	All	All year	------	21	22	25¼	23	24¾	26¾
		4	Fillets	All	All year	------	29	30	33¼	31	32¾	34¾
		5	Steaks	All	All year	------	24¾	25¾	29	26¾	28½	30½

See footnotes at end of table.

(c) TABLE IIA—PACIFIC COAST FRESH FISH AND SEAFOOD MAXIMUM PRICES IN CENTS PER POUND—Continued

Sched. No.	Species	Item No.	Style of dressing	Size	Season	A	B	C	D	E	F	G
	SALMON—continued											
8	Chinook or King, other than troll caught.											
	(a) Caught in Columbia River	1	Round	All	Jan.-Mar.	20						
					Apr.-July	17						
					Aug. 1-10	15						
					Aug. 11-31	13½						
					Sept.-Dec.	10½						
	(b) Puget Sound area [8] and all other Washington waters except (a).	1	Round	All	Jan.-Mar.	20						
		1	Round	All	Apr.-Dec.	13½						
	(c) Caught in Sacramento River	1	Round	All	Jan.-Mar.	20						
		1	Round	All	Apr.-Dec.	15						
	(d) Caught in waters of Oregon and Calif. other than (a) and (c).	1	Round	All	Jan.-Mar.	20						
					Apr.-July	15						
					Aug.-Dec.	13½						
	(e) All areas including (a) through (d) and imported.	1	Round	All	Jan.-Mar.		22½	23½	26¾	24½	26¼	28¼
		2	Drawn	All	Jan.-Mar.		27	28	31¼	29	30¾	32¾
		3	Dressed	All	Jan.-Mar.		30	31	35	32½	34½	37
		4	Fillets	All	Jan.-Mar.		39	40	44	41½	43½	46
		5	Steaks	All	Jan.-Mar.		34	35	39	36½	38½	41
		1	Round	All	Apr.-Dec.		17½	18½	21¼	19	20¾	22¼
		2	Drawn	All	Apr.-Dec.		20½	21½	24¾	22½	24¼	26¼
		3	Dressed	All	Apr.-Dec.		22¾	23¾	27	24¾	26½	28½
		4	Fillets	All	Apr.-Dec.		31	32	36	33½	35½	38
		5	Steaks	All	Apr.-Dec.		26½	27½	30¾	28½	30¼	32¼
9	Fall											
	(a) Puget Sound area [8] and imported	1	Round	All	June-Dec.	8	11	12	14¼	12¼	13¾	15
		2	Drawn	All	June-Dec.		12¾	13¾	16	14	15½	16¾
		3	Dressed	All	June-Dec.		14¾	15¾	18	16	17½	18¾
		4	Fillets	All	June-Dec.		20	21	24¼	22	23¾	25¾
		5	Steaks	All	June-Dec.		17¾	18¾	21½	19¼	21	22½
	(b) Delivered ex-vessel anywhere in Washington or Oregon other than (a).	1	Round	All	Sept.-Dec.	5	7	8	9¾	8	9¼	10¼
		2	Drawn	All	Sept.-Dec.		8¼	9¼	11	9½	10½	11½
		3	Dressed	All	Sept.-Dec.		9½	10½	12¼	10½	11¾	12¾
		4	Fillets	All	Sept.-Dec.		14	15	17¼	15¼	16¾	18
		5	Steaks	All	Sept.-Dec.		12	13	15¼	13¼	14¾	16
10	Pink, Puget Sound Area, [8] all other Washington waters, and imported.	1	Round	All	June-Dec.	5	8	9	10¾	9	10¼	11¼
		2	Drawn	All	June-Dec.		9¼	10¼	12	10¼	11½	12½
		3	Dressed	All	June-Dec.		10¾	11¾	13½	11½	13	14¼
		4	Fillets	All	June-Dec.		16	17	19¾	17½	19¼	20¾
		5	Steaks	All	June-Dec.		14	15	17¼	15¼	16¾	18
11	Silver, other than troll caught.											
	(a) Puget Sound area [8] and imported	1	Round	All	June-July	7	10	11	13¼	11¾	12¾	14
		2	Drawn	All	June-July		11¾	12¾	15	13	14½	15¾
		3	Dressed	All	June-July		13	14	16¼	14¼	15¾	17
		4	Fillets	All	June-July		19	20	22¾	20½	22¼	23¾
		5	Steaks	All	June-July		16¼	17¼	20	17¾	19½	21
		1	Round	All	Aug.	8	11	12	14¼	12¼	13¾	15
		2	Drawn	All	Aug.		13¼	14¼	16½	14½	16	17¼
		3	Dressed	All	Aug.		14¾	15¾	18	16	17½	18¾
		4	Fillets	All	Aug.		21	22	25¼	23	24¾	26¾
		5	Steaks	All	Aug.		18	19	21¾	19½	21¼	22¾
		1	Round	All	Sept.-Dec.	11½	15	16	18¾	16½	18¼	19¾
		2	Drawn	All	Sept.-Dec.		17½	18½	21¼	19	20¾	22¼
		3	Dressed	All	Sept.-Dec.		19½	20½	23¼	21	22¾	24¼
		4	Fillets	All	Sept.-Dec.		27	28	31¼	29	30¾	32¾
		5	Steaks	All	Sept.-Dec.		23	24	27¼	25	26¾	28¾
	(b) Delivered ex-vessel anywhere in Washington or Oregon other than (a).	1	Round	All	Aug.-Dec.	9½	12¼	13½	15¾	13¾	15¼	16½
		2	Drawn	All	Aug.-Dec.		14¾	15¾	18	16	17½	18¾
		3	Dressed	All	Aug.-Dec.		16¼	17¼	20	17¾	19½	21
		4	Fillets	All	Aug.-Dec.		23½	24½	27¾	25½	27¼	29¼
		5	Steaks	All	Aug.-Dec.		20	21	24¼	22	23¾	25¾
12	Sockeye (Blueback) delivered ex-vessel Neah Bay fishing grounds of Oregon and Washington and imported.	1	Round	All	May-Dec.	16	19½	20½	23¼	21	22¾	24¼
		2	Dressed	All	May-Dec.		25½	26½	29¾	27½	29¼	31¼
		3	Steaks	All	May-Dec.		30	31	35	32½	34½	37
13	Steelhead	1	Round	All	Jan.-Mar.	15½	18	19	21¾	19½	21¼	22¾
		2	Drawn	All	Jan.-Mar.		21	22	25¼	23	24¾	26¾
		3	Dressed	All	Jan.-Mar.		23¼	24½	27¾	25½	27¼	29¼
		4	Steaks	All	Jan.-Mar.		27¼	28¾	31½	29¼	31	33
		1	Round	All	Apr.-June 10	4	6	7	8¾	7	8¼	9¼
		2	Drawn	All	Apr.-June 10		7	8	9¾	8	9½	10½
		3	Dressed	All	Apr.-June 10		7½	8½	10¼	8½	9¾	10¾
		4	Steaks	All	Apr.-June 10		10½	11½	13¾	11¾	13¼	14½
		1	Round	All	June 11-Dec.	10½	13	14	16¼	14¼	15¾	17
		2	Drawn	All	June 11-Dec.		15	16	18¾	16½	18¼	19¾
		3	Dressed	All	June 11-Dec.		16¾	17¾	20½	18¼	20	21¼
		4	Steaks	All	June 11-Dec.		19¼	20¼	23	20¾	22½	24
14	SMELT, SILVER	1	Round	All	May-Aug.		8½	10½	11½	13¾	11¾	13¼	14½
		1	Round	All	Sept.-Apr.		10½	13	14	16¼	14¼	15¾	17
	SOLE AND FLOUNDER											
15	Dover Sole [9]	1	Round	All	May-Aug.	3½	5½	6½	8¼	6½	7¾	8¾
		2	Dressed	All	May-Aug.		7	8	9¾	8	9¼	10¼
		3	Dressed and skinned	All	May-Aug.		9	10	11¾	10	11¼	12½
		4	Fillets	All	May-Aug.		22	23	26¼	24	25¾	27¾
		1	Round	All	Sept.-Apr.	4½	6½	7½	9¾	7½	8¾	9¾
		2	Dressed	All	Sept.-Apr.		8½	9¾	11	9¼	10½	11½
		3	Dressed and skinned	All	Sept.-Apr.		10½	11½	13¾	11¾	13¼	14½
		4	Fillets	All	Sept.-Apr.		26¼	27¼	30½	28¼	30	32

See footnotes at end of table.

(c) TABLE IIA—PACIFIC COAST FRESH FISH AND SEAFOOD MAXIMUM PRICES IN CENTS PER POUND—Continued

Sched. No.	Species	Item No.	Style of dressing	Size	Season	A	B	C	D	E	F	G
	SOLE AND FLOUNDER—continued											
16	English Sole [8]	1	Round	Under 13 inches	May-Aug	3	5	6	7¾	6	7¼	8¼
		2	Round	13 inches up	May-Aug	4½	6½	7½	9¼	7½	8¾	9¾
		3	Dressed	Under 13 inches	May-Aug		6¼	7¼	9	7¼	8½	9½
		4	Dressed	13 inches up	May-Aug		8¼	9¼	11	9¼	10½	11½
		5	Dressed and skinned	All	May-Aug		9¼	10¼	12	10¼	11½	12¾
		6	Fillets	All	May-Aug		22½	23½	26¾	24½	26¼	28¼
		1	Round	Under 13 inches	Sept.-Apr	4	6	7	8¾	7	8¼	9¼
		2	Round	13 inches up	Sept.-Apr	5½	7½	8½	10¼	8½	9¾	10¾
		3	Dressed	Under 13 inches	Sept.-Apr		7½	8½	10¼	8½	9¾	10¾
		4	Dressed	13 inches up	Sept.-Apr		9½	10½	12¾	10½	11¾	12¾
		5	Dressed and skinned	All	Sept.-Apr		11	12	14¼	12¼	13¾	15
		6	Fillets	All	Sept.-Apr		25¾	26¾	30	27¾	29½	31½
17	Flounder [6]	1	Round	All	May-Aug	3½	5½	6½	8¼	6½	7¾	8¾
		2	Dressed	All	May-Aug		8	9	10¾	9	10¼	11¼
		3	Fillets	All	May-Aug		22	23	26¼	24	25¾	27¾
		1	Round	All	Sept.-Apr	4½	6½	7½	8¾	7½	8¾	9¾
		2	Dressed	All	Sept.-Apr		9½	10¾	12	10¾	11½	12½
		3	Fillets	All	Sept.-Apr		26¼	27¼	30½	28¼	30	32
18	Petrale Sole [6]	1	Round	All	May-Aug	5	7	8	9¾	8	9¼	10¼
		2	Dressed	All	May-Aug		9	10	11¾	10	11¾	12¼
		3	Dressed and skinned	All	May-Aug		11¼	12¾	14½	12½	14	15¼
		4	Fillets	All	May-Aug		24	25	28¼	26	27¾	29¾
		1	Round	All	Sept.-Apr	6	8	9	10¾	9	10¾	11¼
		2	Dressed	All	Sept.-Apr		10¼	11¼	13½	11½	13	14¼
		3	Dressed and skinned	All	Sept.-Apr		13	14	16¼	14¼	15¾	17
		4	Fillets	All	Sept.-Apr		27	28	31¼	29	30¾	32¾
19	Rex Sole	1	Round	All	May-Aug	2						
		1	Round	All	Sept.-Apr	3						
20	Sand Sole [6]	1	Round	All	May-Aug	4	6	7	8¾	7	8¼	9¼
		2	Dressed	All	May-Aug		7¾	8¾	10½	8¾	10	11
		3	Dressed and skinned	All	May-Aug		9½	10½	12¼	10½	11¾	12¾
		4	Fillets	All	May-Aug		22	23	26¼	24	25¾	27¾
		1	Round	All	Sept.-Apr	5	7	8	9¾	8	9¼	10¼
		2	Dressed	All	Sept.-Apr		9	10	11¾	10	11¼	12¼
		3	Dressed and skinned	All	Sept.-Apr		11¼	12¾	14½	12½	14	15¼
		4	Fillets	All	Sept.-Apr		25	26	29¼	27	28¾	30¾
21	Turbot Sole [6]	1	Round	All	May-Aug	3½	5½	6½	8¼	6½	7¾	8¾
		2	Dressed	All	May-Aug		7	8	9¾	8	9¼	10¼
		3	Dressed and skinned	All	May-Aug		9	10	11¾	10	11¼	12¼
		4	Fillets	All	May-Aug		22	23	26¼	24	25¾	27¾
		1	Round	All	Sept.-Apr	4½	6½	7½	9¼	7½	8¾	9¾
		2	Dressed	All	Sept.-Apr		8¼	9¼	11	9¼	10½	11½
		3	Dressed and skinned	All	Sept.-Apr		10½	11½	13¾	11¾	13¼	14½
		4	Fillets	All	Sept.-Apr		26	27	30¼	28	29¾	31¾
	TUNA AND TUNA-LIKE FISH											
22	Albacore Tuna	1	Round	All	All year	19½	22	23	26¼	24	25¾	27¾
		2	Drawn	All	All year		26¼	27¼	30½	28¼	30	32
		3	Dressed	All	All year		29¾	30¾	34¾	32¼	34¼	36¾
		4	Center cuts	All	All year		32	33	37	34½	36½	39
		5	Head cuts	All	All year		29¼	30¼	34¼	31¾	33¾	36¼
		6	Tail cuts	All	All year		29¼	30¼	34¼	31¾	33¾	36¼
		7	Steaks	All	All year		35½	36½	40½	38	40	42½
		8	Fillets	All	All year		46	47	51½	49	51	54
23	Bluefin Tuna [9]	1	Round	All	All year	9½	14	15	17¼	15¼	16¾	18
		2	Drawn	All	All year		16¾	17¾	20	17¾	19½	21
		3	Dressed	All	All year		18½	19½	22¼	20	21¾	23¼
		4	Center cuts	All	All year		20¼	21¼	24½	22¼	24	26
		5	Head cuts	All	All year		18¼	19¼	22	19¾	21½	23
		6	Tail cuts	All	All year		18¼	19¼	22	19¾	21½	23
		7	Steaks	All	All year		22¾	23¾	27	24¾	26½	28¼
		8	Fillets	All	Al year		28½	29½	32¾	30½	32¼	34¼
24	Bonito—Pacific [9]	1	Round	All	All year	7¾	11¾	12¾	15	13	14½	15¾
		2	Drawn	All	All year		14¼	15¼	17½	15½	17	18¼
		3	Dressed	All	All year		16¾	17¼	20	17¾	19½	21
		4	Center cuts	All	All year		17¾	18¾	21½	19¼	21	22¾
		5	Head cuts	All	All year		16	17	19¾	17½	19¼	20¾
		6	Tail cuts	All	All year		16	17	19¾	17½	19¼	20¾
		7	Steaks	All	All year		20	21	24¼	22	23¾	25¾
		8	Fillets	All	All year		25	26	29¼	27	28¾	30¾
25	Skipjack Tuna [9]	1	Round	All	All year	9	13½	14½	16¾	14¾	16¼	17¼
		2	Drawn	All	All year		15¾	16¾	19½	17¼	19	20½
		3	Dressed	All	All year		18	19	21¾	19½	21¼	22¾
		4	Center cuts	All	All year		19¾	20¾	23½	21¼	23	24½
		5	Head cuts	All	All year		17¾	18¾	21½	19¼	21	22¼
		6	Tail cuts	All	All year		17¾	18¾	21½	19¼	21	22¼
		7	Steaks	All	All year		22	23	26¼	24	25¾	27¾
		8	Fillets	All	All year		27½	28½	31¾	29½	31¼	33¼
26	Yellowfin Tuna [9]	1	Round	All	All year	10	14½	15½	17¾	15¾	17¼	18¼
		2	Drawn	All	All year		17	18	20¾	18½	20¼	21¾
		3	Dressed	All	All year		19¼	20¼	23	20¾	22½	24
		4	Center cuts	All	All year		21	22	25¼	23	24¾	26¾
		5	Head cuts	All	All year		19	20	22¾	20½	22¼	23¾
		6	Tail cuts	All	All year		19	20	22¾	20½	22¼	23¾
		7	Steaks	All	All year		23½	24½	27¾	25½	27¼	29¼
		8	Fillets	All	All year		29½	30½	34½	32	34	36½

See footnotes at end of table.

(c) TABLE IIA—PACIFIC COAST FRESH FISH AND SEAFOOD MAXIMUM PRICES IN CENTS PER POUND—Continued

Sched. No.	Species	Item No.	Style of dressing	Size	Season	A	B	C	D	E	F	G
	TUNA AND TUNA-LIKE FISH—continued											
27	Yellowtail [9]	1	Round	All	All year	7¼	11¼	12¼	14½	12½	14	15¼
		2	Drawn	All	All year	------	13¾	14¾	17	15	16½	17¾
		3	Dressed	All	All year	------	15½	16½	19¼	17	18¾	20¼
		4	Center cuts	All	All year	------	17	18	20¾	18½	20¼	21¾
		5	Head cuts	All	All year	------	15¾	16¾	19	16¾	18½	20
		6	Tail cuts	All	All year	------	15¼	16¼	19	16¾	18½	20
		7	Steaks	All	All year	------	19¼	20¾	23	20¾	22½	24
		8	Fillets	All	All year	------	24	25	28¼	26	27¾	29¾

[1] For fish which was landed ex-vessel at the following places in Alaska, deduct as follows: Ketchikan, 1½ cents; Wrangell and Petersburg, 1¾ cents; Juneau, Sitka, and Pelican City, 2 cents; Port Williams, 2½ cents. For fish which was landed ex-vessel at any other place in Alaska, deduct the amount specified for the nearest listed place. Note that section 4.2 (c) authorizes the regional office for Region IX to modify the producer prices in Alaskan waters or at any Alaskan place, whether listed or not.

[2] For line-caught red or rock cod landed in California in Marin County or any point south and delivered to the purchaser in California, Nevada, or Arizona, add 2½ cents to the table prices for round, drawn and dressed fish and 1½ cents to the table prices for fillets.

[3] For halibut which was landed at the following places in Alaska deduct from the prices in Schedule 4 (b) as follows: For round, drawn, and dressed fish and cheeks—Ketchikan, ¾ cent; Wrangell and Petersburg, 1 cent; Juneau, Sitka, and Pelican City, 1¼ cents; Port Williams, 1¾ cents. For steaks—Ketchikan, ¾ cent; Wrangell and Petersburg, 1¼ cents; Juneau, Sitka and Pelican City, 1½ cents; Port Williams, 2 cents. For fillets—Ketchikan, 1 cent; Wrangell and Petersburg, 1½ cents; Juneau, Sitka and Pelican City, 2 cents; Port Williams, 2¾ cents. For halibut which was landed at any other place in Alaska, deduct the amount specified for the nearest listed place. Note that section 4.2 (c) authorizes the regional office for Region IX to modify the producer prices in Alaskan waters or at any Alaskan place, whether listed or not.

[4] The price is $22.00 per ton when landed ex-vessel in ports of entry in California. Add $1.00 per ton when delivered to Benecia, Martinez or Moss Landing. Add $1.50 per ton when delivered to Pittsburg. The table price is 2 cents per pound when sold anywhere for bait.

[5] When a wholesaler customarily paid the state privilege tax on salmon, he may continue such payment and the amount actually paid may be added to the listed prices.

[6] When landed ex-vessel in the following California ports, deduct as follows from Column A prices only: 1 cent at Half Moon Bay, Point Reyes, Bodega Bay, Crescent City and Trinidad; 2 cents at Shelter Cove.

[7] Deduct 1½ cents for fish which was landed ex-vessel in any port in Washington or Oregon ot er than Seattle or Tacoma. However, this deduction does not apply to a whole sale sale of fish which was delivered from an established place of business in Seattle or Tacoma, or to sales of such fish by subsequent wholesalers.

[8] "Puget Sound area" as applied to salmon in Schedules 8 (b), 9 (a), 10, and 11 (a) means salmon delivered ex-vessel Neah Bay, Washington, Fishing Grounds of Juan de Fuca Strait, Puget Sound, and streams tributary to Puget Sound.

[9] On sales in California to persons other than canners, 2 cents per pound may be added to the prices listed in Column A only.

[Table amended by Am. 9, 10 F.R. 9880, effective 8-7-45]

(d) TABLE IIB—PACIFIC COAST FROZEN FISH AND SEAFOOD MAXIMUM PRICES IN CENTS PER POUND

Sched. No.	Species	Item No.	Style of dressing	Size	I	II	III	IV	V
	COD SPECIES								
1	Lingcod [1]	1	Dressed	All	12	13	13¼	14¾	16½
		2	Fillets	All	27	28	29	30¾	33¼
		3	Steaks	All	18	19	19¼	21¼	23¼
2	Red or Rock Cod [1 2]	1	Round	All	8½	9½	9½	10¾	12¼
		2	Drawn	All	10	11	11	12¼	13¾
		3	Dressed	All	12	13	13¼	14¾	16½
		4	Fillets	All	28	29	30	31¾	34¼
3	True Cod [1]	1	Round	All	8½	9½	9½	10¾	12¼
		2	Dressed	All	10	11	11	12¼	13¾
		3	Fillets	All	24	25	26	27¾	30¼
4	HALIBUT [3]	1	Round	All	14	15	15¼	16¾	18½
		2	Drawn	All	18½	19½	20	21¾	23¾
		3	Dressed	Under 10 pounds	20½	21½	22	23¾	25¾
		4	Dressed	10 through 60 pounds	22	23	23½	25¼	27¼
		5	Dressed	Over 60 pounds	20½	21½	22	23¾	25¾
		6	Fillets	All	31½	32½	33½	35¼	37¾
		7	Steaks	All	28¾	29¼	30¼	32	34½
		8	Cheeks	All	22	23	23½	25¼	27¼
*5	PILCHARDS [5]	1	Round	All	6	7	7	8	9½
		2	Drawn	All	7	8	8	9¼	10¾
		3	Dressed	All	8¼	9¼	9¼	10½	12
		4	Dressed, tail off	All	8¾	9¾	9¾	11	12½
6	SABLEFISH [1]	1	Round	All	12¾	13¾	14	15½	17¼
		2	Dressed	All	16	17	17¼	18¾	20½
		3	Fillets	All	32	33	35	35¾	38¼
		4	Steaks	All	21½	22½	23	24¾	26¾
	SALMON								
7	Chinook and Silver, troll caught: [1 4]								
	(a) Chinook, red-meated.	1	Drawn	Under 14 pounds	22¾	23¾	24¾	26½	29
		2	Drawn	14 pounds up	27	28	29	30¾	33¼
		3	Dressed	Under 12¾ pounds	25¾	26¾	27¾	29	31½
		4	Dressed	12¾ pounds up	29½	30½	31½	33¼	35¾
		5	Fillets	All	35¾	36¾	38¾	40¼	43¼
		6	Steaks	All	32	33	34	35¾	38¼

(d) TABLE IIB—PACIFIC COAST FROZEN FISH AND SEAFOOD MAXIMUM PRICES IN CENTS PER POUND—Continued

Sched. No.	Species	Item No.	Style of dressing	Size	I	II	III	IV	V
	SALMON—continued								
7	Chinook, etc.—Con.								
	(b) Chinook, white-meated.	1	Drawn	All	18½	19½	20	21¾	23¾
		2	Dressed	All	20	21	21¾	23¾	25¾
		3	Fillets	All	29	30	31	32¾	35¾
		4	Steaks	All	24½	25½	26½	28¼	30¾
	(c) Silver	1	Drawn	All	21	22	22½	24¼	26¼
		2	Dressed	All	23	24	25	26¾	29¼
		3	Fillets	All	32	33	34	35¾	38¾
		4	Steaks	All	27¾	28¾	29¾	31½	34
8	Chinook, other than troll-caught. [1]	1	Round	All	19½	20½	21	22¾	24¾
		2	Drawn	All	22½	23½	24½	26¼	28¾
		3	Dressed	All	24¾	25¾	26¾	28½	31
		4	Fillets	All	34	35	36½	38½	41½
		5	Steaks	All	29½	30½	31½	33¼	35¾
9	Fall [1]	1	Round	All	13	14	14¾	15¾	17½
		2	Drawn	All	14¾	15¾	16	17½	19¼
		3	Dressed	All	16¾	17¾	18	19½	21¼
		4	Fillets	All	23	24	25	26¾	29¼
		5	Steaks	All	20¾	21¾	22¼	24	26
10	Pink [1]	1	Round	All	10	11	11	12¼	13¾
		2	Drawn	All	11¼	12¼	12½	13½	15
		3	Dressed	All	12¼	13¼	13½	15	16¾
		4	Fillets	All	18	19	19½	21¼	23¼
		5	Steaks	All	16	17	17¼	18¾	20½
11	Silver, other than troll-caught. [1]	1	Round	All	17	18	18½	20¼	22¼
		2	Drawn	All	19½	20½	21	22¾	24¾
		3	Dressed	All	21½	22½	23	24¾	26¾
		4	Fillets	All	30	31	32	33¾	36¼
		5	Steaks	All	26	27	28	29¾	32¼
12	Sockeye [1]	1	Round	All	21¼	22½	23	24¾	26¾
		2	Dressed	All	27½	28½	29½	31¼	33¾
		3	Steaks	All	33	34	35½	37½	40½

See footnotes at end of table.

(d) TABLE IIB—PACIFIC COAST FROZEN FISH AND SEAFOOD MAXIMUM PRICES IN CENTS PER POUND—Con.

Sched. No.	Species	Item No.	Style of dressing	Size	I	II	III	IV	V
	SALMON—continued								
13	Steelhead [1]	1	Round	All	15	16	16¼	17¾	19½
		2	Drawn	All	17	18	18½	20¼	22¾
		3	Dressed	All	18¾	19¾	20¼	22	24
		4	Steaks	All	22¾	23¼	24¼	26	28½
	SMELTS								
14	Smelt, Silver [4]	1	Round	All	13½	14½	14¾	16¼	18
14A	Smelt, Eulachon [5]	1	Round	All	10	11	11	12¾	13¾
		2	Dressed	All	20	21	21½	23¼	25¼
	SOLE AND FLOUNDER								
15	Dover Sole	1	Round	All	7½	8½	8½	9¾	11¼
		2	Dressed	All	9	10	10	11¾	12¾
		3	Dressed and skinned	All	11	12	12	13¼	14¾
		4	Fillets	All	27	28	29	30¾	33¼
16	English Sole	1	Round	Under 13 inches	7	8	8	9¼	10¾
		2	Round	13 inches up	8½	9½	9½	10¾	12¼
		3	Dressed	Under 13 inches	8¼	9¼	9¼	10½	12
		4	Dressed	13 inches up	10¾	11¾	11¾	12½	14
		5	Dressed and skinned	All	11¼	12¾	12¾	13½	15
		6	Fillets	All	27	28	29	30¾	33¼
17	Flounder	1	Round	All	7½	8½	8½	9¾	11¼
		2	Dressed	All	10	11	11	12¾	13¾
		3	Fillets	All	27	28	29	30¾	33¼
18	Petrale Sole	1	Round	All	9	10	10	11¼	12¾
		2	Dressed	All	11	12	12	13¼	14¾
		3	Dressed and skinned	All	13¼	14¾	14½	16	17¾
		4	Fillets	All	27	28	29	30¾	33¼
19	Rex Sole	1	Round	All	5	6	6	7	8½
		2	Dressed and skinned	All	10½	11½	11½	12¾	14¼
		3	Fillets	All	27	28	29	30¾	33¼
20	Sand Sole	1	Round	All	8	9	9	10¼	11¾
		2	Dressed	All	9¾	10¾	10¾	12	13½
		3	Dressed and skinned	All	11½	12½	12½	13¾	15¼
		4	Fillets	All	27	28	29	30¾	33¼
21	Turbot Sole	1	Round	All	7½	8½	8½	9¾	11¼
		2	Dressed	All	9	10	10	11¼	12¾
		3	Dressed and skinned	All	11	12	12	13¼	14¾
		4	Fillets	All	27	28	29	30¾	33¼
	TUNA AND TUNA-LIKE FISH								
22	Albacore Tuna	1	Round	All	24	25	26	27¾	30¼
		2	Drawn	All	28¼	29¼	30¼	32	34½
		3	Dressed	All	31¾	32¾	34¼	36¼	39¼
		4	Center cuts	All	34	35	36½	38¼	41½
		5	Head cuts	All	31¼	32¼	33¾	35¾	38¾
		6	Tail cuts	All	31¼	32¼	33¾	35¾	38¾
		7	Steaks	All	37½	38½	40	42	45
		8	Fillets	All	48	49	51	53	56½
23	Bluefin Tuna	1	Round	All	16	17	17¼	18¾	20¼
		2	Drawn	All	18¼	19¼	19¾	21½	23½
		3	Dressed	All	20½	21½	22	23¾	25¾
		4	Center cuts	All	22¼	23¾	24¾	26	28½
		5	Head cuts	All	20¼	21¾	21¾	23½	25½
		6	Tail cuts	All	20¼	21¾	21¾	23½	25½
		7	Steak	All	24¾	25¾	26¾	28½	31
		8	Fillets	All	30½	31½	32½	34¼	36¾
24	Bonito-Pacific Coast	1	Round	All	13¾	14¾	15	16¼	18¼
		2	Drawn	All	16¼	17¼	17½	19	20¾
		3	Dressed	All	18¾	19¼	19¾	21½	23½
		4	Center cuts	All	19¾	20¾	21¼	23	25
		5	Head cuts	All	18	19	19½	21¼	23¼

See footnotes at end of table.

(d) TABLE IIB—PACIFIC COAST FROZEN FISH AND SEAFOOD MAXIMUM PRICES IN CENTS PER POUND—Con.

Sched. No.	Species	Item No.	Style of dressing	Size	I	II	III	IV	V
	TUNA AND TUNA-LIKE FISH—continued								
24	Bonito-Pacific Coast—Con.	6	Tail cuts	All	18	19	19½	21¼	23¼
		7	Steaks	All	22	23	24	25¾	28¼
		8	Fillets	All	27	28	29	30¾	33¼
25	Skipjack Tuna	1	Round	All	15½	16½	16¾	18¼	20
		2	Drawn	All	17¾	18¾	19¼	21	23
		3	Dressed	All	20	21	21½	23¼	25¼
		4	Center cuts	All	21¾	22¾	23¼	25	27
		5	Head cuts	All	19¾	20¾	21¼	23	25
		6	Tail cuts	All	19¾	20¾	21¼	23	25
		7	Steaks	All	24	25	26	27¾	30¼
		8	Fillets	All	29½	30½	31½	33¼	35¾
26	Yellowfin Tuna	1	Round	All	16½	17½	17¾	19¼	21
		2	Drawn	All	19	20	20½	22¼	24¼
		3	Dressed	All	21¼	22¼	22¾	24½	26½
		4	Center cuts	All	23	24	25	26¾	29¼
		5	Head cuts	All	21	22	22½	24¼	26¼
		6	Tail cuts	All	21	22	22½	24¼	26¼
		7	Steaks	All	25½	26½	27½	29¼	31¾
		8	Fillets	All	31½	32½	34	36	39
27	Yellowtail	1	Round	All	13¼	14¼	14½	16	17¾
		2	Drawn	All	15¾	16¾	17	18½	20¼
		3	Dressed	All	17½	18½	19	20¾	22¾
		4	Center cuts	All	19	20	20½	22¼	24½
		5	Head cuts	All	17¼	18¼	18¾	20½	22½
		6	Tail cuts	All	17¼	18¼	18¾	20½	22½
		7	Steaks	All	21¼	22¼	22¾	24½	26½
		8	Fillets	All	26	27	28	29¾	32¼
28	SEA BASS, WHITE	1	Dressed	All	20	21	21½	23¼	25¼
		2	Fillets	All	38	39	40½	42½	45½

[1] For fish which was originally landed fresh at the following places in Alaska, deduct as follows: Ketchikan, 1½¢; Wrangell and Petersburg, 1¾¢; Juneau, Sitka and Pelican City, 2¢; Port Williams, 2½¢. For fish which was originally landed fresh at any other place in Alaska, deduct the amount specified for the nearest listed place.

[2] For line-caught red or rock cod originally landed fresh in California in Marin County or any point south and delivered to the purchaser in California, Nevada or Arizona, add 2½¢ to the table prices for round, drawn, and dressed fish, and 1¼¢ to the table price for fillets.

[3] The table prices listed for halibut apply to frozen halibut originally landed fresh on the Pacific Coast of the continental United States. For frozen halibut originally landed fresh in Canada or Alaska deduct the following amounts from the listed prices:

Port	Style of dressing	Deductions
		Cents
Any port on the Pacific Coast of Canada	1. Round, dressed, drawn or cheeks	2½
	2. Steaks	3¼
	3. Fillets	4
Ketchikan	1. Round, dressed, drawn or cheeks	3¼
	2. Steaks	4
	3. Fillets	5
Wrangell and Petersburg	1. Round, dressed, drawn or cheeks	3½
	2. Steaks	4½
	3. Fillets	5½
Juneau, Sitka, and Pelican City	1. Round, dressed, drawn or cheeks	3¾
	2. Steaks	4¾
	3. Fillets	6
Port Williams	1. Round, dressed, drawn or cheeks	4¼
	2. Steaks	5¼
	3. Fillets	6¾
Any port in Alaska not listed	1. Round, dressed, drawn or cheeks	(*)
	2. Steaks	(*)
	3. Fillets	(*)

*Deduct the amount specified for nearest listed port.
For frozen halibut originally landed fresh on the Atlantic coast, add ½ cent to the listed prices.

[4] Deduct 1½¢ for fish which was originally frozen in any place in Washington, or Oregon other than Seattle or Tacoma.

[5] Deduct 3½¢ from the appropriate column price for round smelts if they have not been washed, repacked and frozen in layers, or washed and individually frozen.

[6] The container differentials and allowances provided by section 5.12 (see 3.12 (a)) do not apply to frozen pilchards. The listed prices apply when this fish is sold in containers packed to a net weight of less than 40 lbs. When sold in-

containers packed to a net weight of 40 lbs. or over subtract ½ cent from the listed prices. When not packed in containers, subtract 1 cent from the listed prices.

[Footnote 6 added by Am. 14, effective 11-26-45]

[*Schedule 5 amended by Am. 14, effective 11-26-45]

[Paragraphs (c) and (d) added by Am. 8, 10 F.R. 9432, effective 8-15-45 (effective date amended by Am. 9, 10 F.R. 9880, effective 8-7-45)]

SEC. 10.2. *List of species covered by regulation*—(a) *North Atlantic Species.*

Schedule No.	Common name	Scientific name
1	Alewives and sea herring.	Pomolobus pseudoharengus Clupea harengus.
2	Codfish	Gadus callarias.
3	Cusk	Brosme brosme.
4	Blackback	Pseudopleuronectes americanus.
5	Dab, sea and yellowtail.	Hippoglossoides platessoides and Limanda ferruginea.
6	Fluke	Paralichthys dentatus.
7	Haddock	Melanogrammus aeglefinus.
8	Hake	Urophycis species.
9	Hake, mud	Urophycis species.
10	Pollock	Pollachius virens.
11	Pout, ocean (eel pout or conger eel).	Zoarces anguillaris.
12	Rajafish (skate)	Raja species.
13	Rosefish	Sebastes marinus.
14	Scallops, sea	Pecten magellanicus.
15	Scallops, bay	Pecten irradians.
16	Sole, gray	Glyptocephalus cynoglossus.
17	Sole, lemon	Pseudopleuronectes dignabilis.
18	Swordfish	Xiphias gladius.
19	Whiting	Merluccius bilinearis.
20	Wolffish	Anarhichas lupus.
21 (frozen)	Mackerel	Scomber scombrus.
22 (frozen)	Eel, common	Anguilla rostrata.
23	Salmon, Atlantic	Salmo salar.

[Table amended by Am. 4, 10 F.R. 4348, effective 4-28-45]

[Paragraph heading added by Am. 8, 10 F.R. 9432, effective 8-15-45 (effective date amended by Am. 9, 10 F.R. 9880, effective 8-7-45)]

(b) *Pacific Coast Species.*

Schedule No.	Common Name	Scientific name
	COD SPECIES:	
1	Lingcod	Ophiodon elongatus.
2	Red or Rock Cod	Sebastodes species.
3	True Cod	Gadus macrocephalus.
4	Halibut	Hippoglossus hippoglossus.
[1]5	Pilchards	Sardinia caerulea.
6	Sablefish	Anaplopoma fimbria.
	SALMON:	
7	Chinook and Silver, troll caught.	
7a	Chinook, red meated	Oncorhynchus tschawytscha.
7b	Chinook, white meated.	Oncorhynchus tschawytscha.
7c	Silver	Oncorhynchus kisutch.
8	Chinook or King, other than troll caught.	Oncorhynchus tschawytscha.
9	Fall	Oncorhynchus keta.
10	Pink	Oncorhynchus gorbuscha.
11	Silver, other than troll caught.	Oncorhynchus kisutch.
12	Sockeye (Blueback)	Oncorhynchus nerka.
13	Steelhead	Salmo gairdnerii.
	SMELTS:	
14	Smelt, Silver	Argentinidae species.
[2]14A	Smelt, Eulachon	Thaleichthys pacificus.
	SOLE AND FLOUNDER:	
15	Dover Sole	
16	English Sole	
17	Flounder	
18	Petrale Sole	
19	Rex Sole	
20	Sand Sole	
21	Turbot Sole	

See footnotes at end of table.

(b) *Pacific Coast Species*—Continued

Schedule No.	Common Name	Scientific Name
	TUNA AND TUNA-LIKE FISH:	
22	Albacore Tuna	Germo alalunga.
23	Bluefin Tuna	Thunnus species.
24	Bonito-Pacific	Sarda chiliensis.
25	Skipjack Tuna	Euthynnus pelamis.
26	Yellowfin Tuna	Neothunnus macropterus.
27	Yellowtail	Seriola dorsalis.
[1]28	Sea Bass, White	Cynoscion nobilis.

[1] Fresh.
[2] Frozen.

[Paragraph (b) added by Am. 8]

This regulation shall become effective April 1, 1945.

[Effective date amended by Am. 1, 10 F.R. 2684, effective 3-8-45]

[Maximum Price Regulation 579 originally issued February 27, 1945]

[Effective dates of amendments are shown in notes following parts affected]

NOTE: The record keeping and reporting provisions of this regulation have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

Issued this 20th day of November 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-21083; Filed, Nov. 20, 1945; 10:06 a. m.]

PART 1448—EATING AND DRINKING ESTABLISHMENTS

[Restaurant MPR 1, Amdt. 4]

FOOD AND DRINK SOLD FOR IMMEDIATE CONSUMPTION BY DINING CARS

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

A new paragraph is added to section 1 of Restaurant Maximum Price Regulation No. 1, to read as follows:

As an exception to the provisions of this regulation, your ceiling prices for Thanksgiving Day, Christmas Day and New Year's Eve of 1945 and New Year's Day of 1946 are the prices you charged for meals, food items and beverages of the same class for such days in 1942 or, in the case of New Year's Day, in 1943.

This amendment shall become effective November 19, 1945.

Issued this 19th day of November 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-21076; Filed, Nov. 19, 1945; 4:55 p. m.]

PART 1499—COMMODITIES AND SERVICES

[SR 14C, Amdt. 15]

DEHYDRATED CRANBERRIES

A statement of the considerations involved in the issuance of this amendment has been issued and filed with the Division of the Federal Register.

Section 4.5 of Supplementary Regulation 14C to the General Maximum Price Regulation is amended in the following respects:

1. The text preceding the table in paragraph (a) is amended to read as follows:

The processor's maximum prices per dozen containers for dehydrated cranberries of the 1944 and later crops, f. o. b. factory, shall be as follows (dehydrated cranberries of the 1945 and later crops shall be considered different items from dehydrated cranberries of the 1944 crop for the purposes of this section 4.5):

2. The table in paragraph (a) is amended to read as follows:

Style, container type and size	Dehydrated cranberries of the 1944 crop (maximum price)		Dehydrated cranberries of the 1945 and later crop (maximum price)	
	Sales to Government procurement agencies	Other sales	Sales to Government procurement agencies	Other sales
	Per dozen	*Per dozen*	*Per dozen*	*Per dozen*
Whole and sliced:				
1-pound carton	$32.24	$33.58	$24.88	$25.92
1-ounce glass jar	2.28	2.37	1.81	1.89
¼-pound glassine bag	8.15	8.49	6.32	6.58
⅝-ounce glassine bag	1.61	1.68	1.27	1.32
1⅛-ounce glassine bag	2.69	2.80	2.07	2.16
	Per can	*Per can*	*Per can*	*Per can*
Powdered:				
1-pound can	3.03	3.16	2.33	2.43
½-pound can	1.53	1.59	1.17	1.22

3. The caption to paragraph (e) is amended to read as follows:

(e) *Notification of new maximum price; dehydrated cranberries of the 1944 crop.*

4. The text of paragraph (e) preceding the "Notice to Wholesalers and Retailers" is amended to read as follows:

With the first delivery after June 22, 1945, of an item of dehydrated cranberries of the 1944 crop, in any case where a seller determines his maximum price pursuant to this section, he shall supply each wholesaler and retailer who purchases from him with written notice reading as follows:

5. The first sentence of the "Notice to Wholesalers and Retailers" in paragraph (e) is amended to read as follows: "Our OPA ceiling price for dehydrated cranberries of the 1944 crop (*describe item by style of pack and container type and size*) has been changed by the Office of Price Administration."

6. Paragraph (f) is redesignated paragraph (g) and a new paragraph (f) is added to read as follows:

(f) *Notification of new maximum price—dehydrated cranberries of the 1945 and later crops.* With the first delivery after November 19, 1945, of an item of dehydrated cranberries of the 1945 and later crops, in any case where a seller determines his maximum price pursuant to this section, he shall supply each wholesaler and retailer who purchases from him with written notice, reading as follows:

(Insert date)

NOTICE TO WHOLESALERS AND RETAILERS

Our OPA ceiling price for dehydrated cranberries of the 1945 and later crops (*describe item by style of pack and container type and size*) has been changed by the Office of Price Administration. We are authorized to inform you that if you are a wholesaler or retailer pricing this item under Maximum Price Regulation No. 421, 422 or 423, you must refigure your ceiling price for this item on the first delivery of it to you containing this notification on or after November 19, 1945. You must refigure your ceiling price following the rules in section 6 of Maximum Price Regulation No. 421, 422 or 423, whichever is applicable to you.

For a period of 60 days after determining such maximum price for the item, and with the first shipment after the 60-day period to each person who has not made a purchase within that time, each seller shall include in each case, carton or other receptacle containing the item, the written notice set forth above, or securely attach it to the outside. However, for sales direct to any retailer, the seller may supply the notice by attaching it to, or stating it on, the invoice covering the shipment, instead of providing it with the goods.

This amendment shall become effective November 19, 1945.

Issued this 19th day of November 1945.

CHESTER BOWLES,
Administrator.

Approved: November 16, 1945.

J. B. HUTSON,
Acting Secretary of Agriculture.

[F. R. Doc. 45-21075; Filed, Nov. 19, 1945; 4:55 p. m.]

PART 1448—EATING AND DRINKING ESTABLISHMENTS

[Restaurant MPR 2, Amdt. 9]

FOOD AND DRINK SOLD FOR IMMEDIATE CONSUMPTION

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

Restaurant Maximum Price Regulation No. 2 is amended in the following respects:

1. Section 1 (d) (2) is amended to read as follows:

(2) Your ceiling prices for Thanksgiving Day, Christmas Day and New Year's Eve of 1945 and New Year's Day of 1946 are the prices you charged for meals, food items and beverages of the same class for such days in 1942 or, in the case of New Year's Day, in 1943,

2. Subparagraph (3) of section 1 (d) is deleted.

This amendment shall become effective November 19, 1945.

Issued this 19th day of November 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-21077; Filed, Nov. 19, 1945; 4:55 p. m.]

TITLE 30—MINERAL RESOURCES

Chapter VI—Solid Fuels Administration for War

PART 602—GENERAL ORDERS AND DIRECTIVES

DIRECTION TO ALL SHIPPERS OF COAL PRODUCED IN DISTRICT 8

The following direction is issued:

The Notice of Direction to All Shippers of Coal Produced in District 8, issued October 24, 1945 (10 F.R. 13306) is hereby amended to provide that all shippers of coal produced in District 8 are permitted to ship any such coal via the Great Lakes to any person at any point located on Lake Erie; Lake Ontario, west of and including Toronto; the Welland Canal; the Detroit River; the St. Clair River; Lake St. Clair; Lake Michigan, within the States of Illinois and Indiana; *Provided, however,* That the following schedule of shipments is to be observed:

1. *First preference.* Shippers of coal produced in District 8 shall first fill commitments for coal moving by way of the Great Lakes to any dock or other unloading facility, except those located at the points above described.

2. *Second preference.* Shippers of coal produced in District 8 shall accord a second preference to orders for special purpose coal to the extent set forth in § 602.702 of SFAW Regulation No. 27, as amended.

3. *Third preference.* Shippers of coal produced in District 8 shall accord a third preference to orders to the extent set forth in § 602.703 of SFAW Regulation No. 27, as amended.

4. *Fourth preference.* Shippers of coal produced in District 8 shall accord a fourth preference to orders for coal moving by way of the Great Lakes to any person at any point located on: Lake Erie; Lake Ontario, west of and including Toronto; the Welland Canal; the Detroit River; the St. Clair River; Lake St. Clair; Lake Michigan, within the States of Illinois and Indiana.

After making shipments in accordance with the above preference schedules, shippers of bituminous coal may then make shipments in accordance with the provisions of SFAW Regulation No. 27, as amended.

No person shall be held liable for damages or penalties under any contract for any default which shall result directly or indirectly from compliance with the provisions of this direction.

This direction shall become effective immediately.

(E.O. 9332, 8 F.R. 5355; E.O. 9125, 7 F.R. 2719; sec. 2 (a), 54 Stat. 676, as amended by 55 Stat. 236, 56 Stat. 176 and 58 Stat. 827)

Issued this 19th day of November 1945.

C. J. POTTER,
Deputy Solid Fuels Administrator for War.

[F. R. Doc. 45-21101; Filed, Nov. 20, 1945; 11:38 a. m.]

TITLE 33—NAVIGATION AND NAVIGABLE WATERS

Chapter II—Corps of Engineers, War Department

PART 204—DANGER ZONE REGULATIONS

WATERS OF LAKE BORGNE, LA., NORTH OF SHELL BEACH; ANTIAIRCRAFT GUNNERY RANGE

Pursuant to the provisions of section 7 of the River and Harbor Act of August 8, 1917 (40 Stat. 266; 33 U.S.C. 1), a portion of the antiaircraft gunnery range in Lake Borgne north of Shell Beach, Louisiana, formerly used by the United States Navy, Eighth Naval District, is hereby established as an antiaircraft gunnery range of the New Orleans Port of Embarkation, Army Service Forces, the title and regulations being amended to read as follows:

§ 204.91b *Waters of Lake Borgne, north of Shell Beach, La.; Antiaircraft Gunnery Range, New Orleans Port of Embarkation, Army Service Forces*—(a) *The danger zone.* That portion of Lake Borgne within a sector of a circle bounded by radii of 8,000 yards bearing 343° true and 53° true, respectively, from Shell Beach, Louisiana (latitude 29°52'03" N., longitude 89°40'20" W.) and the included arc.

(b) *The regulations.* (1) No vessel or other craft shall enter or remain within the area during its use as a firing range except as provided in paragraph (b) (4), unless permitted to do so by the Commanding General, New Orleans Port of Embarkation, or his authorized representative.

(2) Since firing practice will take place in the area at frequent and irregular intervals throughout the year without regard to season, advance notice shall be given of the date on which such activities will begin. At intervals of not more than three months thereafter, notice will be sent out that firing practice is continuing. Such notices will appear in the local newspapers and in the "Notice to Mariners."

(3) When firing is in progress, a red flag will be displayed from a mast or staff on the shore at Shell Beach. During night firing a searchlight will be in operation near the pivot point of the sector at Shell Beach, and the beam of this light will be a warning that firing is in progress.

(4) Upon exchange of signals prescribed below, vessels bound from or to adjacent points east or west of the pivot point of the sector at Shell Beach may pass through that portion of the danger zone immediately north of the pivot point.

(i) *Signals by vessels.* Vessels approaching this area which desire to pass through shall so indicate by sounding two long distinct blasts followed by one short distinct blast of a whistle, horn, or megaphone when within a reasonable distance of the pivot point at Shell Beach.

(ii) *Answering signals.* When it is safe to pass, this signal will be answered during daylight hours by dipping of the flag located at or near the pivot point at Shell Beach, and at night by blinking

three or more times of the searchlight located at or near the pivot point.

(5) These regulations will be enforced by the Commanding General, New Orleans Port of Embarkation, and such agencies as he may designate. (Sec. 7 River and Harbor Act, Aug. 8, 1917; 40 Stat. 266; 33 U.S.C. 1) [Regs. 30 October 1945 (CE 800.2121 (Borgne Lake, La.) SPEWR)]

[SEAL] EDWARD F. WITSELL,
Major General,
Acting The Adjutant General.

[F. R. Doc. 45-21070; Filed, Nov. 19, 1945; 2:12 p. m.]

TITLE 38—PENSIONS, BONUSES, AND VETERANS' RELIEF

Chapter I—Veterans' Administration

PART 20—GUARDIANSHIP AND LEGAL ADMINISTRATION

GUARDIANSHIP POLICY REGARDING CLAIMS OF CREDITORS AND TAXATION OF FUNDS IN HANDS OF GUARDIANS, CURATORS, CONSERVATORS, ETC.

§ 20.5339 *Claims of creditors.* (a) Section 3, Public No. 262, 74th Congress, applies to payments made to or on account of a beneficiary under the laws relating to veterans and exempts such payments, either before or after receipt by the beneficiary, from the claims of creditors, and provides that same shall not be liable to attachment, levy or seizure by or under any legal or equitable process whatever. The language of the section has been construed by the Supreme Court of the United States to the effect that such exemption does not extend to property in which the proceeds of such payments are or may be invested. (Bryant vs. Carrier, 306 U.S. 545)

The remainder of § 20.5339 has been designated paragraph (b).

§ 20.5347 *Chief attorney to check accounts.* The manager of a Veterans' Administration hospital, home, or center before returning to a guardian any excess funds, either while the veteran remains therein or when he is discharged therefrom, will obtain from the principal chief attorney information as to whether such funds may be released to the guardian. The principal chief attorney's advice will be predicated upon the present status of the guardianship. If payments have been suspended to the guardian, or if the guardian is not satisfactorily accounting for the funds already received or bond is insufficient, the unexpended balance will be withheld until the irregularities have been adjusted. The chief attorney will then furnish the manager with information that the funds may be released to the guardian and will forward an executed Form 4704, Certificate Relative to Legality of Appointment and Adequacy of Bond.

NOTE: For statutory and source citations, see note to § 20.5020.

[SEAL] OMAR N. BRADLEY,
General, U. S. Army,
Administrator of Veterans Affairs.

NOVEMBER 21, 1945.

[F. R. Doc. 45-21095; Filed, Nov. 20, 1945; 11:15 a. m.]

TITLE 46—SHIPPING

Chapter III—War Shipping Administration

[Rev. G. O. 6, Supp. 12]

PART 305—INSURANCE

CREW INSURANCE FORMS

Effective, as of date of publication of this supplement in the FEDERAL REGISTER, as to all new insurances and as to claims under existing crew life war risk individual insurance policies arising on and after said effective date, Subpart C—Crew Insurance, of General Order 6, Revised, is amended by amending paragraph 7 of § 305.307 *Form of application* and paragraph 5 of § 305.315 *Standard form of crew life war risk individual insurance policy* to read:

Warranted that at the time this insurance attaches the vessel on which the Assured is to be employed is a United States flag vessel or is owned by or under charter to the War Shipping Administration or is operated in the waterborne foreign commerce of the United States.

(E.O. 9054, 3 CFR, Cum. Supp.; 54 Stat. 689, as amended)

[SEAL] E. S. LAND,
Administrator.

NOVEMBER 19, 1945.

[F. R. Doc. 45-21096; Filed, Nov. 20, 1945; 11:24 a. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter II—Office of Defense Transportation

[Gen. Order ODT 58]

PART 502—DIRECTION OF TRAFFIC MOVEMENT

COMMERCIAL AIR LINES TO ALLOCATE CERTAIN EASTBOUND SPACE TO MILITARY PERSONNEL RETURNED FROM OVERSEAS

Pursuant to Title III of the Second War Powers Act, 1942, as amended, and Executive Order 8989, as amended, in order to make commercial aircraft available for the preferential transportation of troops; and to assure the orderly and expeditious movement of troops, the attainment of which purposes is essential to the war effort, it is hereby ordered, that:

Sec.
502.310 Definitions.
502.311 Commercial air lines to allocate certain eastbound space for organized military movements.
502.312 Communications.

AUTHORITY: §§ 502.310 to 502.312, inclusive, issued under Title III of the Second War Powers Act, 1942, as amended, 56 Stat. 177, 50 U.S.C. App. 633, 58 Stat. 827; E.O. 8989, as amended, 6 F.R. 6725, 8 F.R. 14183.

§ 502.310 *Definitions.* As used in §§ 502.310 to 502.312, inclusive, the term:

"Air carrier" means any air carrier as defined in the Civil Aeronautics Act of 1938, as amended, certificated by the Civil Aeronautics Board to engage in air transportation with respect to persons.

§ 502.311 *Commercial air lines to allocate certain eastbound space for organized military movements.* Each air carrier operating east from the cities of Seattle, Washington, San Francisco, Los Angeles, or San Diego, California, shall make available daily to the armed services of the United States for the transportation of organized movements of military and naval personnel being returned from the Pacific theater of war, and which are destined to the cities of Boston, Massachusetts, New York, New York, Baltimore, Maryland, Washington, District of Columbia, Norfolk, Virginia, or Jacksonville, Florida, not less than seventy per cent of the space allocated for passenger traffic on November 20, 1945, on the scheduled commercial passenger flights operated eastbound from such points of origin. Each air carrier providing a connecting service with any air carrier originating such traffic shall make available a sufficient amount of space eastbound to provide uninterrupted through service for such traffic to points of destination. Each air carrier shall cancel such passenger reservations and take such other action as may be required to carry out the purposes of this order.

§ 502.312 *Communications.* Communications concerning this order should refer to "General Order ODT 58" and should be addressed to the Office of Defense Transportation, Washington 25, D. C.

This General Order ODT 58 shall become effective on December 3, 1945, and shall remain in full force and effect until further order of the Office of Defense Transportation.

Issued at Washington, D. C., this 20th day of November 1945.

HOMER C. KING,
Deputy Director,
Office of Defense Transportation.

[F. R. Doc. 45-21102; Filed, Nov. 20, 1945; 12:01 p. m.]

Notices

DEPARTMENT OF LABOR.

Office of the Secretary.

[WLD 137]

DAIRY DESPATCH CO.

FINDING AS TO CONTRACT IN PROSECUTION OF WAR

In the matter of Dairy Despatch Co., Dubuque, Iowa; Case No. S-3075.

Pursuant to section 2 (b) (3) of the War Labor Disputes Act (Pub. No. 89, 78th Cong., 1st sess.) and the Directive of the President dated August 10, 1943, published in the FEDERAL REGISTER August 14, 1943, and

Having been advised of the existence of a labor dispute involving Dairy Despatch Co., Dubuque, Iowa,

I find that the motor transportation of meat by Dairy Despatch Co., Dubuque, Iowa, pursuant to contract with Swift & Company is contracted for in the prosecution of the war within the meaning of

section 2 (b) (3) of the War Labor Disputes Act.

Signed at Washington, D. C., this 17th day of November 1945.

L. B. SWELLENBACH,
Secretary.

[F. R. Doc. 45-21093; Filed, Nov. 20, 1945; 10:49 a. m.]

[WLD 139]

PETERSON & SONS TRANSFER, ET AL.

FINDING AS TO CONTRACTS IN PROSECUTION OF WAR

In the matter of Peterson & Sons Transfer, et al., St. Paul, Minnesota. Case No. S-3333.

Pursuant to section 2 (b) (3) of the War Labor Disputes Act (Pub. No. 89, 78th Cong., 1st sess.) and the directive of the President dated August 10, 1943, published in the FEDERAL REGISTER August 14, 1943, and

Having been advised of the existence of a labor dispute involving the Central States Drivers Council of the International Brotherhood of Teamsters, Chauffeurs, Warehousemen and Helpers of America and certain concerns engaged in transportation of commodities in the States of Minnesota, South Dakota, Iowa and Wisconsin,

I find that the transportation of goods, articles and commodities by any of the concerns involved in the above dispute, to or from any plant, mine or facility equipped for the manufacture, production or mining of any articles or materials which may be required or useful in the prosecution of the war, pursuant to any contract, whether or not with the United States, is contracted for in the prosecution of the war within the meaning of section 2 (b) (3) of the War Labor Disputes Act.

Signed at Washington, D. C., this 19th day of November 1945.

L. B. SCHWELLENBACH,
Secretary of Labor.

[F. R. Doc. 45-21094; Filed, Nov. 20, 1945; 10:49 a. m.]

CIVILIAN PRODUCTION ADMINISTRATION.

[C-396, Revocation]

W. J. NUSS LUMBER & SUPPLY CO.

CONSENT ORDER

Pursuant to an agreement between W. J. Nuss Lumber & Supply Company, the Regional Compliance Manager and the Regional Attorney, Consent Order No. C-396 was issued July 26, 1945, in consequence of violations of Priorities Regulations 1 and 3 and Limitation Order L-335.

The parties to the agreement having now agreed that such order should be revoked; *It is hereby ordered,* That: Consent Order No. C-396 be revoked.

Issued this 19th day of November 1945.

CIVILIAN PRODUCTION ADMINISTRATION,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 45-21072; Filed, Nov. 19, 1945; 4:26 p. m.]

[C-412, as Amended Nov. 19, 1945]

LEVERENZ SHOE CO.

CONSENT ORDER

Leverenz Shoe Company, a Wisconsin Corporation, with main offices at 830 Alabama Avenue, Sheboygan, Wisconsin, is engaged in the manufacture of men's welt, dress and work shoes. The corporation is charged by the War Production Board with the following violations: (1) That during the six months' period ending February 29, 1944, it completed the manufacture of approximately 3,724 pairs of men's dress shoes in a price line of $3.30 to $3.63 in excess of its allowed quota for such line. (2) That during the six months' period ending August 31, 1944, it completed the manufacture of approximately 2,515 pairs of men's dress shoes in a price line of $3.30 to $3.63 in excess of its allowed quota for such line. (3) That during the six months' period ending February 28, 1945, it completed the manufacture of approximately 1,173 pairs of men's dress shoes in a price line of $4.42 to $4.86 in excess of its allowed quota for such line. (4) That during the six months' period ending February 28, 1945, it completed the manufacture of approximately 86 pairs of men's dress shoes in a price line of $4.87 to $5.36 in excess of its allowed quota for such line. (5) That during the six months' period ending February 28, 1945, it completed the manufacture of approximately 2,067 pairs of men's work shoes in a price line of $4.01 to $4.41 in excess of its allowed quota for such line. (6) That during the period ending February 28, 1945, it completed the manufacture of 1,499 pairs of men's work shoes in a price line of $3.64 to $4.00 in excess of its allowed quota for such line. The above excess completion of manufacture of men's dress and work shoes by the corporation constituted a violation of Conservation Order M-217. The said Leverenz Shoe Company admits the violations as charged, and has consented to the issuance of this order.

Wherefore, upon the agreement and consent of Leverenz Shoe Company; of J. C. Baker, Regional Manager, Compliance Division; of James A. Daley, Acting Regional Attorney; and upon the approval of Frank T. Beesel, Compliance Commissioner, *It is hereby ordered,* That:

(a) The Leverenz Shoe Company, during the four months' period ending December 31, 1945, shall reduce its completion of manufacture of men's dress shoes in the price line of $3.30 to $3.63 by 2,482 pairs beneath the quota allowed it during said period for such price line under the provisions of Conservation Order M-217, as amended or may be amended.

(b) The Leverenz Shoe Company, during the four months' period ending April 30, 1946, shall reduce its completion of manufacture of men's dress shoes in the price line of $4.30 to $4.63 by 2,080 pairs beneath the quota allowed it during said period for such price line under the provisions of Conservation Order M-217, as amended or may be amended.

(c) The Leverenz Shoe Company, during the four months' period ending August 31, 1946, shall reduce its completion of manufacture of men's dress shoes in the price line of $3.30 to $3.63 by 1,677 pairs beneath the quota allowed it during said period for such price line under the provisions of Conservation Order M-217, as amended or may be amended.

(d) The Leverenz Shoe Company, during the four months' period ending December 31, 1945, shall reduce its completion of manufacture of men's dress shoes in the price line of $4.42 to $4.86 by 782 pairs beneath the quota allowed it during said period for such price line under the provisions of Conservation Order M-217, as amended or may be amended.

(e) The Leverenz Shoe Company, during the four months' period ending April 30, 1946, shall reduce its completion of manufacture of men's dress shoes in the price line of $4.42 to $4.86 by 391 pairs beneath the quota allowed it during said period for such price line under the provisions of Conservation Order M-217, as amended or may be amended.

(f) The Leverenz Shoe Company, during the four months' period ending December 31, 1945, shall reduce its completion of manufacture of men's dress shoes in the price line of $4.87 to $5.36 by 57 pairs beneath the quota allowed it during said period for such price line under the provisions of Conservation Order M-217, as amended or may be amended.

(g) The Leverenz Shoe Company, during the four months' period ending April 30, 1946, shall reduce its completion of manufacture of men's dress shoes in the price line of $4.87 to $5.36 by 29 pairs beneath the quota allowed it during said period for such price line under the provisions of Conservation Order M-217, as amended or may be amended.

(h) The Leverenz Shoe Company, during the four months' period ending December 31, 1945, shall reduce its completion of manufacture of men's work shoes in the price line of $4.01 to $4.41 by 1,378 pairs beneath the quota allowed it during said period for such price line under the provisions of Conservation Order M-217, as amended or may be amended.

(i) The Leverenz Shoe Company, during the four months' period ending April 30, 1946, shall reduce its completion of manufacture of men's work shoes in the price line of $4.01 to $4.41 by 689 pairs beneath the quota allowed it during said period for such price line under the provisions of Conservation Order M-217, as amended or may be amended.

(j) The Leverenz Shoe Company, during the four months' period ending December 31, 1945, shall reduce its completion of manufacture of men's work shoes in the price line of $3.64 to $4.00

by 1,000 pairs beneath the quota allowed it during said period for such price line under the provisions of Conservation Order M-217, as amended or may be amended.

(k) The Leverenz Shoe Company, during the four months' period ending April 30, 1946, shall reduce its completion of manufacture of men's work shoes in the price line of $3.64 to $4.00 by 499 pairs beneath the quota allowed it during said period for such price line under the provisions of Conservation Order M-217, as amended or may be amended.

(l) Nothing contained in this order shall be deemed to relieve the Leverenz Shoe Company, its successors or assigns, from any restriction, prohibition or provision contained in any order or regulation of the War Production Board except insofar as the same may be inconsistent with the provisions hereof.

Issued this 19th day of November 1945.

CIVILIAN PRODUCTION ADMINISTRATION,
By J. JOSEPH WHELAN,

[F. R. Doc. 45-21073; Filed, Nov. 19, 1945; 4:26 p. m.]

OFFICE OF PRICE ADMINISTRATION.

[RMPR 136, Order 545]

JOYCE-CRIDLAND CO.

ADJUSTMENT OF MAXIMUM PRICES

Order No. 545 under Revised Maximum Price Regulation 136. Machines, parts and industrial equipment. The Joyce-Cridland Company. Docket No. 6083-136.21-413 and SO-28-8473.

For the reasons set forth in an opinion, issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to section 21 of Revised Maximum Price Regulation 136; *It is ordered:*

(a) The maximum prices for sales of railroad and industrial jacks by The Joyce-Cridland Company, Dayton, Ohio, shall be determined as follows:

The manufacturer shall increase the maximum price he had in effect to a purchaser of the same class just prior to the issuance of this order by the percentage specified below:

Jacks:	*Percent*
Group I	4
Group II	8
Group III	2
Group IV	4
Group V	7

These maximum prices are for the jacks listed below:

GROUP I

Automatic lowering jacks:
66-A.
67-A and 67-A trip.
76-A.
1922-A.
1928-A.
2028.
Geared ratchet lever jacks:
290-A.
290-AF.
295-AA.
400-A.
401-A.
Railroad car truck jack:
75.
Truck trailer and airplane jack:
70.
Pole pulling jack:
77.
Cable reel jacks, auto. lowering:
76-AC.
76-AC3.
Emergency jack:
78.

GROUP I—Continued

Trip track jacks:
731.
791.
691.
Plain lever mine jacks:
1-AM.
2-AM.
4-AM.
4-M.
10-AM.
10.
Plain lever mine jacks—Con.
6.
4-F.
Mine timbering jack:
32-AM.
Specifications:
64-AA.
64-AB.
64-AC.
64-AD.
64-AE.

GROUP II

Std. speed ball brg. screw jacks:
154-A.
155-A.
158-A.
160-A.
165-A.
170-A.
Std. speed ball brg. geared jacks:
2425.
2435.
2635.
2450.
Journal jacks ball brg. type:
1015.
1025.
151-B.
1035.
153-J.
1015-A.
1025-A.
1035-A.
Journal jacks suspension type:
1005.

GROUP III

Bell base screw jacks:
98-A.
98-A ratchet.
101 (6-way).
101 (ratchet).
102 (6-way).
102 (ratchet).
103 (6-way).
103 (ratchet).
121 (6-way).
121 (ratchet).
123 (6-way).
123 (ratchet).
125 (6-way).
125 (ratchet).
Traversing jacks and bases:
510.
520-A.
530-A.
142.
143.
144.
244.
75-ton.
Telescoping jack:
45-A.

GROUP IV

Pushing and pulling jacks:
12, 16, 21, 53, 55, 59-A.
15, 20, 52, 57, 54.
Shoring jacks:
250.
255.

GROUP V

Self lowering (upright jacks):
1278.
1278-F.
1279.
1279-F.
1288.
1288-F.
1289.
1289-F.
1299-F.
Self-lowering (inverted) jacks:
1378 std.
1378 without wheels.
1379 std.
1379 without wheels.
13711 std.
13711 without wheels.
13712 std.
13712 without wheels.
1386 std.
1386 without wheels.
1388 std.
1388 without wheels.
1389 std.
1389 without wheels.
1399 std.
1399 without wheels.
Crank down jacks:
1386-A std.
1386-A without wheels.
1388-A std.
1388-A without wheels.

GROUP V—Continued

Crank down jacks—Continued.
1389-A std.
1389-A without wheels.
1399-A std.
1399-A without wheels.
Air motor hoists:
17710-R and 17710.
17712-R and 17712.
1799-R and 1799.
1799-AR and 1799-A.
17915-R and 17915.
Hydraulic jacks (heavy duty):
2012-A.
2018-A.
3012-A.
3018-A.
6012-A.
3012-B.
3012-B (hook).
3018-B.
3018-B (hook).
6012-B.
6012-B (hook).
6018-B.
6018-B (hook).
10012-B.
10012-B (hook).
10018-B.
10018-B (hook).

(b) The maximum prices for sales of railroad and industrial jacks by resellers shall be determined as follows: The reseller shall add to the maximum net price he had in effect to a purchaser of the same class, just prior to the issuance of this order, the amount, in dollars-and-cents, by which his net invoiced cost has been increased due to the adjustment granted the manufacturer by this order.

(c) The Joyce-Cridland Company shall notify each person who buys railroad and industrial jacks for resale of the dollars-and-cents amounts by which this order permits the reseller to increase his maximum net prices. A copy of each such notice shall be filed with the Machinery Branch, Office of Price Administration, Washington 25, D. C.

(d) All requests not granted herein are denied.

(e) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective November 20, 1945.

Issued this 19th day of November 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-21051; Filed, Nov. 19, 1945; 11:44 a. m.]

[MPR 260, Order 1972]

CEFERINO APONTE

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion accompanying this order, and pursuant to § 1358.102 (b) of Maximum Price Regulation No. 260; *It is ordered*, That:

(a) Ceferino Aponte, De Veve Calzade Street, San Lorenzo, P. R. (hereinafter called "manufacturer") and wholesalers and retailers may sell, offer to sell or deliver and any person may buy, offer to buy or receive each brand and size or frontmark, and packing of the following domestic cigars at the appropriate maximum list price and maximum retail price set forth below:

Brand	Size or frontmark	Packing	Maximum list price	Maximum retail price
			Per M	*Cents*
La Boricua	Breva	50	$50	4 for 25

(b) The manufacturer and wholesalers shall grant, with respect to their sales of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the discounts they customarily granted in March 1942 on their sales of domestic cigars of the same price class to purchasers of the same class, unless a change therein results in a lower price. Packing differentials charged by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class may be charged on corresponding sales of each brand and size or frontmark of cigars priced by this order, but shall not be increased. Packing differentials allowed by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class shall be allowed on corresponding sales of each brand and size or frontmark of cigars priced by this order and shall not be reduced. If a brand and size or frontmark of domestic cigars for which maximum prices are established by this order is of a price class not sold by the manufacturer or the particular wholesaler in March 1942, he shall, with respect to his sales thereof, grant the discounts and may charge and shall allow the packing differentials customarily granted, charged or allowed (as the case may be) in March 1942 by his most closely competitive seller of the same class on sales of domestic cigars of the same March 1942 price class to purchasers of the same class.

(c) On or before the first delivery to any purchaser of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the manufacturer and every other seller (except a retailer) shall notify the purchaser of the maximum list price and the maximum retail price established by this order for such brand and size or frontmark of domestic cigars. The notice shall conform to and be given in the manner prescribed by § 1358.113 of Maximum Price Regulation No. 260.

(d) Unless the context otherwise requires, appropriate provisions of Maximum Price Regulation No. 260, shall apply to sales for which maximum prices are established by this order.

(e) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective November 20, 1945.

Issued this 19th day of November 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-21052; Filed, Nov. 19, 1945; 11:44 a. m.]

[MPR 260, Order 1973]

LA BONITA CIGAR CO.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion accompanying this order, and pursuant to § 1358.102 (b) of Maximum Price Regulation No. 260; *It is ordered*, That:

(a) La Bonita Cigar Co., 213 South Broadway, Los Angeles, Calif. (hereinafter called "manufacturer") and wholesalers and retailers may sell, offer to sell or deliver and any person may buy, offer to buy or receive each brand and size or frontmark, and packing of the following domestic cigars at the appropriate maximum list price and maximum retail price set forth below:

Brand	Size or frontmark	Packing	Maximum list price	Maximum retail price
			Per M	*Cents*
La Bonita	Queens	50	$115.00	15
	Brevas	50	93.75	2 for 25

(b) The manufacturer and wholesalers shall grant, with respect to their sales of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the discounts they customarily granted in March 1942 on their sales of domestic cigars of the same price class to purchasers of the same class, unless a change therein results in a lower price. Packing differentials charged by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class may be charged on corresponding sales of each brand and size or frontmark of cigars priced by this order, but shall not be increased. Packing differentials allowed by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class shall be allowed on corresponding sales of each brand and size or frontmark of cigars priced by this order and shall not be reduced. If a brand and size or frontmark of domestic cigars for which maximum prices are established by this order is of a price class not sold by the manufacturer or the particular wholesaler in March 1942, he shall, with respect to his sales thereof, grant the discounts and may charge and shall allow the packing differentials customarily granted, charged or allowed (as the case may be) in March 1942 by his most closely competitive seller of the same class on sales of domestic cigars of the same March 1942 price class to purchasers of the same class.

(c) On or before the first delivery to any purchaser of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the manufacturer and every other seller (except a retailer) shall notify the purchaser of the maximum list price and the maximum retail price established by this order for such brand and size or frontmark of domestic cigars. The notice shall conform to and be given in the manner prescribed by § 1358.113 of Maximum Price Regulation No. 260.

(d) Unless the context otherwise requires, appropriate provisions of Maximum Price Regulation No. 260, shall apply to sales for which maximum prices are established by this order.

(e) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective November 20, 1945.

Issued this 19th day of November 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-21053; Filed, Nov. 19, 1945; 11:44 a. m.]

[MPR 260, Order 1974]

GARCIA-RICO CO.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion accompanying this order, and pursuant to § 1358.102 (b) of Maximum Price Regulation No. 260; *It is ordered*, That:

(a) Garcia-Rico Company, 411 Girod Street, New Orleans, La. (hereinafter called "manufacturer"), and wholesalers and retailers may sell, offer to sell or deliver and any person may buy, offer to buy or receive each brand and size or frontmark, and packing of the following domestic cigars at the appropriate maximum list price and maximum retail price set forth below:

Brand	Size or frontmark	Packing	Maximum list price	Maximum retail price
			Per M	*Cents*
X Senator	Conchitas	50	$36	2 for 9
Garcia Rico Co.	Rico	50	44	2 for 11
X Senator	Corona Chica	50	75	10
	Blunt	50	72	9

(b) The manufacturer and wholesalers shall grant, with respect to their sales of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the discounts they customarily granted in March 1942 on their sales of domestic cigars of the same price class to purchasers of the same class, unless a change therein results in a lower price. Packing differentials charged by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class may be charged on corresponding sales of each brand and size or frontmark of cigars priced by this order, but shall not be increased. Packing differentials allowed by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class shall be allowed on corresponding sales of each brand and size or frontmark of cigars priced by this order and shall not be reduced. If a brand and size or frontmark of domestic cigars for which maximum prices are established by this order is of a price

class not sold by the manufacturer or the particular wholesaler in March 1942, he shall, with respect to his sales thereof, grant the discounts and may charge and shall allow the packing differentials customarily granted, charged or allowed (as the case may be) in March 1942 by his most closely competitive seller of the same class on sales of domestic cigars of the same March 1942 price class to purchasers of the same class.

(c) On or before the first delivery to any purchaser of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the manufacturer and every other seller (except a retailer) shall notify the purchaser of the maximum list price and the maximum retail price established by this order for such brand and size or frontmark of domestic cigars. The notice shall conform to and be given in the manner prescribed by § 1358.113 of Maximum Price Regulation No. 260.

(d) Unless the context otherwise requires, appropriate provisions of Maximum Price Regulation No. 260, shall apply to sales for which maximum prices are established by this order.

(e) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective November 20, 1945.

Issued this 19th day of November 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-21054; Filed, Nov. 19, 1945; 11:45 a. m.]

[MPR 260, Order 1975]

CHARLES E. WISE

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion accompanying this order, and pursuant to § 1358.102 (b) of Maximum Price Regulation No. 260; *It is ordered*, That:

(a) Charles E. Wise, 74 East Main Street, Windsor, Pa. (hereinafter called "manufacturer") and wholesalers and retailers may sell, offer to sell or deliver and any person may buy, offer to buy or receive each brand and size or frontmark, and packing of the following domestic cigars at the appropriate maximum list price and maximum retail price set forth below:

Brand	Size or frontmark	Packing	Maximum list price	Maximum retail price
			Per M	*Cents*
Eleanor	4⅞"	50	$60	2 for 15

(b) The manufacturer and wholesalers shall grant, with respect to their sales of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the discounts they customarily granted in March 1942 on their sales of domestic cigars of the same price class to purchasers of the same class, unless a change therein results in a lower price. Packing differentials charged by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class may be charged on corresponding sales of each brand and size or frontmark of cigars priced by this order, but shall not be increased. Packing differentials allowed by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class shall be allowed on corresponding sales of each brand and size or frontmark of cigars priced by this order and shall not be reduced. If a brand and size or frontmark of domestic cigars for which maximum prices are established by this order is of a price class not sold by the manufacturer or the particular wholesaler in March 1942, he shall, with respect to his sales thereof, grant the discounts and may charge and shall allow the packing differentials customarily granted, charged or allowed (as the case may be) in March 1942 by his most closely competitive seller of the same class on sales of domestic cigars of the same March 1942 price class to purchasers of the same class.

(c) On or before the first delivery to any purchaser of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the manufacturer and every other seller (except a retailer) shall notify the purchaser of the maximum list price and the maximum retail price established by this order for such brand and size or frontmark of domestic cigars. The notice shall conform to and be given in the manner prescribed by § 1358.113 of Maximum Price Regulation No. 260.

(d) Unless the context otherwise requires, appropriate provisions of Maximum Price Regulation No. 260, shall apply to sales for which maximum prices are established by this order.

(e) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective November 20, 1945.

Issued this 19th day of November 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-21055; Filed, Nov. 19, 1945; 11:45 a. m.]

[MPR 260, Order 1976]

JESUS MARIA RODRIQUEZ

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion accompanying this order, and pursuant to § 1358.102 (b) of Maximum Price Regulation No. 260; *It is ordered*, That:

(a) Jesus Maria Rodriquez, Bo. Rio Canas Km 29½, Caguas, P. R. (hereinafter called "manufacturer") and wholesalers and retailers may sell, offer to sell or deliver and any person may buy, offer to buy or receive each brand and size or frontmark, and packing of the following domestic cigars at the appropriate maximum list price and maximum retail price set forth below:

Brand	Size or frontmark	Packing	Maximum list price	Maximum retail price
			Per M	*Cents*
Jesus M. Rodriquez.	Panetelas	50	$48.00	6
	Perfecto	50	56.00	7
	Corona	50	46.65	6 for 35

(b) The manufacturer and wholesalers shall grant, with respect to their sales of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the discounts they customarily granted in March 1942 on their sales of domestic cigars of the same price class to purchasers of the same class, unless a change therein results in a lower price. Packing differentials charged by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class may be charged on corresponding sales of each brand and size or frontmark of cigars priced by this order, but shall not be increased. Packing differentials allowed by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class shall be allowed on corresponding sales of each brand and size or frontmark of cigars priced by this order and shall not be reduced. If a brand and size or frontmark of domestic cigars for which maximum prices are established by this order is of a price class not sold by the manufacturer or the particular wholesaler in March 1942, he shall, with respect to his sales thereof, grant the discounts and may charge and shall allow the packing differentials customarily granted, charged or allowed (as the case may be) in March 1942 by his most closely competitive seller of the same class on sales of domestic cigars of the same March 1942 price class to purchasers of the same class.

(c) On or before the first delivery to any purchaser of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the manufacturer and every other seller (except a retailer) shall notify the purchaser of the maximum list price and the maximum retail price established by this order for such brand and size or frontmark of domestic cigars. The notice shall conform to and be given in the manner prescribed by § 1358.113 of Maximum Price Regulation No. 260.

(d) Unless the context otherwise requires, appropriate provisions of Maximum Price Regulation No. 260, shall apply to sales for which maximum prices are established by this order.

(e) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective November 20, 1945.

Issued this 19th day of November 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-21056; Filed, Nov. 19, 1945; 11:45 a. m.]

[MPR 260, Order 1977]

FRANK FERNANDEZ JR. CIGAR FACTORY

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion accompanying this order, and pursuant to § 1358.102 (b) of Maximum Price Regulation No. 260; *It is ordered*, That:

(a) Frank Fernandez Jr. Cigar Factory, 2206 N. Boulevard, Tampa, Fla. (hereinafter called "manufacturer") and wholesalers and retailers may sell, offer to sell or deliver and any person may buy, offer to buy or receive each brand and size or frontmark, and packing of the following domestic cigars at the appropriate maximum list price and maximum retail price set forth below:

Brand	Size or frontmark	Packing	Maximum list price	Maximum retail price
El Boulevard	Bouquet	50	*Per M* $93.75	*Cents* 2 for 25

(b) The manufacturer and wholesalers shall grant, with respect to their sales of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the discounts they customarily granted in March 1942 on their sales of domestic cigars of the same price class to purchasers of the same class, unless a change therein results in a lower price. Packing differentials charged by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class may be charged on corresponding sales of each brand and size or frontmark of cigars priced by this order, but shall not be increased. Packing differentials allowed by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class shall be allowed on corresponding sales of each brand and size or frontmark of cigars priced by this order and shall not be reduced. If a brand and size or frontmark of domestic cigars for which maximum prices are established by this order is of a price class not sold by the manufacturer or the particular wholesaler in March 1942, he shall, with respect to his sales thereof, grant the discounts and may charge and shall allow the packing differentials customarily granted, charged or allowed (as the case may be) in March 1942 by his most closely competitive seller of the same class on sales of domestic cigars of the same March 1942 price class to purchasers of the same class.

(c) On or before the first delivery to any purchaser of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the manufacturer and every other seller (except a retailer) shall notify the purchaser of the maximum list price and the maximum retail price established by this order for such brand and size or frontmark of domestic cigars. The notice shall conform to and be given in the manner prescribed by § 1358.113 of Maximum Price Regulation No. 260.

(d) Unless the context otherwise requires, appropriate provisions of Maximum Price Regulation No. 260, shall apply to sales for which maximum prices are established by this order.

(e) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective November 20, 1945.

Issued this 19th day of November 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-21057; Filed, Nov. 19, 1945; 11:46 a. m.]

[MPR 260, Order 1978]

FLOR GONZLEZ

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion accompanying this order, and pursuant to § 1358.102 (b) of Maximum Price Regulation No. 260; *It is ordered*, That:

(a) Flor Gonzlez, Palmer, P. R. (hereinafter called "manufacturer") and wholesalers and retailers may sell, offer to sell or deliver and any person may buy, offer to buy or receive each brand and size or frontmark, and packing of the following domestic cigars at the appropriate maximum list price and maximum retail price set forth below:

Brand	Size or frontmark	Packing	Maximum list price	Maximum retail price
Flor Gonzalez	Breva	50	*Per M* $32	*Cents* 4

(b) The manufacturer and wholesalers shall grant, with respect to their sales of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the discounts they customarily granted in March 1942 on their sales of domestic cigars of the same price class to purchasers of the same class, unless a change therein results in a lower price. Packing differentials charged by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class may be charged on corresponding sales of each brand and size or frontmark of cigars priced by this order, but shall not be increased. Packing differentials allowed by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class shall be allowed on corresponding sales of each brand and size or frontmark of cigars priced by this order and shall not be reduced. If a brand and size or frontmark of domestic cigars for which maximum prices are established by this order is of a price class not sold by the manufacturer or the particular wholesaler in March 1942, he shall, with respect to his sales thereof, grant the discounts and may charge and shall allow the packing differentials customarily granted, charged or allowed (as the case may be) in March 1942 by his most closely competitive seller of the same class on sales of domestic cigars of the same March 1942 price class to purchasers of the same class.

(c) On or before the first delivery to any purchaser of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the manufacturer and every other seller (except a retailer) shall notify the purchaser of the maximum list price and the maximum retail price established by this order for such brand and size or frontmark of domestic cigars. The notice shall conform to and be given in the manner prescribed by § 1358.113 of Maximum Price Regulation No. 260.

(d) Unless the context otherwise requires, appropriate provisions of Maximum Price Regulation No. 260, shall apply to sales for which maximum prices are established by this order.

(e) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective November 20, 1945.

Issued this 19th day of November 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-21058; Filed, Nov. 19, 1945; 11:46 a. m.]

[MPR 260, Order 1979]

MARK CIGAR CO.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion accompanying this order, and pursuant to § 1358.102 (b) of Maximum Price Regulation No. 260; *It is ordered*, That:

(a) Mark Cigar Company, 1020 N. Water Street, Milwaukee, Wis. (hereinafter called "manufacturer") and wholesalers and retailers may sell, offer to sell or deliver and any person may buy, offer to buy or receive each brand and size or frontmark, and packing of the following domestic cigars at the appropriate maximum list price and maximum retail price set forth below:

Brand	Size or frontmark	Packing	Maximum list price	Maximum retail price
Manske's Pride	Perfecto	50	*Per M* $115	*Cents* 15
	Brevas	50	72	9

(b) The manufacturer and wholesalers shall grant, with respect to their sales of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the discounts they customarily granted in March 1942 on their sales of domestic cigars of the same price class to purchasers of the same class, unless a change therein results in a lower price. Packing differentials charged by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class may be charged on corresponding sales of each brand and size or frontmark of cigars priced by this order,

but shall not be increased. Packing differentials allowed by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class shall be allowed on corresponding sales of each brand and size or frontmark of cigars priced by this order and shall not be reduced. If a brand and size or frontmark of domestic cigars for which maximum prices are established by this order is of a price class not sold by the manufacturer or the particular wholesaler in March 1942, he shall, with respect to his sales thereof, grant the discounts and may charge and shall allow the packing differentials customarily granted, charged or allowed (as the case may be) in March 1942 by his most closely competitive seller of the same class on sales of domestic cigars of the same March 1942 price class to purchasers of the same class.

(c) On or before the first delivery to any purchaser of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the manufacturer and every other seller (except a retailer) shall notify the purchaser of the maximum list price and the maximum retail price established by this order for such brand and size or frontmark of domestic cigars. The notice shall conform to and be given in the manner prescribed by § 1358.113 of Maximum Price Regulation No. 260.

(d) Unless the context otherwise requires, appropriate provisions of Maximum Price Regulation No. 260, shall apply to sales for which maximum prices are established by this order.

(e) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective November 20, 1945.

Issued this 19th day of November 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-21059; Filed, Nov. 19, 1945; 11:46 a. m.]

[MPR 260, Order 1980]

DI PASCALE CIGAR CO.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion accompanying this order, and pursuant to § 1358.102 (b) of Maximum Price Regulation No. 260; *It is ordered*, That:

(a) Di Pascale Cigar Company, 10937 Chelsea Avenue (rear), Detroit 5, Mich. (hereinafter called "manufacturer") and wholesalers and retailers may sell, offer to sell or deliver and any person may buy, offer to buy or receive each brand and size or frontmark, and packing of the following domestic cigars at the appropriate maximum list price and maximum retail price set forth below:

Brand	Size or frontmark	Packing	Maximum list price	Maximum retail price
			Per M	*Cents*
Italian	Di Pascale	50	$40	5

(b) The manufacturer and wholesalers shall grant, with respect to their sales of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the discounts they customarily granted in March 1942 on their sales of domestic cigars of the same price class to purchasers of the same class, unless a change therein results in a lower price. Packing differentials charged by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class may be charged on corresponding sales of each brand and size or frontmark of cigars priced by this order, but shall not be increased. Packing differentials allowed by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class shall be allowed on corresponding sales of each brand and size or frontmark of cigars priced by this order and shall not be reduced. If a brand and size or frontmark of domestic cigars for which maximum prices are established by this order is of a price class not sold by the manufacturer or the particular wholesaler in March 1942, he shall, with respect to his sales thereof, grant the discounts and may charge and shall allow the packing differentials customarily granted, charged or allowed (as the case may be) in March 1942 by his most closely competitive seller of the same class on sales of domestic cigars of the same March 1942 price class to purchasers of the same class.

(c) On or before the first delivery to any purchaser of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the manufacturer and every other seller (except a retailer) shall notify the purchaser of the maximum list price and the maximum retail price established by this order for such brand and size or frontmark of domestic cigars. The notice shall conform to and be given in the manner prescribed by § 1358.113 of Maximum Price Regulation No. 260.

(d) Unless the context otherwise requires, appropriate provisions of Maximum Price Regulation No. 260, shall apply to sales for which maximum prices are established by this order.

(e) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective November 20, 1945.

Issued this 19th day of November 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-21060; Filed, Nov. 19, 1945; 11:46 a. m.]

[MPR 260, Order 1981]

TONY AND DICK CIGAR CO.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion accompanying this order, and pursuant to § 1358.102 (b) of Maximum Price Regulation No. 260; *It is ordered*, That:

(a) Tony and Dick Cigar Company, 2605 St. Joseph Street, Tampa 7, Fla. (hereinafter called "manufacturer") and wholesalers and retailers may sell, offer to sell or deliver and any person may buy, offer to buy or receive each brand and size or frontmark, and packing of the following domestic cigars at the appropriate maximum list price and maximum retail price set forth below:

Brand	Size or frontmark	Packing	Maximum list price	Maximum retail price
			Per M	*Cents*
Vesta Victoria	Corona	50	$72.00	9
	Corona Chicas	50	64.00	8
	Londres	50	93.75	2 for 25
	Corona Grande	50	97.50	13

(b) The manufacturer and wholesalers shall grant, with respect to their sales of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the discounts they customarily granted in March 1942 on their sales of domestic cigars of the same price class to purchasers of the same class, unless a change therein results in a lower price. Packing differentials charged by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class may be charged on corresponding sales of each brand and size or frontmark of cigars priced by this order, but shall not be increased. Packing differentials allowed by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class shall be allowed on corresponding sales of each brand and size or frontmark of cigars priced by this order and shall not be reduced. If a brand and size or frontmark of domestic cigars for which maximum prices are established by this order is of a price class not sold by the manufacturer or the particular wholesaler in March 1942, he shall, with respect to his sales thereof, grant the discounts and may charge and shall allow the packing differentials customarily granted, charged or allowed (as the case may be) in March 1942 by his most closely competitive seller of the same class on sales of domestic cigars of the same March 1942 price class to purchasers of the same class.

(c) On or before the first delivery to any purchaser of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the manufacturer and every other seller (except a retailer) shall notify the purchaser of the maximum list price and the maximum retail price established by this order for such brand and size or frontmark of domestic cigars. The notice shall conform to and be given in the manner prescribed by § 1358.113 of Maximum Price Regulation No. 260.

(d) Unless the context otherwise requires, appropriate provisions of Maximum Price Regulation No. 260, shall apply to sales for which maximum prices are established by this order.

(e) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective November 20, 1945.

Issued this 19th day of November 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-21061; Filed, Nov. 19, 1945; 11:47 a. m.]

[MPR 260, Order 1932]

RED BAND CIGAR FACTORY

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion accompanying this order, and pursuant to § 1358.102 (b) of Maximum Price Regulation No. 260; *It is ordered,* That:

(a) Red Band Cigar Factory, 925 21st Street, Tampa 5, Fla. (hereinafter called "manufacturer") and wholesalers and retailers may sell, offer to sell or deliver and any person may buy, offer to buy or receive each brand and size or frontmark, and packing of the following domestic cigars at the appropriate maximum list price and maximum retail price set forth below:

Brand	Size or frontmark	Packing	Maximum list price	Maximum retail price
			Per M	*Cents*
Red Band Cigars.	Coronas	50	$101.25	2 for 27
	Country Clubs	50	60.00	2 for 15
	Panatelas	50	93.75	2 for 25

(b) The manufacturer and wholesalers shall grant, with respect to their sales of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the discounts they customarily granted in March 1942 on their sales of domestic cigars of the same price class to purchasers of the same class, unless a change therein results in a lower price. Packing differentials charged by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class may be charged on corresponding sales of each brand and size or frontmark of cigars priced by this order, but shall not be increased. Packing differentials allowed by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class shall be allowed on corresponding sales of each brand and size or frontmark of cigars priced by this order and shall not be reduced. If a brand and size or frontmark of domestic cigars for which maximum prices are established by this order is of a price class not sold by the manufacturer or the particular wholesaler in March 1942, he shall, with respect to his sales thereof, grant the discounts and may charge and shall allow the packing differentials customarily granted, charged or allowed (as the case may be) in March 1942 by his most closely competitive seller of the same class on sales of domestic cigars of the same March 1942 price class to purchasers of the same class.

(c) On or before the first delivery to any purchaser of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the manufacturer and every other seller (except a retailer) shall notify the purchaser of the maximum list price and the maximum retail price established by this order for such brand and size or frontmark of domestic cigars. The notice shall conform to and be given in the manner prescribed by § 1358.113 of Maximum Price Regulation No. 260.

(d) Unless the context otherwise requires, appropriate provisions of Maximum Price Regulation No. 260, shall apply to sales for which maximum prices are established by this order.

(e) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective November 20, 1945.

Issued this 19th day of November 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-21062; Filed, Nov. 19, 1945; 11:47 a. m.]

[MPR 260, Order 1933]

TAMPA-VANA CIGAR CO.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion accompanying this order, and pursuant to § 1358.102 (b) of Maximum Price Regulation No. 260; *It is ordered,* That:

(a) Tampa-Vana Cigar Company, 2007½ 11th Street, Tampa 5, Fla. (hereinafter called "manufacturer") and wholesalers and retailers may sell, offer to sell or deliver and any person may buy, offer to buy or receive each brand and size or frontmark, and packing of the following domestic cigars at the appropriate maximum list price and maximum retail price set forth below:

Brand	Size or frontmark	Packing	Maximum list price	Maximum retail price
			Per M	*Cents*
Palm Tree	Straights	50	$48	6

(b) The manufacturer and wholesalers shall grant, with respect to their sales of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the discounts they customarily granted in March 1942 on their sales of domestic cigars of the same price class to purchasers of the same class, unless a change therein results in a lower price. Packing differentials charged by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class may be charged on corresponding sales of each brand and size or frontmark of cigars priced by this order, but shall not be increased. Packing differentials allowed by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class shall be allowed on corresponding sales of each brand and size or frontmark of cigars priced by this order and shall not be reduced. If a brand and size or frontmark of domestic cigars for which maximum prices are established by this order is of a price class not sold by the manufacturer or the particular wholesaler in March 1942, he shall, with respect to his sales thereof, grant the discounts and may charge and shall allow the packing differentials customarily granted, charged or allowed (as the case may be) in March 1942 by his most closely competitive seller of the same class on sales of domestic cigars of the same March 1942 price class to purchasers of the same class.

(c) On or before the first delivery to any purchaser of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the manufacturer and every other seller (except a retailer) shall notify the purchaser of the maximum list price and the maximum retail price established by this order for such brand and size or frontmark of domestic cigars. The notice shall conform to and be given in the manner prescribed by § 1358.113 of Maximum Price Regulation No. 260.

(d) Unless the context otherwise requires, appropriate provisions of Maximum Price Regulation No. 260, shall apply to sales for which maximum prices are established by this order.

(e) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective November 20, 1945.

Issued this 19th day of November 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-21063; Filed, Nov. 19, 1945; 11:47 a. m.]

[RMPR 136, Order 546]

CONVERTO MANUFACTURING CO.

APPROVAL OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith, and filed with the Division of the Federal Register, and pursuant to sections 9, 10 and 11 (c) of Revised Maximum Price Regulation 136, *It is ordered:*

(a) Converto Manufacturing Company, 210 Grant Street, Pittsburgh 19, Pennsylvania, may sell to The Converto Company of Pittsburgh, Pennsylvania, f. o. b. plant, each Converto trailer, described in subparagraph (1) below, at a price not to exceed $70.00 plus federal excise tax, and state and local taxes on its sale or delivery of the trailer and the cost of transporting the trailer to the purchaser, if any.

(1) Model No. TD, two-wheel dump trailer, 5' long x 48" wide x 14" high, constructed of 11 gauge steel, ¾ ton capacity, double-acting reinforced tailgate, Kelsey Hayes No. 7 Wheels, equipped without tires.

Model No. TC, two-wheel cargo trailer, 6' long x 48" wide x 14" high, constructed of 11 gauge steel, ¾ ton capacity, reinforced let-down tailgate, with Kelsey Hayes No. 7 wheels, equipped without tires.

(b) Converto Manufacturing Company is authorized to suggest to resellers resale prices for the trailers described in paragraph (a) (1) consisting of the following:

(1) *Prices.*

	Without tires	Equipped with implement tires	
		4-ply 6.00 x 16	6-ply 6.00 x 16
The Converto Co.	$90.00	$110.00	$113.90
Regional distributor	100.50	120.00	123.90
Consumers	134.00	160.00	165.20

(2) *Charges.* (i) A charge for transportation, if any, not to exceed the actual rail freight charge from the factory at Cambridge City, Indiana, to the railroad freight receiving station nearest to the place of business of the reseller.

(ii) A charge equal to the charge made by Converto Manufacturing Company to cover Federal excise taxes.

(iii) A charge equal to reseller's expense for payment at state and local taxes on the purchase, sale or delivery of the trailers.

(c) A reseller of Converto trailers in any of the territories or possessions of the United States is authorized to sell each of the trailers described in paragraph (a), at a price not to exceed the applicable price established in paragraph (b), to which it may add a sum equal to the expense incurred by or charged to it for payment of territorial and insular taxes, on the purchase, sale or introduction of the trailer; export premiums; boxing and crating for export purposes; marine and war risk insurance; and landing, wharfage and terminal operations.

(d) All requests not granted herein are denied.

(e) This order may be amended or revoked by the Administrator at any time.

NOTE: Where the manufacturer's invoice charge to the reseller is increased or decreased from the previous invoice charge because the manufacturer has a newly established price under section 8 of Revised Maximum Price Regulation 136, due to substantial changes in design, specifications or equipment of the trailer, the reseller may add to its price under paragraph (b) the increase in price, plus its customary markup on such a cost increase, but in case of a decrease in the price, the reseller must reduce its price under paragraph (b) by the amount of the decrease and its customary markup on such an amount.

This order shall become effective November 19, 1945.

Issued this 19th day of November 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-21078; Filed, Nov. 19, 1945; 4:55 p. m.]

[MPR 594, Order 3]

THE STUDEBAKER CORP.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to section 8 of Maximum Price Regulation 594, *It is ordered:*

(a) The Studebaker Corporation, and its wholly owned subsidiary companies, hereinafter called Company, is authorized to sell f. o. b. South Bend, Indiana, each of the Studebaker 50 Champion Skyway Passenger automobiles listed in subparagraph (1) to its domestic dealers at a price not to exceed the respective list price in that subparagraph less the Company's current billing discount of 20.6% and additional discount in paragraph (b) plus applicable charges in subparagraph (2):

(1) *List prices.*

Description:	List price
4-Door cruising sedan	$967
2-Door club sedan	918
5-Passenger double dater coupe	916
3-Passenger business coupe	875

(2) *Charges*—(i) *Extra or optional equipment.* A charge for each item of extra or optional equipment listed below affixed to or shipped with the new automobile which shall not exceed the respective list prices shown below less applicable discount, provided for in paragraph (a) and (b).

Description:	List price
Overdrive and free wheeling	$52.55
Hill holder	8.50
Leather upholstery:	
In coupes	16.35
In sedans	28.05
Optional tires:	
5:50 x 16 6-ply black	11.68
6:00 x 16 4-ply black	7.85
6:00 x 16 6-ply black	20.91
Wet type air cleaner	3.90
Six-blade fan	1.75

(ii) *Handling and preparation for delivery charge.* A charge for handling and for preparation for delivery of the new automobile computed by the same method as was in effect on October 15, 1941.

(iii) *Advertising.* A charge for advertising not to exceed the amount of the charge which Company had in effect on January 1, 1941.

(iv) *Taxes.* A charge at current legal rates to cover federal excise taxes on the new automobile and extra or optional equipment, and also state and local taxes on the sale or delivery of the automobile and extra or optional equipment when the sale is made for the account of a reseller.

(v) *Transportation expenses.* A charge to cover the transportation cost which the company prepays for the domestic dealer for transporting the automobile from the factory to the point at which delivery is made to the domestic dealer.

(b) *Additional discount.* When a domestic dealer shall have purchased for resale as a direct dealer either from the Company or authorized central dealer one of the quantities of 5G Champion Skyway Passenger Automobiles listed in the following schedule, the Company shall pay to that dealer, or credit him with, the difference between the billing discount of 20.6% and the discount in the schedule:

	Percent
1 to 25, inclusive	21.6
26 to 50, inclusive	22.1
51 to 100, inclusive	22.6
101 to 150, inclusive	23.1
151 and over	23.6

(c) The Company is authorized to sell f. o. b. South Bend, Indiana, to users each of the Studebaker 5G Champion Skyway Passenger Automobiles listed in subparagraph (1) of paragraph (a) at a price not to exceed the total of the following charges:

(1) *Automobile.* The applicable list price in subparagraph (1) of paragraph (a) for the new automobile less the discounts in effect on January 1, 1941, to the applicable class of purchaser reduced by 9.7%.

(2) *Extra or optional equipment.* A charge for extra or optional equipment listed in subparagraph (2) (i) of paragraph (a) affixed to or shipped with the new automobile which shall not exceed the applicable list prices in that subparagraph less the discounts in effect on January 1, 1941, to the applicable class of purchaser reduced by 9.7%.

(3) *State and local taxes.* A charge to cover state and local taxes on the sale or delivery of the new automobile and extra or optional equipment.

(4) *Transportation.* A charge to cover cost, if any, of transporting the new automobile and extra or optional equipment to purchaser.

(5) *Other expense.* Charges to cover handling and delivery operations, advertising, and federal excise taxes, determined in accordance with applicable methods provided in subparagraph (2) of paragraph (a).

(d) Any dealer when selling under a "Central Dealer Agreement" with Company is authorized to sell to direct dealers listed in his contract each of the Studebaker 50 Champion Skyway Passenger Automobiles listed in subparagraph (1) of paragraph (a) at a price not to exceed the applicable list price in that subparagraph less a discount of 20.6% plus the following applicable charges:

(1) *Extra or optional equipment.* A charge for each item of extra or optional equipment listed in subparagraph (2) (i) of paragraph (a) affixed to or shipped with the new automobile which shall not exceed the applicable list price in that subparagraph less a discount of 20.6%.

(2) *Taxes.* A charge to cover any federal excise taxes paid on the new automobile and extra or optional equipment or any state or local taxes paid on the sale or delivery of the new automobile and extra or optional equipment.

(3) *Advertising.* A charge for advertising expense not to exceed the amount of the charge which the Company makes to the central dealer for this expense.

(4) *Handling and preparation for delivery charge.* A charge for handling

and for preparation for delivery not to exceed the charge the Company makes to the central dealer for these operations.

(5) *Transportation.* A charge to cover the central dealer's expense, if any, for the transportation of the new automobile and extra or optional equipment from the factory, South Bend, Indiana, to the place at which delivery is made to the direct dealer.

(6) *Wholesale servicing, unloading and receiving charges.* A charge for wholesale servicing, unloading and receiving each new automobile not to exceed $6.00.

(c) A reseller when not selling under a "Central Dealer Agreement" is authorized to sell to any purchaser each of the Studebaker 50 Champion Skyway Passenger Automobiles listed in subparagraph (1) of paragraph (a) at a price not to exceed the respective list price in that subparagraph plus the following applicable charges:

(1) *Extra or optional equipment.* A charge for each item of extra or optional equipment listed in subparagraph (2) (i) of paragraph (a) affixed to or shipped with the new automobile which shall not exceed the applicable list price in that subparagraph.

(2) *Preparing and conditioning charge.* A charge for preparing and conditioning the new automobile for delivery not to exceed $20.00.

(3) *Transportation.* A charge to cover transportation expense which shall not exceed the rail freight charge at carload rate, by the most direct route, for the transportation of the new automobile or extra or optional equipment from South Bend, Indiana, to the receiving station nearest to the place at which delivery is made to the purchaser, except that where the new automobile or extra or optional equipment is transported by truck-away, the charge may be the truck-away charge, at truckload rate, for the most direct route from South Bend, Indiana, to the place at which delivery is made to the purchaser.

(4) *Federal excise taxes.* A charge equal to the charge made by his supplier to cover federal excise taxes on the new automobile and extra or optional equipment.

(5) *State and local taxes.* A charge equal to his expense for state and local taxes on the sale or delivery of the new automobile and extra or optional equipment.

(f) *Resales in territories and possessions.* A reseller is authorized to sell each of the Studebaker 5G Champion Skyway Passenger Automobiles listed in paragraph (a) (1) in a territory or possession of the United States at a price not to exceed the maximum price permitted by paragraph (c) or (d), whichever is applicable, to which he may add a sum equal to the expense incurred by or charged to him for payment of territorial and insular taxes on the purchase, sale or introduction of the new automobile in the territory or possession, when not charged under paragraph (c) or (d); export premiums; boxing and crating for export purposes; assembly costs if any; marine and war risk insurance; landing, wharfage and terminal operations; ocean freight; and freight to port of embarkation when not charged under paragraph (c) or (d).

(g) All requests not granted herein are denied.

(h) This order may be amended or revoked by the Administrator at any time.

This order shall become effective November 19, 1945.

Issued this 19th day of November 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-21079; Filed, Nov. 19, 1945; 5:29 p. m.]

[MPR 594, Order 4]

FORD MOTOR CO.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to section 8 of Maximum Price Regulation 594, *It is ordered:*

(a) Ford Motor Company, Dearborn, Michigan, may sell and deliver f. o. b. Dearborn, Michigan, each of the new Ford passenger automobiles described in subparagraph (1) at a price not to exceed the respective net wholesale price in subparagraph (1) plus the applicable charges in subparagraph (2):

(1) *Description.*

	Net wholesale price
DeLuxe Eight:	
3-Passenger Coupe	$645.38
Tudor Sedan	683.05
Fordor Sedan	720.91
Super DeLuxe Eight:	
3-Passenger Coupe	690.07
Tudor Sedan	728.08
Fordor Sedan	765.96
Sedan Coupe	756.36

(2) *Charges*—(i) *Optional equipment.* A charge for each of the items in the following schedule when installed at the factory not to exceed the respective net wholesale price in that schedule:

SCHEDULE

Description	*Net wholesale price*
Bumber center guard front (super deluxe)	$3.77
Bumper end guards (super deluxe)	3.48
Electric clock (deluxe)	5.77
Electric clock (super deluxe)	3.35
Fender shields (pair)	9.67
Governor	4.06
Hot water heater defroster	15.25
Hot water heater under seat type	11.50
Oil bath air cleaner, hat type	1.74
Oil bath air cleaner, 21A-18205, 1 qt. capacity	1.89
Oil bath air cleaner, 2GA-18205-B, 1 qt. capacity	2.46
Oil filter	3.48
Radio, incl. antenna and foot control	29.25
Wheel rings	4.50
100 horsepower engine	18.75

(ii) *Transportation expense.* A charge to cover outbound transportation expense, if any, from Dearborn, Michigan, to the point at which delivery is made to the purchaser, computed in accordance with the method the seller had in effect on October 15, 1941, plus transportation tax at the current legal rate.

(iii) *Federal excise taxes.* A charge to cover expense of federal excise taxes, at the current legal rate, on new automobiles including optional equipment, computed in accordance with the seller's method in effect on October 15, 1941.

(iv) *Handling and delivery charge.* A charge for handling and delivery computed in accordance with the method, and at the same rate, the seller had in effect on October 15, 1941.

(b) A reseller of Ford automobiles may sell and deliver each of the new Ford passenger automobiles listed in subparagraph (1) at a price not to exceed the applicable list price in that subparagraph plus the applicable charges in subparagraph (2):

(1) *Description.*

DeLuxe Eight:	
3-Passenger Coupe	$834
Tudor Sedan	882
Fordor Sedan	931
Super DeLuxe Eight:	
3-Passenger Coupe	891
Tudor Sedan	940
Fordor Sedan	989
Sedan Coupe	977

(2) *Charges*—(i) *Optional equipment.* A charge for each of the items in the following schedule when installed at the factory not to exceed the respective list price in that schedule:

SCHEDULE

Description	*List price*
Bumper center guard front (super deluxe)	$6.50
Bumper end guards (super deluxe)	6.00
Electric clock (deluxe)	9.75
Electric clock (super deluxe)	5.75
Fender shields (pair)	14.50
Governor	7.00
Hot water heater defroster	23.50
Hot water heater under seat type	16.50
Oil bath air cleaner, hat type	3.00
Oil bath air cleaner, 21A-18205, 1 qt. capacity	3.25
Oil bath air cleaner, 2GA-18205-B, 1 qt. capacity	4.25
Oil filter	6.00
Radio, incl. antenna and foot control	45.00
Wheel rings	7.75
100 horsepower engine	25.00

(ii) *Transportation expense.* A charge to cover transportation expense, if any, which shall not exceed the rail freight charge at carload rate, by the most direct route, for the transportation of the new automobile and optional equipment from Dearborn, Michigan, to the railroad freight receiving station nearest to the place at which delivery is made to the purchaser plus transportation tax, except that where the new automobile and optional equipment is transported by truck-away, the charge may be the truck-away charge at truckload rate, for the most direct route from Dearborn, Michigan, to the place at which delivery is made to the purchaser plus transportation tax.

(iii) *Federal excise tax.* A charge for federal excise tax equal to the charge made by the manufacturer to cover such tax on the new automobile and optional equipment.

(iv) *State and local taxes.* A charge equal to the reseller's expense for state or local taxes on the resale of the new automobile or optional equipment.

(v) *Preparing and conditioning charge.* A charge not to exceed $15.00 for preparing and conditioning the new automobile for delivery.

(c) *Resales in territories and possessions.* A reseller is authorized to sell in a territory or possession each of the new automobiles listed in paragraph (b) at a price not to exceed the maximum price permitted by that paragraph to which it may add a sum equal to the expense incurred by or charged to him for: Payment of territorial and insular taxes on the purchase, sale or introduction of the new automobile in the territory or possession, when not charged under paragraph (b); export premiums; boxing and crating for export purposes; marine and war risk insurance; landing, wharfage and terminal operations; assembly costs if any; ocean freight; and freight to port of embarkation when not charged under paragraph (b).

(d) This order may be amended or revoked by the Administrator at any time.

This order shall become effective November 19, 1945.

Issued this 19th day of November 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-21080; Filed, Nov. 19, 1945; 5:29 p. m.]

[MPR 580, Order 260]

DUFOLD, INC.

ESTABLISHMENT OF MAXIMUM PRICES

Maximum Price Regulation 580, Order 260. Establishing ceiling prices at retail for certain articles. Docket No. 6063-580-13-354.

For the reasons set forth in an opinion issued simultaneously herewith and pursuant to section 13 of Maximum Price Regulation No. 580; *It is ordered:*

(a) The following ceiling prices are established for sales by any seller at retail of the following articles manufactured by Duofold, Inc., Mohawk, N. Y., and described in the manufacturer's application dated September 20, 1945:

"DUOFOLD" UNDERWEAR

Article	Manufacturer's selling price, except in California, Washington, and Oregon		Retail ceiling price, except in California, Washington, and Oregon		California, Washington, and Oregon			
					Manufacturer's selling price		Retail ceiling price	
	Sizes 34-46	Sizes 48-50	Sizes 34-46	Sizes 48-50	Sizes 34-46	Sizes 48-50	Sizes 34-46	Sizes 48-50
	Per doz.	*Per doz.*	*Per unit*	*Per unit*	*Per doz.*	*Per doz.*	*Per unit*	*Per unit*
L. S. A. union suit	$40.75	$46.50	$5.50	$6.25	$42.00	$47.75	$5.75	$6.50
S. S. A. union suit	40.75	46.50	5.50	6.25	42.00	47.75	5.75	6.50
S. S. ¾ union suit	40.75	46.50	5.50	6.25	42.00	47.75	5.75	6.50
L. S. A. union suit	37.00	42.50	5.00	5.75	38.25	43.75	5.25	6.00
S. S. A. union suit	37.00	42.50	5.00	5.75	38.25	43.75	5.25	6.00
L. S. shirt	20.25	23.75	2.75	3.25	21.00	24.50	3.00	3.50
S. S. shirt	20.25	23.75	2.75	3.25	21.00	24.50	3.00	3.50
P. O. L. S. shirt	18.50	22.00	2.50	3.00	19.25	22.75	2.75	3.25
P. O. S. S. shirt	16.50	19.50	2.25	2.65	17.25	20.25	2.50	2.90
L. S. shirt	22.00	26.00	3.00	3.50	22.75	26.75	3.25	3.75
S. S. shirt	22.00	26.00	3.00	3.50	22.75	26.75	3.25	3.75
A. L. drawer	20.25	23.75	2.75	3.25	21.00	24.50	3.00	3.50
A. L. drawer	22.00	26.00	3.00	3.50	22.75	26.75	3.25	3.75
Short	12.25	13.75	1.65	1.85	12.75	14.25	1.75	2.00
Long	18.50	20.25	2.50	2.75	19.25	21.00	2.75	3.00
Ath. P. O. shirt	12.25	13.75	1.65	1.85	12.75	14.25	1.75	2.00
S. S. P. O. shirt	14.75	16.50	2.00	2.25	15.50	17.25	2.25	2.50
L. S. P. O. shirt	18.50	20.25	2.50	2.75	19.25	21.00	2.75	3.00
"DU-ONS"								
1-piece suit	$9.25	$10.75	$1.25	$1.50	$9.50	$11.00	$1.35	$1.60
	10.75	12.50	1.50	1.75	11.00	12.75	1.60	1.85
	14.50	16.50	2.00	2.25	14.75	16.75	2.10	2.35

"DUOCRAFT"

Article	Manufacturer's selling price		Retail ceiling price	
	Sizes 26-46	Sizes 48-50	Sizes 26-46	Sizes 48-50
Pullover shirt	$6.25	$7.25	$0.85	$1.00
	4.10	4.85	.60	.70
	4.25	------	.60	------
Action support, brief	4.35	5.10	.60	.70
Action support, short	4.35	5.10	.60	.70
Action support, long	6.75	8.00	1.00	1.15

(b) The retail ceiling price of an article stated in paragraph (a) shall apply to any other article of the same type, having the same selling price to the retailer, the same brand or company name and first sold by the manufacturer after the effective date of this order.

(c) The retail ceiling prices contained in paragraph (a) shall apply in place of the ceiling prices which have been or would otherwise be established under this or any other regulation.

(d) On and after December 15, 1945, Duofold, Inc., must mark each article listed in paragraph (a) with the retail ceiling price under this order, or attach to the article a label, tag or ticket stating the retail ceiling price. This mark or statement must be in the following form:

(Section 13, MPR 580)
OPA Price—$------

On and after January 15, 1946, no retailer may offer or sell the article unless it is marked or tagged in the form stated above. Prior to January 15, 1946, unless the article is marked or tagged in this form, the retailer shall comply with the marking, tagging and posting provisions of the applicable regulation.

(e) On or before the first delivery to any purchaser for resale of each article listed in paragraph (a), the seller shall send the purchaser a copy of this order.

(f) Unless the context otherwise requires, the provisions of the applicable regulation shall apply to sales for which retail ceiling prices are established by this order.

(g) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective November 21, 1945.

Issued this 20th day of November 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-21084; Filed, Nov. 20, 1945; 10:06 a. m.]

[MPR 580, Order 261]

A. L. SILVER

ESTABLISHMENT OF MAXIMUM PRICES

Maximum Price Regulation No. 580, Order 261. Establishing ceiling prices at retail for certain articles. Docket No. 6063-580-13-285.

For the reasons set forth in an opinion issued simultaneously herewith and pursuant to section 13 of Maximum Price Regulation No. 580; *It is ordered:*

(a) The following ceiling prices are established for sales by any seller at retail of the following articles manufactured by A. L. Silver, 1103 Commerce Street, Dallas 2, Tex., having the brand name "Robin Hood", and "Alpine", and described in the manufacturer's application dated August 16, 1945:

MEN'S SPORT SHIRTS

Style name	Manufacturer's selling price	Retail ceiling price
	Per doz.	*Per unit*
Panama Challis	$36.00	$5.00
Radiant Broadcloth	36.00	5.00
Regent Poplin	36.00	5.00
Fiesta Shantung	36.00	5.00
Woolbrook Tropical	42.00	5.95
Medalist Gabardine	45.00	6.50
Cabana Plaids	45.00	6.50
Fairway Flannel	45.00	6.50
Rajah Linen	45.00	6.50
Stroller Gabardine	48.00	6.95
Monterey Checks	54.00	7.50
Picnic Plaids	60.00	8.50
Royal Flannel	60.00	8.50
Viking	66.00	8.95
St. Moritz	78.00	11.50
Sportsman	78.00	11.50
Aristocrat	96.00	13.50

(b) The retail ceiling price of an article stated in paragraph (a) shall apply to any other article of the same type, having the same selling price to the retailer, the same brand or company name and first sold by the manufacturer after the effective date of this order.

(c) The retail ceiling prices contained in paragraph (a) shall apply in place of the ceiling prices which have been or would otherwise be established under this or any other regulation.

(d) On and after December 15, 1945, A. L. Silver must mark each article listed in paragraph (a) with the retail ceiling

price under this order, or attach to the article a label, tag or ticket stating the retail ceiling price. This mark or statement must be in the following form:

(Section 13, MPR 580)
OPA Price—$_____

On and after January 15, 1946, no retailer may offer or sell the article unless it is marked or tagged in the form stated above. Prior to January 15, 1946, unless the article is marked or tagged in this form, the retailer shall comply with the marking, tagging and posting provisions of the applicable regulation.

(e) On or before the first delivery to any purchaser for resale of each article listed in paragraph (a), the seller shall send the purchaser a copy of this order.

(f) Unless the context otherwise requires, the provisions of the applicable regulation shall apply to sales for which retail ceiling prices are established by this order.

(g) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective November 21, 1945.

Issued this 20th day of November 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-21085; Filed, Nov. 20, 1945; 10:07 a. m.]

[MPR 580, Order 262]

C. F. RUMPP & SONS

ESTABLISHMENT OF MAXIMUM PRICES

Maximum Price Regulation 580, Order 262. Establishing ceiling prices at retail for certain articles. Docket No. 6063-580-13-373.

For the reasons set forth in an opinion issued simultaneously herewith and pursuant to section 13 of Maximum Price Regulation No. 580; *It is ordered:*

(a) The following ceiling prices are established for sales by any seller at retail of the following articles sold at wholesale by C. F. Rumpp & Sons, Fifth & Cherry Streets, Philadelphia 6, Pa., having the brand name "Rumpp", and described in the manufacturer's application dated October 17, 1945:

BILLFOLDS

Manufacturer's selling price:	*Retail ceiling price*
$7.20	$1.00
$10.50	1.50
$12.00 to $13.73	2.00
$15.00 to $16.50	2.50
$18.00	3.00
$20.82 to $22.50	3.50
$24.00 to $27.00	4.00
$29.93 to $35.57	5.00
$36.13 to $39.00	6.00
$41.12 to $45.00	6.50
$47.19 to $50.32	7.50
$60.00 to $62.31	10.00
$90.65 to $93.65	15.00
$101.70	16.00
$102.56	16.50
$108.25	17.50
$150.19	25.00

LETTER CASES (WITH BILL COMPARTMENT)

Manufacturer's selling price:	*Retail ceiling price*
$7.20	$1.00
$10.50	1.50
$12.00	2.00
$15.00	2.50
$18.00 to $19.50	3.00
$21.00	3.50
$24.00	4.00
$33.00	5.00
$36.00	6.00
$45.00	7.50
$48.00 to $49.96	8.00
$51.00	8.50
$60.00	10.00
$121.35	20.00

(b) The retail ceiling price of an article manufactured for the first time after the effective date of this order and which is sold by the wholesaler at the same price as another article of the same type with the same brand or company name and for which a retail ceiling price has been established by paragraph (a) shall be the retail ceiling price listed for that other article in paragraph (a).

(c) The retail ceiling prices contained in paragraph (a) shall apply in place of the ceiling prices which have been or would otherwise be established under this or any other regulation.

(d) On and after December 15, 1945, C. F. Rumpp & Sons must mark each article listed in paragraph (a) with the retail ceiling price under this order, or attach to the article a label, tag or ticket stating the retail ceiling price. This mark or statement must be in the following form:

(Sec. 13, MPR 580)
OPA Price—$_____

On and after January 15, 1946, no retailer may offer or sell the article unless it is marked or tagged in the form stated above. Prior to January 15, 1946, unless the article is marked or tagged in this form, the retailer shall comply with the marking, tagging and posting provisions of the applicable regulation.

(e) On or before the first delivery to any purchaser for resale of each article listed in paragraph (a), the seller shall send the purchaser a copy of this order.

(f) Unless the context otherwise requires, the provisions of the applicable regulation shall apply to sales for which retail ceiling prices are established by this order.

(g) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective November 21, 1945.

Issued this 20th day of November 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-21086; Filed, Nov. 20, 1945; 10:07 a. m.]

[MPR 580, Order 263]

LASKIN BROS., INC.

ESTABLISHMENT OF MAXIMUM PRICES

Maximum Price Regulation 580, Order 263. Establishing ceiling prices at retail for certain articles. Docket No. 6063-580-13-233.

For the reasons set forth in an opinion issued simultaneously herewith and pursuant to section 13 of Maximum Price Regulation No. 580; *It is ordered:*

(a) The following ceiling prices are established for sales by any seller at retail of the following articles manufactured by Laskin Brothers, Inc., 325 North Thirteenth Street, Philadelphia 7, Pa., having the brand name "NU-EVE," and described in the manufacturer's application dated June 12, 1945:

PANTIES

Style name	Manufacturer's selling price: Regular sizes	Manufacturer's selling price: Extra sizes	Retail ceiling price: Regular sizes	Retail ceiling price: Extra sizes
6530, 6532, 6534, 6598	$8.25	$9.75	$1.15	$1.35
6540, 6544, 6590, 6594	7.25	9.00	1.00	1.25

BRIEFS

530	$7.25	-------	$1.00	-------
540, 590	5.50	-------	.79	-------

SLIPS

309	$9.75	$11.00	$1.35	$1.59
329	14.00	15.50	1.95	2.25

(b) The retail ceiling price of an article stated in paragraph (a) shall apply to any other article of the same type, having the same selling price to the retailer, the same brand or company name and first sold by the manufacturer after the effective date of this order.

(c) The retail ceiling prices contained in paragraph (a) shall apply in place of the ceiling prices which have been or would otherwise be established under this or any other regulation.

(d) On and after December 15, 1945, Laskin Brothers, Inc., must mark each article listed in paragraph (a) with the retail ceiling price under this order, or attach to the article a label, tag or ticket stating the retail ceiling price. This mark or statement must be in the following form:

(Section 13, MPR 580)
OPA Price—$_____

On and after January 15, 1946, no retailer may offer or sell the article unless it is marked or tagged in the form stated above. Prior to January 15, 1946, unless the article is marked or tagged in this form, the retailer shall comply with the marking, tagging and posting provisions of the applicable regulation.

(e) On or before the first delivery to any purchaser for resale of each article listed in paragraph (a), the seller shall send the purchaser a copy of this order.

(f) Unless the context otherwise requires, the provisions of the applicable regulation shall apply to sales for which retail ceiling prices are established by this order.

(g) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective November 21, 1945.

Issued this 20th day of November 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-21087; Filed, Nov. 20, 1945; 10:07 a. m.]

[MPR 592, Amdt. 16 to Order 1]

ELECTRICAL FIBRE CONDUIT AND FIBRE PIPE

MODIFICATION OF MAXIMUM PRICES

An opinion accompanying this amendment issued simultaneously herewith has been filed with the Division of the Federal Register.

Article VII of Order 1 under section 25 of Maximum Price Regulation No. 592 is amended in the following respect:

A new section 7.12 is added to read as follows:

SEC. 7.12 *Modification of maximum prices for electrical fibre conduit and fibre pipe.* (a) The manufacturer's maximum net price for electrical fibre conduit or fibre pipe established pursuant to Maximum Price Regulation 592 to each class of purchaser may be increased by 11.5 per cent.

(b) Any reseller purchasing electrical fibre conduit or fibre pipe for resale in the same form, may increase his maximum price as established under the General Maximum Price Regulation, by an amount not in excess of his actual dollars-and-cents increase in cost resulting from the increase permitted the manufacturer in (a) above.

(c) The maximum prices established under this section shall be subject to quantity, cash and other discounts, transportation allowances, services and other terms and conditions of sale at least as favorable as the seller extended or rendered or would have extended or rendered on comparable sales to purchasers of the same class during March 1942.

This amendment shall become effective November 21, 1945.

Issued this 20th day of November 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-21088; Filed, Nov. 20, 1945; 10:06 a. m.]

SECURITIES AND EXCHANGE COMMISSION.

[File No. 70-1168]

NIAGARA HUDSON POWER CORP.

ORDER PERMITTING DECLARATION TO BECOME EFFECTIVE

At a regular session of the Securities and Exchange Commission, held at its office in the City of Philadelphia, Pennsylvania, on the 16th day of November 1945.

The Commission having by its order of November 8, 1945, permitted to become effective declarations by Niagara Hudson Power Corporation regarding (1) the reduction of the par value of its common stock from $10 per share to $1 per share, so as to create capital surplus to be available for any adjustment of the carrying value of Niagara Hudson Power Corporation's investment in its subsidiary companies; (2) the conversion of reacquired shares of First Preferred Stock, 5% Series, into shares of Common Stock; and (3) the solicitation of proxies from stockholders for approval of the above transactions and in connection therewith the employment of an individual to solicit such proxies; and having in such order reserved jurisdiction with respect to the solicitation of proxies pending the submission of the proposed proxy material (Holding Company Act Release No. 6206);

Niagara Hudson Power Corporation having filed an amendment to the declaration including therein copies of the proposed letter of solicitation and all other documents proposed to be submitted with such letter of solicitation and a full statement of the manner in which the solicitation is proposed to be made; and

It appearing that the solicitation of proxies of the stockholders as proposed to be conducted does not make it necessary or appropriate in the public interest or for the protection of investors or consumers or to prevent the circumvention of the provisions of the act or the general Rules and Regulations thereunder for the Commission to issue any order with respect thereto other than an order permitting the declaration with respect to such solicitation to become effective;

It is ordered, That the jurisdiction heretofore reserved with respect to the proposed solicitation of proxies by Niagara Hudson Power Corporation be, and hereby is, released, and that the declaration with respect to such solicitation of proxies pursuant to Rule U-62 be, and hereby is, permitted to become effective forthwith.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F. R. Doc. 45-21089; Filed, Nov. 20, 1945; 10:28 a. m.]

[File No. 70-1190]

UNITED CORP.

NOTICE OF FILING AND NOTICE OF AND ORDER FOR HEARING

At a regular session of the Securities and Exchange Commission, held at its office in the City of Philadelphia, Pennsylvania, on the 16th day of November 1945.

Notice is hereby given that a declaration has been filed with this Commission pursuant to the Public Utility Holding Company Act of 1935 by The United Corporation, a registered holding company.

All interested persons are referred to said document which is on file in the offices of the Commission for a statement of the transactions therein proposed, which are summarized as follows:

The United Corporation proposes (a) to reduce its authorized Common Stock from 24,000,000 shares to 18,261,551 shares and to change such authorized shares from no par value stock to $1 per share par value stock; (b) to reduce its authorized Preference Stock from 5,000,000 shares to 1,214,700 shares and to change such authorized stock from no par value stock to $5 per share par value stock.

It appearing to the Commission that it is appropriate in the public interest and in the interests of investors and consumers that a hearing be held with respect to said declaration and that said declaration shall not be permitted to become effective except pursuant to further order of the Commission;

It is ordered, That a hearing on said declaration under the applicable provisions of the act and rules of the Commission thereunder be held on December 3, 1945, at 10 a. m., e. s. t., in the offices of the Securities and Exchange Commission, 18th and Locust Streets, Philadelphia 3, Pennsylvania. On such day the hearing room clerk in Room 318 will advise as to the room in which such hearing will be held. All persons desiring to be heard or otherwise wishing to participate in the proceedings should notify the Commission in the manner provided by Rule XVII of the rules of practice on or before November 30, 1945.

It is further ordered, That Allen MacCullen, or any other officer or officers of the Commission designated by it for that purpose, shall preside at such hearing. The officer so designated to preside at such hearing is hereby authorized to exercise all powers granted to the Commission under section 18 (c) of said act and to a trial examiner under the Commission's rules of practice.

It is further ordered, That the Secretary of the Commission shall serve, by registered mail, a copy of this order on The United Corporation; and that notice of said hearing be given to all other persons by publication of this order in the FEDERAL REGISTER.

It is further ordered, That, without limiting the scope of the issues presented by said declaration, particular attention will be directed at said hearing to the following matters and questions:

(1) Whether the proposed reduction of the authorized number of common and preference shares of The United Corporation and the change of such shares from no par value to $1 and $5 par value, respectively, will result in an unfair or inequitable distribution of voting power among holders of the securities of the declarant, or is otherwise detrimental to the public interest or the interests of investors or consumers;

(2) Generally, whether the proposed transactions comply with the applicable provisions of the Public Utility Holding Company Act and all the rules and regulations promulgated thereunder;

(3) What terms and conditions, if any, are necessary or appropriate in the public interest or the interests of investors and consumers to ensure compliance with the requirements of the Holding Company

Act or any rules, regulations or orders promulgated thereunder.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F. R. Doc. 45-21090; Filed, Nov. 20, 1945; 10:28 a. m.]

[File No. 812-397]

TRI-CONTINENTAL CORP. AND SELECTED INDUSTRIES, INC.

NOTICE OF AND ORDER FOR HEARING

At a regular session of the Securities and Exchange Commission held at its office in the City of Philadelphia, Pa., on the 19th day of November, A. D. 1945.

An application having been filed by Tri-Continental Corporation and Selected Industries Incorporated pursuant to section 17 (b) of the Investment Company Act of 1940 for an order exempting from the provisions of section 17 (a) (2) of said act proposed transactions whereby each applicant proposes to purchase from Union Securities Corporation, 7,710 shares of the 5½% Cumulative Convertible Preferred Stock of the par value of $25 per share of Camden Forge Company at a price equal to the par value of said stock plus accrued dividends thereon; and it appearing that applicants are both registered investment companies and affiliated persons of each other and that Union Securities Corporation is controlled by both applicants through the ownership by each of 50 percent of Union Securities Corporation's outstanding stock;

It is ordered, Pursuant to section 40 (a) of said act that a hearing on the aforesaid application be held on November 28, 1945 at 9:45 a. m., eastern standard time, in Room 318 of the Securities and Exchange Commission Building, at 18th and Locust Streets, Philadelphia 3, Pennsylvania.

It is further ordered, That Charles S. Lobingier, or any other officer or officers of the Commission designated by it for that purpose, shall preside at such hearing. The officer so designated is hereby authorized to exercise all the powers granted to the Commission under sections 41 and 42 (b) of the Investment Company Act of 1940 and to Trial Examiners under the Commission's rules of practice.

Notice of such hearing is hereby given to Tri-Continental Corporation, Selected Industries Incorporated and to any other persons whose participation in such proceeding may be in the public interest or for the protection of investors.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F. R. Doc. 45-21091; Filed, Nov. 20, 1945; 10:28 a. m.]

[File Nos. 70-1183, 31-534, 31-535]

MAINE PUBLIC SERVICE CO. ET AL.

NOTICE OF FILING, ORDER FOR HEARING, AND ORDER CONSOLIDATING PROCEEDINGS

At a regular session of the Securities and Exchange Commission, held at its office in the City of Philadelphia, Pennsylvania, on the 19th day of November, A. D. 1945.

In the matters of Maine Public Service Company, Consolidated Electric and Gas Company, File No. 70-1183; Maine Public Service Company, File No. 31-534; Maine and New Brunswick Electrical Power Company, Limited, File No. 31-535.

Consolidated Electric and Gas Company ("Consolidated"), a registered holding company, Maine Public Service Company ("Maine"), a registered holding company and a public utility subsidiary of Consolidated, and Maine and New Brunswick Electrical Power Company, Limited, ("New Brunswick"), a public utility subsidiary of Maine and Consolidated, have made certain filings with this Commission pursuant to the Public Utility Holding Company Act of 1935.

All interested persons are referred to said documents, which are on file in the offices of this Commission, for a statement of the transactions therein proposed, which may be summarized as follows:

In File No. 31-534, Maine applies for an order of this Commission, pursuant to section 3 (a) (2) of the act, exempting Maine, and New Brunswick as a subsidiary of Maine, from all provisions of said act except such provisions thereof as are applicable to Maine as a subsidiary of a registered holding company, on the asserted ground that Maine is predominantly a public utility company whose operations as such do not extend beyond the State of Maine, in which it is organized.

Maine has one direct subsidiary, New Brunswick, Maine owning all of the outstanding securities of New Brunswick except $7,900 principal amount of 6% Perpetual Debenture Stock (which is not callable) and 25 directors' qualifying shares of common stock. New Brunswick owns and operates facilities for the generation, transmission and distribution of electric energy, all such facilities being situated in the Province of New Brunswick, Canada. New Brunswick serves 19 communities, 13 at retail and 6 at wholesale, and also sells power to Maine at the international boundary for resale by Maine within the State of Maine. For the 12 months ended August 31, 1945, approximately 58% of the power sold by New Brunswick was sold to Maine. In File No. 31-535, New Brunswick applies for an order of this Commission, pursuant to section 3 (b) of the act, exempting New Brunswick from all provisions of the act imposing obligations, duties or liabilities on it as a subsidiary of a registered holding company, on the asserted ground that it has no subsidiaries, derives no material part of its income directly or indirectly from sources within the United States, and is not a public utility company operating in the United States.

In File No. 70-1183, Maine proposes to issue and sell at competitive bidding, pursuant to the provisions of Rule U-50, $2,200,000 principal amount of First Mortgage Bonds. The proceeds to be derived from the sale of such bonds, together with other corporate funds including moneys to be received from New Brunswick as hereinafter indicated, are to be used to redeem and retire $1,926,000 principal amount of presently outstanding 3¾% Sinking Fund Series Bonds, due September 1, 1972, at 105½% of the principal amount thereof plus interest to the date of redemption (the applicable redemption price); to redeem and retire $290,000 principal amount of presently outstanding 3½% Sinking Fund Series Bonds, due September 1, 1973, at 106¾% of the principal amount thereof plus accrued interest to the date of redemption (the applicable redemption price), and to set aside $250,000 for improvement and additions to the properties of Maine.

It is further proposed that the authorized capital stock of Maine presently consisting of 10,000 shares, par value $100 a share, aggregate authorized capital $1,000,000, be increased to 150,000 shares, par value $10 per share, aggregate authorized capital $1,500,000. All of said 150,000 shares are to be issued in exchange for the presently outstanding 9,303 shares of common stock.

Consolidated holds all of the outstanding common stock of Maine except five directors' qualifying shares, and is to surrender to Maine all of its holdings of such stock and to acquire from Maine all of the shares proposed to be issued, except that five shares are to be held by directors as nominees of Consolidated. As at August 31, 1945, the capitalization of Maine consisted solely of the aforementioned bonds and common stock.

Simultaneously with the issuance and sale by Maine of the securities hereinabove described, New Brunswick intends to issue and sell to one or more financial institutions $600,000 principal amount in Canadian dollar bonds and to apply the proceeds from the sale of said bonds in part to the payment of its 6% Perpetual Debenture Stock owned by Maine ($31,100 principal amount) and its outstanding 3% demand notes ($340,000 principal amount), all owned by Maine. The balance of the proceeds from the sale of the new bonds is to be used for the construction or acquisition of improvements and additions to the properties of New Brunswick and for general corporate purposes of the company. The filing indicates that in the judgment of counsel for Maine and New Brunswick, the transactions insofar as they affect New Brunswick are not subject to the jurisdiction of this Commission because of the pendency of the exemption applications hereinbefore described.

It appears that sections 3 (a), 3 (b), 6 (a), 6 (b), 7, 9, 10, 12 (c), 12 (d), and 12 (f) of the act and Rules U-10, U-42, U-43, U-44, and U-50 are applicable to the proposed transactions.

It appearing to the Commission that it is appropriate in the public interest and in the interest of investors and consumers that a hearing be held with re-

spect to the joint application-declaration (File No. 70–1183) and that said joint application-declaration and the requested exemptions (File Nos. 31–534 and 31–535) should not be granted or permitted to become effective except pursuant to further order or orders of this Commission;

It further appearing to the Commission that the proceedings regarding the exemption applications of Maine and New Brunswick and regarding the joint application-declaration of Consolidated and Maine concerning the afore-described financial transactions involve common questions of law and fact and should be consolidated and heard together;

It is ordered, That said proceedings be, and they are hereby, consolidated, and that a hearing in the consolidated proceedings under the applicable provisions of the act and rules of the Commission promulgated thereunder to be held on November 30, 1945, at 10:00 a. m., e. s. t., at the offices of the Securities and Exchange Commission, 18th and Locust Streets, Philadelphia 3, Pennsylvania, in such room as the hearing room clerk in Room 318 will at that time advise. All persons desiring to be heard or otherwise wishing to participate in the proceedings should file with the Commission on or before November 28, 1945, a written request relative thereto as provided by Rule XVII of the rules of practice of the Commission.

It is further ordered, That jurisdiction be, and it hereby is, reserved to separate either for hearing, in whole or in part, or for disposition, in whole or in part, any issues or questions which may arise in these proceedings and to take such other action as may appear conducive to an orderly, prompt, and economical disposition of the matters involved.

It is further ordered, That notice of said hearing is hereby given to Consolidated, Maine, New Brunswick, Public Service Commission of the State of Maine and all interested persons, notice to be given to Consolidated, Maine, New Brunswick, and Public Service Commission of the State of Maine by registered mail and to all other persons by a general release of this Commission which shall be distributed to the press and mailed to all persons on the mailing list for releases issued under the Public Utility Holding Company Act of 1935 and by publication of a copy of this notice and order in the FEDERAL REGISTER.

It is further ordered, That Allen MacCullen or any other officer or officers of this Commission designated by it for that purpose, shall preside at such hearing. The officer so designated is hereby authorized to exercise all powers granted to the Commission under section 18 (c) of the act and to a trial examiner under the Commission's rules of practice.

It is further ordered, That, without limiting the scope of the issues presented by said filings, particular attention be directed at said hearing to the following matters and questions:

(1) Whether Maine is predominantly a public utility company whose operations as such do not extend beyond the State in which it is organized and States contiguous thereto;

(2) Whether it is detrimental to the public interest or the interest of investors or consumers to grant to Maine, and to New Brunswick as a subsidiary of Maine, an exemption from any or all of the provisions of the act;

(3) Whether New Brunswick derives any material part of its income directly or indirectly from sources within the United States;

(4) Whether the application of any or all of the provisions of the act to New Brunswick is necessary in the public interest or for the protection of investors;

(5) Whether the proposed issue and sale of First Mortgage Bonds and common stock by Maine are solely for the purpose of financing the business of Maine as a public utility company, have been expressly authorized by the State Commission for the State in which Maine is organized and conducts its business, and otherwise satisfy the requirements of Section 6 (b) of the act; and, if not, whether the proposed issue and sale of said securities satisfy the requirements of sections 7 (c) and 7 (d) of the act;

(6) Whether the proposed increase in the authorized common stock of Maine is detrimental to the public interest or the interest of investors or consumers;

(7) Whether the proposed accounting entries to be made in connection with the proposed transactions are proper;

(8) Whether the fees, commissions and other remunerations to be paid directly or indirectly in connection with the proposed transactions are reasonable; and

(9) Generally, whether the proposed transactions comply with all of the applicable provisions and requirements of the act and rules and regulations promulgated thereunder, and whether it is necessary or appropriate in the public interest or for the protection of investors and consumers, or to prevent the circumvention of any provisions of the act, or rules, regulations or orders thereunder to impose terms and conditions in connection with any of the proposed transactions.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F. R. Doc. 45–21092; Filed, Nov. 20, 1945; 10:28 a. m.]

SELECTIVE SERVICE SYSTEM.

[No. 309]

AFFIDAVIT—OCCUPATIONAL CLASSIFICATION (INDUSTRIAL)

ORDER PRESCRIBING FORMS

Pursuant to authority contained in the Selective Training and Service Act of 1940, as amended, I hereby prescribe the following change in DSS Forms:

Discontinuance of DSS Form 42A, entitled "Affidavit—Occupational Classification (Industrial)."

The foregoing discontinuance shall become a part of the Selective Service Regulations effective within the continental United States immediately upon the filing hereof with the Division of the Federal Register and effective outside the continental limits of the United States on the 30th day after the date of filing hereof with the Division of the Federal Register.

LEWIS B. HERSHEY,
Director.

NOVEMBER 5, 1945.

[F. R. Doc. 45–21074; Filed, Nov. 19, 1945; 4:53 p. m.]